REQUEST FOR PROPOSAL
(NOT TRANSFERABLE)

Tender for the Selection of Service Provider/ Aggregator for SMS Gateway, WhatsApp Messaging services, IVRS and e-mail services for State TB Cell Haryana under the National TB Elimination Programme

Tender Reference No. 3/3-HMSCL-374-H/Tend. /2024-25 dated 18.11.2024

Last Date for receipt of Tender: - 09.12.2024

Haryana Medical Services Corporation Limited,
(A Government of Haryana Undertaking)
Plot No. 9, DHL Square Building, 5th Floor,
Sector- 22, IT Park Panchkula
Phone: 0172-4788222

Web: - *www.etenders.hry.nic.in*

Interested bidders are directed to submit online Tender Fee, Bid Security (EMD) and Bid Processing fee. Firm will submit Tender Fee (Rs. 5,000.00/-), Bid Security (EMD) (as mentioned in Section III Schedule of Requirements) and Bid Processing fee (Rs. 1,180.00/-) through online (NIC Portal) in SBI Account of HMSCL. No demand draft/ Bankers Cheque will be accepted for the submission of Tender Fee, Bid Security (EMD) and Bid processing fee, if the same is found then bid is liable to be cancelled & considered the bidder is not as per DNIT.

Hardcopy of Technical Bid will be submitted in the O/o HMSCL, Panchkula before last date of closing Technical Bid. Financial Bid (BOQ) must be uploaded on NIC Portal only and no need to submit financial bid offline).

Email ID for the Submission of any Clarification or Representations: - tenderquery2020@gmail.com (No Clarification/Representation be entertained if not received on said email).

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SECTION I: NOTICE INVITING TENDER

Haryana Medical Services Corporation Limited

(A Government of Haryana Undertaking)

NOTICE INVITING TENDER

Tender Ref. No: - 3/3-HMSCL-374-H/Tend. /2024-25 Dated: - 18.11.2024

1. Haryana Medical Services Corporation Ltd. (HMSCL) is an undertaking of the Government of Haryana, registered as a company under the Companies Act, 2013. It is the nodal agency for procurement of medical equipment for the Health Department, Government of Haryana at the request of the Head of the Departments. This policy lays down the procedure and directives to be adopted by HMSCL for procurement by adopting a fair and transparent system. HMSCL invites online bids from eligible and qualified bidders for supply, installation, and commissioning of equipment for the various Government Hospitals of Haryana as per details in the Schedule of Requirement.
2. Bidding will be conducted through Open Competitive Bidding following a two Bid System i.e. Technical Bid and Financial Bid as per the procedure specified in the tender document.
3. The Schedule of E-Tendering Activities is as under:

Sr.	Activity	Date and Time
1	Period of sale of Bidding Document	18.11.2024 to 09.12.2024
2	Date, time and venue of pre-bid meeting	The Pre-Bid Meeting would not be Held, if required then it will be held.
3	Date of Clarification	**18.11.2024 to 25.11.2024 Clarification/representations will not be acceptable after the end of the mentioned period**
4	End of Bid Submission	09.12.2024 at 01:00 PM
5	Opening of Technical Bid	09.12.2024 at 04:00 PM
6	Date of Demonstration(if required)	Will be informed accordingly

4. The date and time for opening of the financial Bids shall be intimated after evaluation of the technical bid.
5. In case the date of opening falls on a day that is declared a public holiday, the bids shall be opened on the next day at the same time.

6. Bidders requiring further information or clarification can obtain the same by writing an email only to ***tenderquery2020@gmail.com***
7. The bidders are advised to register themselves on the e-procurement portal (www.etenders.hry.nic.in) and obtain a valid Class III Digital Signature Certificate (DSC) as per the Information Technology (IT) Act, 2000. The said website can be accessed for additional information about registration and use of Portal.
   Bidders can submit their tender online at *www.etenders.hry.nic.in* on or before the dates specified.

8. (a) The Bid documents can also be vi*ewed at the website:* www.etenders.hry.nic.in, The Cost of the downloaded Bid documents, should be deposited in the manner indicated in the tender document. HMSCL will only evaluate bids of only those bidders who have submitted the cost of Bid Documents.

(b) The Bidders who have downloaded the Bid documents, shall be solely responsible for checking the above website for any addendum/amendment to the bid document issued subsequently, and take into consideration the same while preparing and submitting the Bids.

(c) All further notifications/amendments, if any, shall be uploaded on websites mentioned at 10 (a).

9. Bids must be submitted in the manner specified in the instructions to bidders in the tender document. Late Bids or Bids not submitted at the designated address will be summarily rejected.

Managing Director,
Haryana Medical Services Corporation Limited

End of Section I

Section II: Checklist

All mentioned documents must be uploaded at the time of Bid Submission and no fresh Document will be accepted after closing of the Tender. **Physical Submission of Documents mentioned in 6.17 (a) is mandatory.** ***However, clarification can be sought from the Bidder.***

The following documents have to be uploaded online.

S. No	Particulars	Submitted (Yes or No)	Page no
1	Declaration of Acceptance of DNIT		
2	Authority Letter on **Prescribed Performa** by the Bidder, if he is not a Manufacturer.		
3	Turnover Certificate of Bidder certified by CA along with supporting documents.		
4	Certificate of Incorporation/Registration of company		
5	Valid ISO 9001:2015, ISO 27001, TL 9000 Certificate or latest certification.		
6	Undertaking that Bidder/Responding Firm/ Company shall not form any Consortium / subcontract the tender and the services to be delivered in this tender/contract		
7	Affidavit for Price Fall Clause.		
8	Affidavit for not having been blacklisted. (Both by the Bidder and Manufacturer).		
9	Valid registration with TRAI as a telemarketer or should be a telemarketer as per procedure established by TRAI..		
10	Documentary proof that the bidder should have tie up with minimum of 2 operators (Telecom service provider).		
11	Documentary proof that the bidder has successfully provided/providing SMS gateway services for at least 2 central/state govt departments/ Financial Institutions and should have handled at least 12 (twelve) crores Real Time SMS alerts per annum (in total).		
12	Documentation that bidder is recognized WhatsApp Business Solution providers (BSPs) accredited		

	directly by Meta or authorized business partner of Meta.		
13	Documentary proof that professional and reputed WhatsApp Chatbot provider and What-App messaging service provider and have minimum of one year (01) experience in delivering WhatsApp Chatbot and messaging		
14	Documentary proof that WhatsApp Business API/Chatbot services for at least 2 central/state govt departments/ Financial Institutions.		
15	Valid registration with TRAI or should be a telemarketer as per procedure established by TRAI		
16	Documentation that bidder have minimum of three (03) years of experience in providing the IVRS service.		
17	Documentation that bidder has minimum of five (05) years of experience in providing the Bulk Mailer Service		
18	Documentation that bidder has successfully provided/providing bulk mailer services for at least 2 Private / State/Central Government / Financial Institutions in India.		

End of Section: II

SECTION III: SCHEDULE OF REQUIREMENTS

Section III: Schedule of Requirements

3.1 LIST OF GOODS for Two Years Rate Contract

Item No	Name as per specification	Qty.	Consignee location	BID Security (Rs.)	Bidder Turnover i.e. at least 1/3 times the total tender value in any one of the past three financial years. (Rs.)
1.	Tender for the Selection of Service Provider/ Aggregator for SMS Gateway, WhatsApp Messaging services, IVRS and e-mail services for State TB Cell Haryana under the National TB Elimination Programme	1	Anywhere in Haryana	2,00,000/-	Rs. 119 lakhs

End of Section: III

SECTION: IV

SECTION IV

Technical Specifications, Scope of Work, & Roles and Responsibilities

4.1 Preamble

HMSCL aims to provide the SMS gateway, WhatsApp Chatbot Messaging Services, IVRS, and e-mail services to State TB Cell Haryana under the National TB Elimination Programme at a low cost and effective manner. The proposed SMS and WhatsApp Chatbot Messaging platform will allow user department to send messages from their application to the citizens. HMSCL aims to procure WhatsApp business API services implement WhatsApp Communication Management solutions from eligible service providers and provide associated services by assisting in bridging the gap between the Citizen and Government, SMS gateway, WhatsApp Chatbot Messaging Services, IVRS, and e-mail services at the same time guaranteeing complete security of data. APIs for bulk SMS gateway, WhatsApp Chatbot Messaging Services, IVRS, and e-mail services should be efficient and flexible. WhatsApp Chatbot Messaging Services, IVRS, and email services ensure speed and reliability.

4.2 Scope of Work:

State TB Cell requires the following:

1. IVRS calls to TB patients/Family caregivers/ Relatives etc
2. WhatsApp messages/ Chabot regarding IEC/ informing latest guidelines or schemes to the general public, family caregivers, government officials, treatment supporters, TB champions
3. SMS gateway for dissemination of NTEP messages to general public.
4. Bulk Email services

IVRS (Interactive Voice Respond System):

1. State TB Cell Haryana has a patient load/target of 96000 for the year 2024
2. Approximately 40,000 patients are always on treatment and taking Anti TB Drugs.
3. The TB treatment period is 6 months to 12 months. However, the patients tend to stop the treatment when he/she starts to feel better.
4. Each TB Patient infects 10-15 persons in a year if not treated or stops treatment altogether.
5. It is proposed to make IVRS (Interactive Voice Respond System) calls be made to these 40000 patients daily as reminders to take Anti TB Drugs to ensure 100% adherence.

The IVRS call template can/shall be changed as per actual requirements. As an illustration, if the patient is asked to press 1 in response to an IVRS call, it shall be presumed that the patient has taken anti-tuberculosis medicine that day but if presses 2 as a response that he has not taken medicine then an IVRS reminder call be made to his/her/her Family caregiver and Treatment supporter for ensuring his/her/her intake of ATT (Anti TB Drugs).

IEC (Information Education and Communication is required for:

1. General population
2. Contact with TB Patients
3. Health providers
4. Panchayati Raj
5. Education Deptt
6. Students
7. Religious leaders
8. TB Champions
9. Influencers/Prominent persons
10. Different stakeholders

Message content: -

1. Signs and symptoms of TB
2. How’s TB Spread
3. Stigma associated with TB
4. Myths about TB Disease
5. DBT to treat TB patients
6. Free TB treatment facilities at the Grassroots level
7. Advocacy for Pradhan Mantri TB Mukt Bharat Abhiyaan
8. Community engagement for programme Ownership
9. Various new initiatives – TPT, TB Mukt Panchayat, etc

4.3 Scope for SMS Gateway Service

1. Establishment of SMS facilities (Push, Pull) capable of delivering SMS to the citizens subscribed to all the Telecom service providers of the state of Haryana.
2. The Solution will support the sending of bulk SMS for both G2G and G2C numbers. The messages will be sent in Government-to-Government (G-2-G) & Government to Citizen (G-2- C) mode.
3. The sender IDs to be used could be of both types: TRAI Exempted and TRAI Non-Exempted.
4. The bidder should support the configuration of the sender's name of the message as per the TRAI guidelines. e.g., HRGOVT. Different Sender's names may be required for different messages from different departments.
5. The API should have the provision to specify the user account details so that the separation of the traffic can be recorded. This API connectivity should come with a Username and password so that it can be integrated with multiple applications within the National TB Elimination Programme.
6. The solution should support redundancy of at least 2 service providers. Bidder should have more than one service provider to send messages to consumers to avoid failures.
7. The application must allow the scheduling of messages. There must be configuration options to allow automatic scheduling of messages. The system should support scheduling to be sent at a chosen date and time using an SMS scheduler.
8. The bidder should not have any constraints concerning limitations on the Maximum Number of SMSs that can be pushed from the application and on the mode of pushing SMS. Any other limitations of the vendor if applicable to be specified.
9. The solution should support the Retry Mechanism i.e.; the bidder is responsible for the retry mechanism even though the operators have their retry mechanism.
10. The solution should support Individual Messaging, Group Messaging and broadcast of messages, upload & individual customization of Bulk SMS.

11. The solution should support HTTP / HTTPS / FTP / SMPP Interface / Back up for Push messaging /Blacklisting / Purging of Lists of Invalid Numbers / DND Numbers.
12. The District / Subdivision database of subscribers of all the Telecom Service Providers /operators (TSP) of the State of Haryana needs to be maintained & updated by the bidder at frequent intervals based on the input feed.
13. At any point in time the accuracy level of the database should not decrease beyond 60%. The database should be either available to the service provider readily or the service provider should be capable of building the database within 30 days of submission of the bid. Database segregation is also required.
14. The bidder shall share 2-5% of the selected random database (unmasked) with HMSCL.HMSCL Haryana should have the right to verify the accuracy of the database. The overall accuracy of the database will be deduced from the 2-5% database only.
15. OTP message should be supported by high-speed delivery channels in the back-end at the bidder's end.
16. The price bid should indicate only per SMS delivered cost. No other cost such as application building cost should be indicated separately.
17. The delivery report of the messages (post) should be available in the application on real real-time basis. For a Single campaign of more than 2 Crore SMS the delivery report may be updated within 48 hours of the activity. In case of failure to update the delivery report as mentioned above, back-to-back billing from the telecom service provider will be required to support the delivery of messages.
18. Monthly MIS containing details of the number of SMS sent, number of distinct SMS actually delivered to end users, number of failures/errors, error codes & their descriptions, type of application (G-2-G, G2-C), user id-based details should be available on the web-based application on a real-time basis.
19. The prospective bidder is to have a dedicated help desk to support the State TB cell Haryana in configuring and white-listing SMS content on the SMS gateway as per the TRAI guidelines.

20. The bidder must have a proper Ticketing platform/Incident management platform to track the issues/errors by raising tickets and maintaining the logs for tracking and monitoring and for future auditing purposes.
21. Necessary Operational/Technical support required to make the project operational and productive.

4.4 SMS Monitoring cum Command Tool

1. The mechanism of delivery of the SMS will be through the web-based user interface. The web-based front end should have user-id-based message creation & approval rights, once approved the messages need to be broadcasted as per the selected region, group, and Tuberculosis affected patient or their contacts (to be provided by State TB Cell) district as well as a specific group of Govt officials.
2. There should be a clear bifurcation on the website for G-2-G & G-2-C services on the website. In G2-G services, messages will be sent to groups with defined mobile numbers, whereas in G-2-C mode the messages will be sent to the citizens (district-wise). The website should also have the option for selection of the desired area (district-wise). The option of multi-level selection should also be present.
3. The system should allow to creation number of user accounts. These user accounts would be used to send message requests from various entities at the user application end.
4. User IDs for the web-based user interface will be created with the rights to only view/modify the mobile numbers in the SMS application, which should be provided by the Aggregator/Service provider for State TB Cell, Haryana being on-boarded into the SMS gateway.
5. Any user logging in to the application will be able to view/modify only their district officials' mobile numbers. E.g., if the ID has been created for Ambala District, the user will be able to view/modify the mobile numbers of Ambala District only.

6. Apart from the district-level ids, a few ids will be kept at State Level rights, i.e., users accessing the application with State level rights will be able to view/modify any data on the application.
7. The application must be able to support multiple upload formats like CSV, Excel, XML, and via a Web UI.

For the failed/non-delivered messages, the delivery report should contain the reason for the same

8. Bidder shall depute the following resource at State TB cell Haryana for the entire period as and when required as defined below at no extra cost:

S. No.	Resource	No. of Resources
1.	Project Coordinator	1

4.5 Scope for WhatsApp services

The selected bidder(s) should have a direct agreement with WhatsApp / Facebook and there should not be any dependency on a third party. The selected bidder(s) shall provide the following activities:

1) **WhatsApp Business API**.
2) **WhatsApp Communication Management solution (Chatbot Solution) –** Design, Development, Testing, Integration, and its deployment
3) **Technical Support**

4.6 WhatsApp Business API

1. Set up verified WhatsApp Business accounts for State TB Cell, Haryana.
2. The selected bidder shall ensure WhatsApp Business Account(s) Creation, Verification, and timely approval from the purchaser.
3. Onboarding WhatsApp Business Accounts and management services i.e., Account verification and template approval from Meta.
4. The bidder(s) shall provide a console and an API to send WhatsApp notifications/ messages to registered/ non- registered users of web applications

developed by government departments. And implement the integration as per bidder specifications received from State TB Cell, Haryana.

5. Providing a console to respond to messages received monitor the traffic on WhatsApp service and send messages in bulk as well.

6. The selected Bidder(s) should help State TB Cell, Haryana in implementing an opt-in campaign for obtaining consumers' consent for sending messages to their WhatsApp accounts. Bidder(s) must also help State TB Cell, Haryana in implementing an opt-in campaign through various communication mechanisms like missed calls, SMS, email, QR code, etc. The bidder(s) should also help State TB Cell, Haryana in the creation of campaign content or template as per WhatsApp/Meta policy.

7. Implement an automated process of sending documents such as Bills, Certificate, User Manual, due date reminders, payment receipts, notices, other documents, etc. to citizens' WhatsApp accounts by integrating with various software systems of State TB Cell, Haryana and various Applications from Dept of Health, Haryana.

8. Implement sending WhatsApp messages in English or Regional language (Hindi/Haryanvi) or a combination of both. The messaging framework must be capable of sending messages in various multimedia formats like images, pdf, videos, emojis, etc. as allowed by WhatsApp/Meta and the file size limit should not be less than that of the permissible limit by WhatsApp/Meta.

9. WhatsApp Service integration: Service/ API on-boarding/ integration on WhatsApp Communication Management Solution for government applications.

10. The selected bidder(s) shall provide a web interface to State TB Cell, Haryana, and other Govt departments of Haryana for sending WhatsApp notifications/messages to citizens.

11. Provide a web interface to view/download summary and detailed MIS report of sent/received WhatsApp messages.

12. The MIS dashboard should have provision to generate reports on API integration-wise (i.e., application-wise) WhatsApp messages.

4.7 WhatsApp Communication Solution

1. The selected bidder(s) shall Design, Develop, and Implement a state-of-the-art WhatsApp Communication Management solution which shall act as a middleware to integrate WhatsApp business APIs provided by the selected bidder(s) with other third-party applications of the Government of Haryana. This middleware solution shall be having following components:

i. **WhatsApp Conversation Manager (Chatbot)**

ii. **WhatsApp Push Message Campaign Manager** – A web interface to employees of State TB Cell, Haryana, and other Departments of Health Haryana for sending WhatsApp notifications/ messages to citizens/ users

4.8 WhatsApp Conversation Manager (Chabot)

1. WhatsApp Conversation manager shall be capable of auto-answering citizens/users with their queries related to General Information, Viewing or tracking application status, National TB Elimination Programme benefits, Bills, Complaint registration, Knowing eligibility for any scheme, etc.

2. The WhatsApp Conversation manager should offer a GUI interface as per the requirement along with the required set of functions.

3. The Chat Bot developed may be hosted on any other platform also like any specific mobile App, Web application, Instagram, Telegram, etc.

4. WhatsApp Conversation Manager shall offer an interactive dialog interface for engaging citizens/users in a chat session. To start a conversation, WhatsApp Conversation Manager shall send an interactive list of options related to different operational areas of the application utility like welcome message, how to get started etc. WhatsApp Conversation manager response shall be based on organizational knowledge base or information retrieved from various Health Department Haryana applications etc.

5. The WhatsApp Conversation manager will automatically analyze the User Request, extract relevant activities, and respond to the user. The response can be predefined text, a text retrieved from a knowledge base that contain different answers, a contextualized piece of information based on data the user has provided, data stored in enterprise systems, the result of an action that the chatbot performed by interacting with one or more backend applications, a disambiguating question that helps the WhatsApp Conversation Manager to correctly understand the user's request.

6. The selected bidder(s) shall help State TB Cell, Haryana in creating a comprehensive knowledge base of frequently asked questions on WhatsApp Conversation manager platform.

7. WhatsApp Conversation Manager shall be integrated with services/ facilities/ applications of Health Department Haryana.

8. WhatsApp Conversation manager shall be flexible to incorporate new services/ features.

9. The Bidder(s) shall handover all the documents along with source code (WhatsApp Conversation Manager) specific to the project requirements of State TB Cell, Haryana after completion of development period. The source code should be re-deployable and work bug-free in the original development environment at State TB Cell, Haryana; the bidder also needs to submit all the relevant source libraries, or any dependencies related to this project apart from any third party product license which was not included in the scope.

10. Selected bidder(s) shall develop/enhance WhatsApp chatbot campaigns for various projects, web portal, mobile app or other web applications of Health Department Haryana as and when directed to do so, without any additional cost to purchaser.

11. The bidder(s) shall provide proper Knowledge Transfer regarding development of WhatsApp Conversation manager application to State TB Cell, Haryana IT Team.

12. Any license cost required incurred to develop WhatsApp Conversation manager application shall be borne by the selected bidder itself.

13. The WhatsApp Conversation manager developed by the bidder should also continue to work even after the end of contract period with or without the requirement of taking technical support from bidder.

14. The WhatsApp Conversation manager should be scalable to handle 10,000 concurrent conversation requests at a time.

15. The following features are required to be included in the WhatsApp Chatbot, however this is indicative in nature and actual Bot will be as per the requirement and flow of the use case:

i. Conversational Menu Driven Bot
ii. Multilingual Feature (Indian Regional language support)
iii. Reports & Analytics
iv. Proposed Functionality in the bot.
v. Support Documents (PDF/Image)
vi. Knowledge base

16. The Chatbot will help citizens/ users with their queries related to viewing or tracking application status, Payment receipts, Complaint registration, Knowing eligibility for any scheme etc.

17. Chatbot must use Machine learning (ML) and Natural Language Processing (NLP) algorithms to train itself with variety of questions asked by consumers.

4.9 WhatsApp Conversation Manager features

SI. No	Feature	Detailed Functionality
1	User Management	The WhatsApp Conversation manager to offer access to multiple users at State TB Cell, Haryana via offering separate credential for every user
2	Conversation	This feature should help defining conversation flow hence it should directly map to different conversations a user can do on chat.
3	Properties	Properties are like custom fields. Properties to store all the data associated with any user. The WhatsApp Conversation manager should support properties of type: Text, Number, Decimal, Date/ Time, Phone Number, Email, Location, Complex Objects.
4	Branching	The WhatsApp Conversation manager should be able to personalize the conversation flow with different branches for different users. Branching to take decision based on user input. User can branch a conversation to make conversations personalized as per requirement.
5	Delay/ Typing	This feature should allow to put delay in between message and also send typing indicator
6	Starting Rules	Starting Rule should help us in defining rules for conversation matching. We can define Exact Match, Partially Match, Regex & AI based rules
7	Set Properties	This should allow us to set property values and should support complex mathematical operations and data expressions
8	Rest API	This should allow to make Rest API calls

9	Application Integration	The WhatsApp Conversation manager should offer real-time integration with our different web applications
10	Templates	This allows to reuse of messages and conversations
11	Sync Application	The Chatbot builder should offer real-time integration with our different web application
12	Project continuity	The WhatsApp Conversation manager developed should continue to work after the contract period is over, without any compulsion to take any kind of technical support from the selected bidder.

4.10 Technical Support of WhatsApp Communication Management Solution

The Selected Bidder(s) shall provide Technical Support for the developed WhatsApp Communication Management solution for a period of 2 years after Go-Live. The Selected Bidder(s) shall be responsible for the overall administration, day-to-day operations, monitoring, maintenance, MIS generation, backup, recovery, etc. of the deployed Application & the related Database and ensure the desired uptime. The Technical Support for the WhatsApp Communication Management solution includes:

a) Support, maintenance, and enhancement of developed WhatsApp Communication Management solution.

b) Support for onboarding to WhatsApp business API services

c) Development/enhancements of new/existing WhatsApp Conversation Campaigns (Chatbots)

d) Modification in Front-end Application & User Interface as per the requirement

e) Updating Database related queries

f) Rectification Defect/ Bug Fixing reported by State TB Cell, Haryana, and its designated users.

g) The bidder must have a proper Ticketing platform/Incident management platform to track the issues/errors by raising tickets and maintaining the logs for tracking and monitoring and for future auditing purposes.

h) Integration of proposed WhatsApp Communication Management solution with other Health Department Haryana applications (as required)

i) Business Intelligence Analytics & MIS Reports as per formats defined by procuring entity.

Bidder(s) shall depute the following resources at State TB Cell, Haryana for the entire period as and when required as defined below:

S. No.	Resource	No. of Resources
1.	Senior Application Developer	1
2.	Software Developer	1

4.10 Scope for IVRS (Interactive Voice Response System) and OBD (Outbound Dialer) services

HMSCL proposes to provide IVRS and OBD Call Services for notifying citizens about various government schemes and services.

4.11 Front-end outbound dialer platform

1. The bidder must provide OBD Call services for notifying citizens about various government schemes/ services.
2. The system should make OBD Calls to citizens based on pre-recorded voice messages.
3. The system should be capable of sending calls to any network across the nation including numbers under DND.
4. The system should allow to scheduling of the OBD calls as per the requirement.
5. The bidder should provide a web-based interface State TB Cell, Haryana for OBD Calls and Reports.
   Alternatively, State TB Cell, Haryana for every such activity/ campaign, shall hand over to the selected bidder the Voice File/ Text Message along with the list of mobile numbers in MS Excel format.
6. For delivery of Bulk voice messages needs to be developed by the selected bidder,
   I. Develop a web-based front-end Interface for HMSCL for delivery / disseminating voice messages to the, (i) citizens of the state, (ii) Government officials of the state.
   II. Back-end infrastructure for delivery messages shall be owned by the selected bidder(s).
   III. Provide a back-end system and database for the delivery of Bulk OBD calls.

4.12 A database of Mobile numbers for citizens of the state shall be provided by the selected bidder(s).

1. A database of Mobile Numbers for government officials shall be provided by HMSCL/Concerned departments.

2. The selected bidder shall record an audio clip/voice message based on the written script provided by HMSCL/State TB Cell Haryana.
3. Ability to view and download district-wise / Subdivision-wise data of the State of Haryana.

4.13 Sending OBD calls through front end platform.

The authorized user through login may initiate delivery of Bulk voice messages through the Front End Outbound dialer platform.

4.14 Response collection system through IVRS:

1. Web-based interface for response collection from citizens through an Interactive voice response system.
2. The IVRS platform shall be linked to State TB Cell Haryana depending upon the type of information to be collected.
3. Hierarchy level and response options are subject to changes regularly Integration with HMSCL/State TB Cell Haryana back-end systems.

4.15 Integration with HMSCL/State TB Cell backend systems

1. Integration with the HMSCL/State TB Cell Haryana back-end system may be required to access data/store data for interactive voice response systems or other reasons.
2. The selected bidder(s) shall have to do such integrations with no financial charge.
3. Integration with the back-end system of the selected bidder and front-end developed by either the selected bidder or HMSCL.

4.16 End-to-End Bulk Mailer Service

1. The primary objective, is to Implement an End-to-End Bulk Mailer service, dedicated to the Government of Haryana, having specific features as described herein.
2. The Bulk Mailer Solution should have the capability of sending digitally signed bulk mail. The digital signature should be sender specific & as such there should be a provision to upload digital signatures. The application should be configurable to NIC, tn.gov.in & other mails.

3. There should be an authentication method for accessing the solution with different privileges. Admin users should be able to create users with defined privileges as per the Government hierarchy and needs. Users will require authentication to access the application & push the bulk mail.
4. The private key & public key concept of digital signature should be maintained as per the standard.
5. Further, the bidder should have a pool of IP addresses to route the mails, so that the mails from the particular sender ID should not be blocked. The mailer solution should have the capability of pulling specific data with respect to the recipient of the mail from Excel and other formats.
6. The mailer solution should have the capability to send/receive mail in the regional language (Hindi/Haryanvi).
7. MIS report related to the delivery, and reading of the mails should be made available in various formats, such as Excel, CSV (Comma-separated values/variables), and pdf (portable document format). Further, the MIS should also capture the details of the device in which the mail has been read.
8. Delivery of mail in the inbox should be mandatory criteria & at no point of time, the spam delivery of the mail should exceed 10% of the mail pushed in which case a penalty shall be levied.
9. The Bidder must have its own Email gateway for both transactional and promotional email capability. The Bidder should provide both API and SMTP connection to all major development platforms and panels for bulk push email with reach analytics.

Responsibilities of the bidder

4.17 SMS Gateway

1. The price bid should indicate only per SMS delivered cost. No other cost such as application building cost should be indicated separately.

2. It will be the responsibility of the successful bidder to obtain necessary approvals for providing the required facility from TRAI or other statutory / Regulatory bodies, if any.
3. Sender Ids for PUSH SMS shall also be created by the bidder as per the requirements raised time by time.
4. The bidder shall ensure that SMS whose content exceeds 160 characters, should be delivered as a single message on the receiver's handset.
5. The solution should support redundancy of at least 2 service providers. Bidder should have more than one service provider to send messages to consumers to avoid failures.
6. If the SMS is not delivered due to any technical fault/ failure on the part of the bidder, No payments will be made to the bidder for such. The delivery report should be updated in the application on real real-time basis. In case of failure to update the delivery report directly in the application, bills related to such delivery should be supported by back-to-back billing of the telecom operator.
7. DND compliance will be the sole responsibility of the bidder.
8. SMS should reach the recipient in the format as sent by the sender.
9. On each call, the API should return a unique acknowledgment/transaction reference number back to the application.
10. The service provider/aggregator should have Bulk SMS inbuilt functionalities such as

    a) Multiple Interface Support

    b) Bulk Push requirement: Bulk SMS sending should be provided through Graphical User Interface (GUI) and API (Application Program Interface)
11. Promotional and Transactional Message segregation must be done with distinctive SMS headers in compliance with TCCCP Regulations.

12. It is the responsibility of the bidder to change/ upgrade/ customize its infrastructure/solution at all levels to ensure compliance with statutory regulatory guidelines from TRAI etc. without any extra cost to HMSCL.
13. Bidder shall maintain the entire metadata with regards to SMSs sent for at least 01 Year. Such as Mobile Number, Complete message Text, Message category, Bearer, Operator, Circle, Sender name/ID, Date/ Time of SMS Received at the gateway, Date /Time of SMS sent to the operator, Date/ Time of SMS delivered to the end subscriber, Final Status of the SMS, Status Description
14. Bidder should retrieve & provide the required data within 24 hours of receiving the request in this regard from HMSCL.
15. Generation of various required reports and search facilities on sent SMS should be made available.

4.18 WhatsApp Messaging Services

1. The price bid should indicate only per message delivered cost. No other cost such as application building cost should be indicated separately.
2. The selected bidder shall help HMSCL in creating a comprehensive knowledge base of frequently asked questions on the WhatsApp Chatbot platform.
3. Development/Customization of the Chatbot solution should be started after getting confirmation from HMSCL.
4. The selected bidder shall develop/enhance WhatsApp Chatbot campaigns for various projects, web portals, mobile apps, or other web applications of the Government of Haryana as and when directed to do so, without any additional cost to the purchaser.
5. The bidder shall provide proper Knowledge Transfer regarding the development of the WhatsApp Chatbot to the State TB Cell, Haryana Team.
6. Any license cost required incurred to develop the WhatsApp Chatbot application shall be borne by the Selected bidder itself.
7. The WhatsApp Chatbot developed by the bidder should also continue to work even after the end of the contract period with or without the requirement of obtaining technical support from the bidder.

8. The WhatsApp chatbot should be scalable to handle 10,000 concurrent conversation requests at a time.
9. Bidder shall hand all the documents along with the source code (WhatsApp Chatbot) specific to the project requirements to State TB Cell, Haryana after completion of the development period. The source code should be re-deployable and work bug-free in the original development environment at State TB Cell, Haryana; the bidder also needs to submit all the relevant source libraries or any dependencies related to the HMSCL/State TB Cell project apart from any third-party product license that was not included in the scope.
10. Bidder should comply with all the guidelines related to the Geo-graphical location of data, encryption, decryption, interception, confidentiality of data, and keywords issued by MEITY/ Government of Haryana, GoI, and other regulatory authorities from time to time through their website/media/notification in public at no additional cost to the purchaser.
11. The indicated quantities in the indicative financial bid format are subjected to estimation error and may increase in the future, so payment may be made on a proportionate basis on quoted prices.
12. Ability to add/delete/update user/agent accounts.
13. Ability for admin to monitor Chatbot conversation with citizens/ users.
14. Provision of Updating and cleaning of the database.
15. Ability to encrypt WhatsApp messages exchanged between HMSCL and recipients.
16. Bidder should not disclose any information in WhatsApp messages or data generated through the solution with any third party
17. **Authenticate and authorize process**: provide service-consuming access to consumer applications/ departments by authorizing their user id for consumption of WhatsApp services. WhatsApp Communication Management Solution shall provide service subscription or access to consumer departments by publishing it on an authorized SSO ID.

18. **Modification Requests**: Changes and modifications in existing services as per the requirements from the departments.
19. **Discontinuation process**: Discontinuation or deactivation of any service as per the requirement from the departments.

4.19 Reporting and Dashboard

1. Ability to view and download outgoing traffic reports containing messages sent with the delivery status, read status, and day-wise traffic trend. And the Ability to view and download incoming traffic reports containing all conversation messages received or sent to the citizens/ users.
2. Ability to view and download Periodic (Daily/weekly/monthly) count of messages (Both sent or received) based on Demographic data for the State of Haryana.
3. Ability to view and download report to search conversation with mobile number and fetch the log to analyze content for troubleshooting and measuring efficiency of the solution.
4. All the reports related to SLA Monitoring should be available and can also be exported in .xls file. Ability to export report data in formats such as .csv, .xls, .pdf etc.
5. Facility to view the WhatsApp message count for a particular period. Facility to download the delivery status (Delivered/Read/Failed status) of the WhatsApp message (Both sent and received) with mobile number with error code if any.
6. Responsiveness – Dashboard should have responsive design and should be able to automatically resize, hide, shrink, or enlarge, a website, to make it look good on all devices (desktops, tablets, and phones)
7. Real-time Dashboard for WhatsApp messages on delivery status, month wise, date wise, campaign wise etc.

4.20 End-to-End Bulk Mailer Service

1. The application will require a third-party security audit from agencies like STQC, so the necessary norms should be followed. The cost of the audit will be borne by the department, but it will be the responsibility of the vendor to get the

application audited, by following the norms & implementing necessary changes if any by the auditor.

4.21 Technical Support

a) Bidder shall provide a test plan, test methodology, and test cases, carry out testing on separate test and development environments, and submit test reports along with analysis and corrective measures for comprehensive and sufficient testing of functional, system, and integration aspects of the application(s) in initial and subsequent stages of development and deployment.

b) The Selected Bidder(s) shall be responsible for the overall administration, day-to-day operations, monitoring, maintenance, MIS generation, backup, recovery, etc. of the deployed Application & the related Database and ensure the desired uptime.

c) The bidder(s) must provide the required support to State TB Cell, Haryana, and its system integrator for integration of Chat bot solution/WhatsApp API with the application, SMS integration, and OBD service-related activities.

d) The bidder(s) must engage required support staff in an off-site mode in a 24 x 7 basis to address all the issues/ problems/ monitoring of the services and provide support.

e) The support person/ team shall remain readily available to the State TB Cell, Haryana support team on phone/ email and shall be readily available in person to the premises when required. However, if required, State TB Cell, Haryana/Govt. may ask the bidder's support person/ team to be available on holidays/ beyond office hours. The bidder shall be required to immediately provide a replacement support person; in case the deputed person is on leave due to any reasons.

f) Development/enhancements of new/existing WhatsApp Conversation Campaigns Chatbots)

g) Modification in Front-end Application & User Interface as per the requirement

h) Updating Database queries

i) Rectification of Defect/ Bug Fixing reported by State TB Cell, Haryana, and its designated users.

j) The bidder(s) should provide the contact details of the support team along with the escalation matrix within 7 days from the date of issuance of the engagement letter (LoA).

4.22 Change Request

Any requirement beyond the scope mentioned in the RFP will be treated as a Change Request and the process to address the change request is as follows:

a) Identification and documentation of change request requirement– The details of the scope of change will be analyzed and documented.

b) Effort Estimate – State TB Cell, Haryana will ask the successful bidder to submit the effort estimate in terms of man-hour rate.

c) Approval or disapproval of the change request – The Technical Committee constituted by State TB Cell, Haryana will approve or disapprove the change requested including the additional payments, after analysis and discussion with the bidder on the impact of the change on schedule.

e) Implementation of CR – The change will be implemented in accordance to the agreed cost, effort, and schedule. The vendor shall consolidate all approved CRs and raise invoice to State TB Cell, Haryana accordingly.

k) The costing of CR shall be finalized as per cost mentioned in financial bid format-Change Request for software development effort. The bidder should quote of rate against 100man hours; however, payment shall be made as per actual man hour consumed.

4.23 Non-Disclosure of Mobile numbers

The SP must agree to not use, share, and disclose any contact numbers of any user which has been provided by State TB Cell, Haryana, to any third party. The SP may be asked to sign a "Non-disclosure agreement". The SP also hereby agrees to not use any contact number for any kind of monetization or commercial activities. In case the SP is found to have breached this clause, suitable action shall be taken by State TB Cell, Haryana.

4.24 Training

a) Training plan has to be prepared based on the training needs and objectives. Before deployment of the system training needs to be conducted. If any updates or refinement carried out in the system, training may be conducted. Training shall be provided on each of the services.

b) All expenses related to trainer and materials will be borne by the Bidder.

c) Training materials should be provided in soft copy. However, one set of training materials should be provided in form of hard copy for official record.

d) Bidder is also allowed to conduct training session in VC mode.

Implementation Timeline and Deliverables

4.24 SMS

Project Phase	Deliverables/ Milestone Activities	Timeline (In Days)
Event marking HMSCL, Haryana **Issue of Letter of Acceptance** to the successful bidder	Award of Contract	T0
SMS Implementation Phase	On-boarding of Existing Departments/ Services /State TB Cell, Haryana	T1 = T0 + 15
	On-boarding of new requests from the Issuance of Work Order (U)	T2 = U + 7

Note 1: Work Order (U) will be issued for On boarding each departments

4.25 WhatsApp

Project Phase	Deliverables/ Milestone Activities	Timeline (In Days)
Event marking HMSCL, Haryana **Issue of Work Order** to the successful bidder	Award of Contract	T0
Pre-Implementation Study	Detailed Project Implementation Plan	T1 = T0 +7
• Configuration and Commissioning of **WhatsApp Business API services** for State TB cell , Haryana • **WhatsApp Business Account creation** and	• API Documents • HMSCL, Haryana – WhatsApp Business account details	T2 = T1 + 14

verification of HMSCL, Haryana		
• Design, development & deployment of WhatsApp Communication Management solution • Integration with Government pf Haryana applications • Reports & Dashboards • UAT and Go-Live	• Technical documents & User manual for the solution • Integration report • Certificate for Go-live by HMSCL, Haryana	T3 = T2 + 21
• Quarterly Usage Charges	Day-wise detailed MIS Report for messages sent through WhatsApp Business API solution	MIS Report within 30 days from the completion of each quarter from the date of commissioning of the project
• Technical support of the deployed WhatsApp Communication Management solution as per the Scope of Work	• SLA compliance Report • System up-time report • Technical documents for each use case of WhatsApp Conversation manager created/enhanced during the period. • List of issues reported, their root cause and action taken on them. • Attendance Report of deployed resources	• T3 onwards for 2 years after Go-Live • Within 21 days from the completion of each quarter

Note 1: Work Order (U) will be issued for On boarding each departments of Health

4.26 IVRS

Project Phase	Deliverables/ Milestone Activities	Timeline
Letter of Acceptance	Award of Contract	T0
IVRS	OBD Platform	T1 = U + 21

Note 1: Work Order (U) will be issued for On boarding each departments

9.4 e-Mail Services

Project Phase	Deliverables/ Milestone Activities	Timelinclausee
Letter of Acceptance	Award of Contract	T0
e-Mail service	Mailer Platform	T1 = U + 21

Note 1: Work Order (U) will be issued for On boarding each departments

4.27 Review and Monitoring

The successful bidder should be accountable to State TB Cell, HARYANA for successful implementation of the scope mentioned in the tender. State TB Cell, Haryana will hold scheduled review meeting and the Successful Bidder should report the progress to HMSCL, HARYANA and adhere to the decisions made during the review meeting.

4.28 Exit Clause

At the time of expiry of contract period, as per the contract between the parties, the successful bidder should ensure a complete knowledge transfer to the new professional replacing them within a period of 4 weeks. The successful bidder at the time of exit process will supply the following.

1. All information relating to the work rendered.

2. Project data and confidential information

3. All other information including but not limited to documents, records and agreements relating to the services reasonably necessary to State TB Cell, Haryana or any other agency identified to carryout due diligence in order to transition the provision of services to State TB Cell, Haryana or any other agency identified.

4. All properties provided by State TB Cell, Haryana, shall be returned.

5. Before the date of exit, the successful bidder shall deliver to State TB Cell, Haryana all new and updated deliverable(s) and shall not retain any copy thereof.

Payment Terms

4.29 General terms and Conditions

a) No advance payment will be paid. Stage-wise payment will be released based on the milestone deliverable(s) completed and approved by State TB Cell, Haryana.

b) Any payment due to the successful bidder will be released within 30 days from the date of receipt of bills along with acceptance from State TB Cell, Haryana.

c) The TDS amount, Penalty if any, will be deducted from the payment of successful bidder.

d) The Taxes as applicable during the contract period as specified in the Tender will be paid by State TB Cell, Haryana. In case, the Taxes have been reduced retrospectively, the successful bidder shall be liable to return the same to State TB Cell, Haryana.

e) The successful bidder shall have full and exclusive liability for payment of all Taxes and other statutory payments payable under any or all the Statutes/Laws/Acts etc., now or hereafter imposed to the respective statutory authorities. State TB Cell, Haryana, Haryana will not be responsible or liable for default on payment of axes to the statutory authorities.

4.30 SMS

a) The price bid should indicate only per message delivered cost.

b) 100% of the payment towards messages shall be paid quarterly basis on submission of MIS report on month wise, Sender ID wise message sent.

c) No separate manpower cost is to be given.

4.31 WhatsApp Services

Project Phase	Deliverables/ Milestone Activities	Applicable Payment and Schedule
Pre-Implementation Study	Detailed Project Implementation Plan	NA
• Configuration and Commissioning of **WhatsApp Business API services** for State TB Cell, Haryana. • **WhatsApp Business Account creation** and verification of State TB Cell, Haryana	• API Documents • State TB Cell, Haryana – WhatsApp Business account details	NA

• Quarterly Usage Charges	• Day-wise detailed MIS Report for messages sent through WhatsApp Business API solution	Payment shall be paid based on the actual no. of WhatsApp Messages sent/ received during a quarter
• Technical support of the deployed WhatsApp Communication Management solution as per the Scope of Work	• SLA compliance Report • System up-time report • Technical documents for each use case of WhatsApp Conversation manager created/enhanced during the period. • List of issues reported, their root cause and action taken on them. • Attendance Report of deployed resources • Certificate for Go-live by HMSCL, Haryana	NA

4.32 IVRS and OBD Service

100% of the payment towards IVRS service shall be paid quarterly basis on submission of MIS report.

4.33 e-Mail Service

100% of the payment towards e-Mail service shall be paid quarterly basis on submission of MIS report.

4.34 Service Level Agreement General Terms and Conditions

a) Necessary application-level support should be mainly at the server side. However, client level support shall be required when the issues are reported by department.

b) The successful bidder shall ensure system uptime more than 99%. The uptime will be monitored on a quarterly basis.

c) The initial contract is for a period of 2 Years. The SLA will be monitored during this period. The contract may/may not be increased for 2 more years depending on budget availability.

d) The support persons shall handle the service calls and comply with the SLA. Any bugs or errors in the service shall be escalated to the support team for rectification.

e) The successful bidder will maintain logs for the entire contract period.

4.35 Operational Penalty charges

1) SMS

State TB Cell Haryana expects 100% availability of services. Penalty needs to be imposed if the aforesaid limitations cross the declared limit,

SMS Category	**Description of SMS**	**Delivery Time***	**Penalty for delay delivery**
Priority-1	Higher Priority alerts (OTP)	Within 15 Seconds	10 times of per SMS cost
Priority-2	All other SMS except Bulk SMS	Within 30seconds	10 times of per SMS cost
Priority-3	Bulk SMS	Within 5 minutes	10 times of Campaign/Batch value

Note: Delivery time is when SMS is sent at the SMS provider platform. The SMS sent by the State TB Cell, Haryana have to be delivered within the stipulated timelines.

2.) WhatsApp

State TB Cell Haryana expects 100% availability of services. Penalty needs to be imposed if the aforesaid limitations cross the declared limit.

SI.No	Measurement Parameter	Downtime in a Quarter	Penalty
1.	Number of hours the WhatsApp	>=0 but <=2 Hours	No Penalty
2.	Business API services/ WhatsApp Communication Management	>=2 but <=8 Hours	1 % of monthly payment
3.	Solution is non-functional/ non accessible/ non-available/ nonresponsive in each case of outage	>=8 but <=16 Hours	2 % of monthly payment
4.		>=16 but <=24 Hours	5 % of monthly payment
5.		>=24 but <=48 Hours	7.5 % of monthly payment
6.		>=48 Hours	10 % of monthly payment
The penalty shall be calculated above the permissible downtime hours (downtime for maintenance or other reasons as approved by HMSCL, Haryana).* **Note - The Penalty will not be applicable if WhatsApp servers will be down.**			

3.) IVRS

Penalty needs to be imposed if the aforesaid limitations cross the declared limit.

Category	Description	Delivery Time Per Call	Penalty for delay
Voice Bound Call	Receiving call on the customer telephone/ mobile from IVR.	Within 30 Sec	5 times of per voice bound call cost

4) Bulk Mailer service

Uptime	Penalty
Uptime is greater than or equal to 99.50%	No Penalty
Uptime is less than 99.50% but greater than or equal to 98.00%	2% of cost of quarterly recurring payment
Uptime is less than 98.00% but greater than or equal to 96.00%	5% of cost of quarterly recurring payment.
Uptime is less than 96.00%	Penalty at an incremental rate of 1% of cost of quarterly recurring payment for every 0.1% lower than the stipulated uptime.

End of section: IV

SECTION V: ELIGIBILITY CRITERIA

SECTION V: ELIGIBILITY CRITERIA

a) The overall objective of this evaluation process is to select the capable and qualified firm, to provide a solution for the proposed scope, and also provide training and operations & maintenance support.

b) The Minimum Eligibility Criteria will be evaluated as per the criteria mentioned below and only those bidder(s)/bidder who qualify the MEC will be eligible for technical evaluations.

5.1 Eligibility Criteria

i) Original Manufactures can apply.

ii) Authorized Distributors, Agents and Direct Importers with Authorization Letter from Original Manufacturer can apply.

5.2 MANUFACTURING AND MARKETING EXPERIENCE:

a) Bidders who are Manufacturers:

(i) The manufacturer must have a minimum of five years of manufacturing and marketing experience for a particular item to be eligible to quote.

(ii) A certificate from the Chartered Accountant along with supporting documents shall be submitted by the manufacturer that it has been manufacturing and marketing the product/products, for which the bidder has quoted the price, for the last five years at the time of submission of the offer.

(iii) The condition of minimum 5 years manufacturing & marketing experience however will not apply to equipments, which were introduced in India less than 5 years ago. The manufacturer would be required to submit a certificate from licensing authority/appropriate authority in support of their claim.

(iv) For proprietary Equipment/Implant, if a firm is the sole manufacturer for the products, it can be eligible provided it submits certificate to this effect from the licensing authority/appropriate authority.

(v) Manufactures must have manufactured and supplied a similar model quoted in each item of the Schedule of Requirements either himself or through any of

its authorized dealer to the extent of 100% of quantities mentioned in the Schedule of Requirements in the past 24 months or 50%quantities mentioned in the Schedule of Requirements in the past 12 months to Government or Private Tertiary Care Hospitals in India from the date of closure of tender date. A certificate from the Chartered Accountant along with supporting documents shall be submitted by the manufacturer in this regard.

(vi)The merger/amalgamation/transfer of business/transfer of assets etc. of a firm effect the bid condition relating to "past performance" / "Market Standing Certificate" in preceding five years. The eligibility of the bidder in this regard shall be ascertained on the basis of the agreement/BOD/resolution/CA certificate or any other document(s)/certificate(s) which shall be annexed with tender documents.

(vii) Bid will be accepted by the manufacturer for the entire quantity.

b) Bidders who are not Manufacturers: -

(i) If the bidder is not the manufacturer then the bidder should be duly authorized by the the manufacturer who meets the criteria laid down in 5.2 (a) as above.

(ii) In the Authority letter the Manufacturer has to declare

☐ That this bidder is the sole authorized bidder for this Tender

☐ That I am fully responsible for all the documents submitted by this bidder.

☐ That I am fully responsible for Supply, Installation/ Warranty & CMC.

☐ Spare Parts of the quoted model will be available for 10 Years.

☐ In case the bidder does not abide by the rules and regulations of agreement then i am fully responsible.

(iii) The bidder shall submit an authority letter along with an affidavit in the format as prescribed by the HMSCL from the manufacturer.

(iv) The bidder shall provide a certificate from the Chartered Accountant along with supporting documents that it has supplied a similar model quoted in each item of the Schedule of Requirements to the extent of 100% quantities

mentioned in the Schedule of Requirements in the past 24 months or 50%quantities mentioned in the Schedule of Requirements in the past 12 months to Government or Private Tertiary Care Hospitals in India from the date of closure of tender date.

(v) The merger/amalgamation/transfer of business/transfer of assets etc. of a firm affect the bid condition relating to "past performance" / "Market Standing Certificate" in preceding five years. The eligibility of bidder in this regard shall be ascertained on the basis of the agreement/BOD/resolution/CA certificate or any other document(s)/certificate(s) which shall be annexed with tender documents.

(vi) Bid will be accepted by the manufacturer for entire quantity.

iv. Debarment from bidding: -

A. The bidder shall be debarred from participating if he has been convicted of an offence-

(a) under the Prevention of Corruption Act, 1988; or

(b) the Indian Penal Code or any other law for the time being in force, for causing any loss of life or property or causing a threat to public health as part of execution of a public procurement contract.

B. The bidder shall be debarred from participating if debarred/blacklisted by Government of Haryana or by any other state and Corporation.

C. The bidder debarred under sub-section (iv) or any successor of the bidder shall not be eligible to participate in a procurement process for a period not exceeding three years commencing from the date of debarment.

D. The procuring entity may debar a bidder or any of its successors, from participating in any procurement process undertaken by it, for a period not exceeding two years, if it determines that the bidder has breached the code of integrity. The Ministry/Department will maintain such list which will also be displayed on their website.

E. The bidder shall not be debarred unless such bidder has been given a reasonable opportunity to represent against such debarment.

F. Bid will be accepted for entire quantity.

c) Turnover statement:

☐ Turnover of the Bidder should be at least 1/3 times the tender value in any one of the past three financial years.

☐ Documents required: Audited financial statements for last three years in respect of annual turnover. Group turnover will not be considered for determining the eligibility and CA certified copy of the sale tax return.

The technical score of all the bidder(s) would be calculated as per the criteria mentioned in clause 5.3. All the bidders who achieve more than 70 marks in the technical evaluation would be eligible for the next stage, i.e., Financial Bid opening

5.3 Eligibility Criteria

Minimum Eligibility Criteria (MEC)

a) The Bidder(s) should have the following MEC for participating in the Tender. The Bidders should enclose documentary evidence for fulfilling the MEC. **If a Bidder fails to enclose the documentary proof of their area of bid of interest for MEC, their bid will be summarily rejected.**

c	Basic Requirement	MEC	Attachments
5.3.1	Legal Entity	The bidder should be a company registered/ incorporated under Indian company Act and must have 5 years of existence in India as on date of submission of bids.	Valid copy of the Certificate of Incorporation/Registration

5.3.2	Sales Turn Over	The company must be profit making and average annual turnover of at least Rs. 1.19 Crores in any last three financial years (2021-2022, 2022-2023, 2023-2024).	Audited and Certified Balance Sheet's & Profit/Loss Account for last 3 Financial Years or certificate from a Chartered Accountant duly certifying the annual turnover during the last 3 financial years (2021-2022, 2022-2023, 2023-2024).
5.3.3	Certification	The Bidder should have a valid ISO 9001:2015, ISO 27001, TL 9000 or latest certification.	Valid copy of the Certificates
5.3.4	Non-blacklisting	Bidder/Responding Firm/ Company shall not be under a declaration of ineligibility for corrupt or fraudulent practices and must not be blacklisted by any State Govt./ Central Govt., for any reason, at the time of bid submission.	Undertaking and Self-declaration from the authorized signatory of the bidder.
5.3.5	Consortium	Bidder/Responding Firm/ Company shall not form any Consortium / subcontract the tender and the services to be delivered in this tender/contract	Undertaking and Self-declaration from the authorized signatory of the bidder

5.3.6	Technical Capability - SMS	1. The bidder should have a valid registration with TRAI as a telemarketer or should be a telemarketer as per procedure established by TRAI.	1. Valid Documents supporting their eligibility criteria like certificate of Commencement of Business, Telemarketer certificate.
		2. The Bidder should have minimum of five (05) years of experience in providing SMS services .	2. Work Order / Contract along with Performance Certificate by the client duly mentioning the total number of transactions handled in past 5Years.
		3. The bidder should have tie up with minimum of 2 operators (Telecom service provider)	3. Justified documentary proof must be submitted
		4. The bidder should have successfully provided/providing SMS gateway services for atleast 2 central/state govt departments/ Financial Institutions and should have handled at least 12 (twelve) crores Real Time SMS alerts per annum (in total).	4. Justified documentary proof must be submitted

	Technical Capability - WhatsApp	1. The bidder should be recognized WhatsApp Business Solution providers (BSPs) accredited directly by Meta or authorized business partner of Meta.	1. Justified documentary proof must be submitted
		2. The Agency must be a professional and reputed WhatsApp Chatbot provider and What-App messaging service provider and have minimum of one year (01) experience in delivering WhatsApp Chatbot and messaging services	2. Work Order + undertaking in letterhead of bidder or Project completion / Go-live certificate or certificate from the client or any other relevant document

	Technical Capability - IVRS	3. The bidder should have successfully provided/ providing WhatsApp Business API/Chatbot services for at least 2 central/state govt departments/ Financial Institutions.	3. Justified documentary proof must be submitted

		1. The bidder should have a valid registration with TRAI or should be a telemarketer as per procedure established by TRAI	1. Valid Documents supporting their eligibility criteria like certificate of Commencement of Business, Telemarketer certificate.
	Technical Capability – e-Mail service	2. The Bidder should have minimum of three (03) years of experience in providing the IVRS service.	2. Work Order / Contract along with Performance Certificate by the client duly mentioning the total number of transactions handled in past 3 Years.
		1. The Bidder should have minimum of five (05) years of experience in providing the Bulk Mailer Service.	1. Work Order / Contract along with Performance Certificate by the client duly mentioning the total number of transactions handled in past 5 Years.
		2. Bidder should have successfully provided/providing bulk mailer services for at least 2 Private / State/Central Government/Financial Institutions in India.	2. Work Order / Contract along with Performance Certificate by the client duly mentioning the total number of transactions handled in past 2 Years.

(*Bidders are requested to submit the documents as per their area of bid of interest i.e Respectively for SMS (or) for WhatsApp (or) for IVRS (or) for Bulk Email service)*

a) The bidders who have submitted required documents and meet the eligibility criteria (5.3.1 to 5.3.5) as mentioned above and criteria related to the respective area of bid of interest for 5.1.6 and as

determined by the HMSCL shall only be eligible for Technical Evaluation System (TES) as per clause 5.3.

5.4. Technical Evaluation System (TES)

Respective bidders who qualify in the above Minimum Eligibility Criteria (MEC), will be evaluated in the Technical Evaluation System (TES) based on respective area of bidding. (i.e., Respectively for SMS (or) for WhatsApp (or) for IVRS (or) for Bulk Email service) and as per the information furnished in the below corresponding forms,

I. Form Tech 1 (clause.5.4.1) (For SMS),

II. Form Tech 2 (clause.5.4.2) (For WhatsApp),

III. Form Tech 3 (clause.5.4.3) (For IVRS),

IV. Form Tech 4 (clause.5.4.4) (For Bulk Email service),

a) Separate sheets must be uploaded to elaborate the projects undertaken.

b) Necessary work order/ contract along with project completion /satisfactory performance certificate for all the forms (Form Tech 1,2,3,4) duly signed by Senior Executive/ Deputy GM of the organization clearly indicating his/her name, designation and contact details such as Telephone Number, Fax number, email-id, stamp etc. must be uploaded as documentary evidence of the projects executed.

5.4.1 Form Tech 1:

(A) SMS related Projects Details

S.No	Projects	Details With Page No.	Reference to attached sheets
1.	Total SMS Related Projects Implemented till date		
2.	Annual earnings from SMS related projects		

3.	Names / Contact info of organizations where SMS Solution has recently been implemented (At least 3)		
4.	Total Volume handled related to SMS Solution in last 5 years (2017-2018, 2018-2019, 2019-2020 ,2020-2021, 2021-2022)		
5.	Total turnover related to implementation of SMS Solution in last 3 years (2019-2020, 2020-2021, 2021-2022)		
6.	Availability of the district wise subscriber database for the state of Haryana(Yes/No)		
7.	Application and Database management experience		
8.	Number of Application Developer (G2G/G2C) in the payroll		
9.	Tie up with number of telecom operator with names/contact info		
10.	Please indicate whether any bankruptcy / winding up proceedings initiated against the Bidder or its tie–up partner at any point in time.		

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5.4.2 Form Tech 2:

(A) WhatsApp related Projects Details

S.No	Projects	Details With Page No.	Reference to attached sheets
1.	Total WhatsApp Related Projects Implemented till date		
2.	Annual earnings from WhatsApp related projects		

3.	Give Names / Contact info of organizations where WhatsApp Solution has recently been implemented (At least 5)		
4.	Total Volume handled related to WhatsApp Solution in last one year (2021-2022)		
5.	Total turnover related to implementation of WhatsApp Solution in last One year		
6.	Number of Application Developer (G2G/G2C) in the payroll		
7.	Please indicate whether any bankruptcy / winding up proceedings initiated against the Bidder or its tie–up partner at any point in time.		

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5.4.3 Form Tech 3:

(A) IVRS related Projects Details

IVRS related Projects Details			
S.No	**Related Projects**	**Details With Page No.**	**Reference to attached sheets**
1.	Total IVRS Related Projects Implemented till date		
2.	Annual earnings from IVRS related projects		
3.	Give Names / Contact info of organizations where IVRS Solution has recently been implemented (At least 2)		
4.	Total Volume handled related to IVRS Solution in last one year (2021-2022)		
5.	Total turnover related to implementation of IVRS Solution in last One year		
6.	Availability of the district wise subscriber database for the state of Haryana (Yes/No)		

7.	Tie up with number of telecom operator with names/contact info		
8.	Please indicate whether any bankruptcy / winding up proceedings initiated against the Bidder or its tie–up partner at any point in time.		

5.4.4 Form Tech 4:

(A) Bulk Email related Projects Details

S.No	Related Projects	Details With Page No	Reference to attached sheets
1.	Total Bulk email Related Projects Implemented till date		
2.	Annual earnings from email related projects		
3.	Give Names / Contact info of organizations where Email Solution has recently been implemented (At least 2)		
4.	Total Volume handled related to Email Solution in last one year (2021-2022)		
5.	Total turnover related to implementation of Email Solution in last One year		
6.	Application and Database management experience		
7.	Multiple Tier Security Equipment/Service – Anti-Virus, Anti-Spam, Advanced Threat Protection, Anti-Malware, Sandbox		
8.	Please indicate whether any bankruptcy / winding up proceedings initiated against the Bidder or its tie–up partner at any point in time.		

5.5 Technical Bid Score

a) The Total Technical Score would be arrived based on the respective documents (As per clause.5.4.1, clause 5.4.2, clause 5.4.3, clause 5.4.4 respectively) submitted by the bidder, as per their desired area of bid of interest.

b) HMSCL will evaluate whether all the requirements mentioned in the Tender are understood and addressed well.

c) The bidder has to make a technical presentation & live demonstration to the HMSCL

d) To declare a bidder as technically qualified, the bidder has to score a minimum of 70 marks out of 100 in TES and financial bids of those bidders who score 70 or above out of 100 in the TES shall only be opened.

5.5.1 SMS Technical Bid Criteria

a) Based on the documents submitted by the bidder as per clause.5.4.1, and the presentation, the Total Technical Score would be arrived at as follows:

S. No	Criteria	Maximum Marks
5.5.1.1	Statutory compliance for providing the Bulk SMS services and five years of active experience in similar services. a) 10 marks = For agencies in the SMS business since 10 years, b) 7 marks = For agencies in the SMS business since 7 years, c) 5 marks = For agencies in the SMS business since 5 years	**10**
5.5.1.2	Tie ups and/or operation experience with Telecom Operators. a) 5 marks = For minimum tie ups with 2 operators b) 7 marks = For tie ups with 3 operators.	**10**

	c) 10 marks = For tie ups with 4 or more operators	
5.5.1.3	Similar project execution experience (SMS) (Minimum five projects) a) Projects (Max cap of 2.5 marks) i. 5 Project = 2 marks ii. More than 5 projects = 2.5 marks b) Clients (Max cap of 5 marks) i. Less than 2 clients = 0 marks ii. 2 clients = 2 marks iii. 3 clients = 3 marks iv. 4 clients = 4 marks v. 5 clients = 5 marks	**7.5**
5.5.1.4	Application and Database management experience: a) For application experience 0-5 marks based on number of years of experiences. (Max cap of 5 marks) b) For database experience 0-5 marks based on number of years of experiences. (Max cap of 5 marks) *(For e.g., for 1 application exp, 5 database exp, points = (1+5=6))*	**10**
5.5.1.5	Availability of the district wise subscriber database for the state of Haryana (Availability of district wise data = 10 marks, else 0)	**10**
5.5.1.6	Approach to collect/ arrange/ update citizen's database district wise. (Availability of district wise data = 12.5 marks, else 0)	**12.5**
5.5.1.7	a) Number of Application Developer (G2G/G2C) in the payroll >20. For No of Developers > 20, then allocate 5 marks, else zero	**10**

	b) And out of the 20 Developers, No of Developers having 5+ years of experience > 5, then allocate 5 marks else zero.	
5.5.1.8	Ability to handle data in Regional Language (Hindi/Haryanvi) a) Clients i. Less than 2 clients = 0 marks ii. 2 clients = 4 marks ii. 3 clients = 6 marks iii. iv. 4 clients = 8 marks v. 5 clients = 10 marks	**10**
5.5.1.9	Proposed approach & methodology in terms of understanding of present assignment, agency's experience in the area, Innovative and best practices etc. Presentation cum demo of the platform as per the details in scope	**15**
5.5.1.10	**Project Coordinator**: a) Minimum 3-5 years' experience in project management - 1 mark b) Theoretical and practical project management knowledge - 1 mark c) Experience in risk management and/or change management. - 1 mark d) Proficiency in project management software tools - 1 mark e) Project Coordinator having PMP (PMI) - 1 mark	**5**
Total Technical Score		**100**

The bidder shall be required to get at least 70 marks out of 100 marks to qualify for next stage i.e., opening of the financial bids.

5.5.2 WhatsApp Technical Bid criteria

a) Based on the documents submitted by the bidder as per cl.5.4.2, and the presentation, the Total Technical Score would be arrived at as follows:

S. No	Criteria	Maximum Marks
5.5.2.1	Statutory compliance for providing the WhatsApp API services and with one years of active experience in similar services. a) 15 marks = For agencies in WhatsApp business for 2 years, b) 7.5 marks = For agencies in WhatsApp business for 1 year	**15**
5.5.2.2	Similar project execution experience (WhatsApp API services in any of the State/Central Government/ Private sector) (Min one project) a) Projects (Max Cap = 10 marks) i. 1 Project = 3 marks ii. 2 Project = 5 marks iii. 3 or more projects = 10 marks b) Clients (Max Cap = 10 marks) i. Less than 2 clients = 0 marks ii. 2 clients = 4 marks iii. 3 clients = 6 marks iv. 4 clients = 8 marks v. 5 clients = 10 marks	**20**

5.5.2.3	Similar project execution experience (WhatApp Chatbot services in any of the Government/ Private sector) (Minimum one project) a) Chatbot implemented Projects (Max Cap = 10 marks) i. 1 Project = 3 marks ii. 2 Project = 5 marks iii. 3 or more projects = 10 marks b) Clients (Max Cap = 10 marks) i. Less than 2 clients = 0 marks ii. 2 clients = 4 marks ii. 3 clients = 6 marks iv. 4 clients = 8 marks	**20**

	v. 5 clients = 10 marks	
5.5.2.4	Ability to handle data in Regional Language Hindi/Haryanvi) a) Clients i. Less than 2 clients = 0 marks ii. 2 clients = 4 marks iii. 3 clients = 6 marks iv. 4 clients = 8 marks v. 5 clients = 10 marks	**10**
5.5.2.5	a) Number of Application Developer (G2G/G2C) in the payroll >20. b) For No of Developers > 20, then allocate 5 marks, else zero. c) And out of the 20 Developers, No of Developers having 5+ years of experience > 5, then allocate 5 marks else zero.	**10**

5.5.2.6	Proposed approach & methodology in terms of understanding of present assignment, agency's experience in the area, Innovative and best practices etc. Presentation cum demo of the platform as per the details in scope	**20**
5.5.2.7	**Senior Application Developer**: a) Minimum 5 years coding experience (strong technical knowledge required) on .Net with Angular; MS SQL server using database server - 1 mark. b) Hands on experience in Development and Deployment of proposed WhatsApp Business API and WhatsApp Conversation Manager solution - 0.5 mark c) Good expertise of UI frameworks like jQuery/ Angular - 0.5 mark d) Having good understanding of Government Processes and IT automation initiatives in e-Governance Domain - 0.5-mark **Application Developer**: a) Minimum 3 years coding experience (strong technical	**5**
	knowledge required) on .Net with Angular; MS SQL server using database server - 1 mark. b) Hands on experience in Development and Deployment of proposed WhatsApp Business API and WhatsApp Conversation Manager solution - 0.5 mark c) Good expertise of UI frameworks like jQuery/ Angular - 0.5 mark d) Having good understanding of Government Processes and IT automation initiatives in e-Governance Domain - 0.5 mark	
Total Technical Score		**100**

The bidder shall be required to get at least 70 marks out of 100 marks to qualify for next stage i.e., opening of the financial bids.

5.5.3 IVRS and OBD Technical Bid criteria

a) Based on the documents submitted by the bidder as per clause.5.4.3, and the presentation, the Total Technical Score would be arrived at as follows:

S. No	Criteria	Maximum Marks
5.5.3.1	Statutory compliance for providing the IVRS services and five years of active experience in similar services. a) 20 marks = For agencies in IVRS business since 10 years, b) 15 marks = For agencies in IVRS business since 7 years, c) 12 marks = For agencies in IVRS business since 5 years	**20**
5.5.3.2	Tie ups and/or operation experience with Telecom Operators. a) 10 marks = For tie ups with 4 or more operators b) 7 marks = For tie ups with 3 operators. c) 5 marks = For minimum tie ups with 2 operators	**10**
5.5.3.3	Similar project execution experience (In IVRS services in any of the Government/ Private sector)	

	a) Projects (Max cap = 5 marks) i. 3 projects = 3 marks ii. 4 Project = 4 marks iii. 5 or more projects = 5 marks b) Clients (Max cap = 10 marks) i. less than 2 clients = 0 marks ii. 2 clients = 2 marks iii. 3 clients = 4 marks iv. 4 clients = 8 marks v. 5 clients = 10 marks	**15**
5.5.3.4	Ability to handle data in Regional Language (Hindi/Haryanvi) a) Clients i. Less than 2 clients = 0 marks ii. 2 clients = 4 marks iii. 3 clients = 6 marks iv. 4 clients = 8 marks v. 5 clients = 10 marks	**10**
5.5.3.5	Application and Database management experience: a) For application experience 0-5 marks based on number of years of experiences. b) For database experience 0-5 marks based on number of years of experiences. (For e.g., for 1 application exp, 5 database exp, points = (1+5=6))	**10**

5.5.3.6	Availability of the district wise subscriber database for the state of Hindi/Haryanvi . (Availability of district wise data = 10 marks, else 0)	**10**
5.5.3.7	Approach to collect/ arrange/ update citizen's database district wise (Availability of district wise data = 5 marks, else 0)	**5**
5.5.3.8	Proposed approach & methodology in terms of understanding of present assignment, agency's experience in the area, Innovative and best practices etc. Presentation cum demo of the platform as per the	**20**
	details in scope	
Total Technical Score		**100**

The bidder shall be required to get at least 70 marks out of 100 marks to qualify for next stage i.e. opening of the financial bids.

5.5.4 Bulk Email Service Technical Bid criteria

a) Based on the documents submitted by the bidder as per cl.5.4.4, and the presentation, the Total Technical Score would be arrived at as follows:

S. No	Criteria	Maximum Marks
5.5.4.1	Statutory compliance for providing the Bulk mailer services and five years of active experience in similar services. a) 20 marks = For agencies in Bulk Mail services since 10 years, b) 15 marks = For agencies in Bulk Mail services since 7 years, c) 12 marks = For agencies in Bulk Mail services since 5 years	**20**

5.5.4.2	Similar project execution experience (In Bulk email services in any of the Government/ Private sector) (Minimum two projects) a) Projects (Max cap = 5 marks) i. 2 Project = 4 marks ii. 2 or more projects = 5 marks b) Clients (Max cap = 10 marks) i. Less than 2 clients = 0 marks ii. 2 clients = 2 marks iii. 3 clients = 4 marks iv. 4 clients = 8 marks v. 5 clients = 10 marks	**15**
5.5.4.3	Ability to handle data in Regional Language (Hindi/Haryanvi) a) Clients	**10**
	i. Less than 2 clients = 0 marks ii. 2 clients = 4 marks iii. 3 clients = 6 marks iv. 4 clients = 8 marks v. 5 clients = 10 marks	
5.5.4.4	Application and Database management experience: a) For application experience 0-5 marks based on number of years of experiences. b) For database experience 0-5 marks based on number of years of experiences. (For e.g., for 1 application exp, 5 database exp, points = (1+5=6))	**10**

5.5.4.5	Multiple Tier Security Equipment/Service a) For each additional Anti-Virus - 2 marks b) For each additional Anti-Spam - 2 marks c) For each additional Advanced Threat Protection – 2 marks d) For each additional Sandbox - 2 marks e) For each additional Anti Malware - 2 mark *(With maximum cap of 4 Mark for each point)*	**20**
5.5.4.6	Proposed approach & methodology in terms of understanding of present assignment, agency's experience in the area, Innovative and best practices etc. Presentation cum demo of the platform as per the details in scope	**25**
Total Technical Score		**100**

a) All the bidders who secure a Technical Score of more than 70 out of 100 marks will be declared as technically qualified.

b) The Financial bids of only the technically qualified bidders will be opened for further processing.

5.6 Evaluation of Financial Bid

a) Bidders will be selected through Least Cost based selection process.

b) The Financial Bids of technically qualified bidders (i.e., Bidders with more than 70 marks in Technical Evaluation) will be opened on the prescribed date in the presence of bidder representatives.

c) Only fixed price financial bids indicating total price for the respective deliverables and services specified in this bid document will be considered.

d) The bid price will include all taxes and levies and shall be in Indian Rupees and mentioned separately. e) Any conditional bid would be rejected.

End of section: V

SECTION VI: INSTRUCTION TO BIDDERS

SECTION VI: INSTRUCTIONS TO BIDDERS

A. INTRODUCTION

6.1 Introduction: Haryana Medical Services Corporation Ltd. (HMSCL) is an undertaking of the Government of Haryana, registered as a company under the Companies Act, 2013. It is the nodal agency for procurement of medical equipments for Health Department, Government of Haryana on the request of the Head of the Departments. This policy lays down the procedure and directives to be adopted by HMSCL for procurement by adopting fair and transparent system.

This tender is an e-tender and only on-line bid submission is possible. The two bid system, which is followed, has been designed to eliminate those equipments which do not match the technical specifications, or not having the proven technology and to eliminate firms that do not have the financial or technical capability to supply, install and maintain the equipments. The Corporation does not finalize the requirements of equipments and their technical specifications. These parameters are finalized by the user institutions who forward their requirements to the Corporation for procurement.

6.2 Eligible Bidders

Bidders are eligible as per conditions laid out in Section V.

6.3 Cost of Bidding

(a) **Online Bid fee**: Bid fee has to be submitted online only along with other processing fee.

(b) The Bidder shall bear all costs associated with the preparation and submission of its bid and HMSCL will not be liable for the cost incurred, regardless of the outcome of the bidding process.

B. THE BIDDING PROCEDURE

6.4 Bidding Procedure:

Pre-Contract: The online bidding process comprises of downloading the tender document, pre-bid meeting if applicable, Technical Bid submission **(ONLINE and OFFLINE BOTH)** & Financial Bid **(ONLINE ONLY)**, opening of technical bid and shortlisting of technically responsive bids, opening of financial bids, Notification of Award and signing of contract.

Physical Submission of Documents mentioned in 5.1 is mandatory along with other supporting documents & certificates are to be submitted offline and online through Portal only.

Post- Contract: Site preparation where ever required/inspection, Supply, installation, commissioning, Operationalization, warranty, maintenance.

Post-Warranty Maintenance Contract: Comprehensive Maintenance and uptime maintenance.

6.5 Bid confidentiality and Clarification of Bidding Documents:

It is expected from all the bidders that they will ensure that the document to be used in the bid set will be given to reliable person, and that a fully reliable person shall be authorized for digital signatures so that the confidentiality of the bids/ rates is maintained up to bid opening & that no documents put to any misuse.

The Bidder is expected to examine all instructions, forms, terms and specifications in the Bidding Documents. Failure to furnish all information required in the Bidding Documents or submission of a bid not substantially responsive to the Bidding Documents in any respect will be at the Bidder's risk and may result in rejection of its bid. The certificates/licenses/documents submitted should be complete and up to date.

A prospective Bidder requiring any clarification of the Bidding Documents may notify the Purchaser in writing at the Purchaser's email indicated in the NIT. The Purchaser will respond in writing to any request for clarification of the Bidding Documents within 7 working days after publication of the tender.

C. PRE-BID AND AMENDMENTS OF BIDDING DOCUMENT

6.6 Pre Bid Meeting: The Pre-Bid Meeting would not be Held, if required then it will be held.

6.7 Amendment of Bidding Documents

At any time prior to the deadline for submission of bids, the Purchaser may, for any reason, whether at its own initiative or in response to a clarification requested by a prospective bidder, modify the Bidding Documents by an amendment.

a) All prospective bidders will be informed of the amendments by publishing on the website/s mentioned in the NIT.
b) In order to allow prospective bidders reasonable time to make amendments in preparing their bid, the Purchaser may, at its discretion, extend the deadline for the submission of bids.

D. PREPARATION OF BIDS

6.8 Language of Bid

The Bid prepared by the bidder and all correspondence and documents relating to the bid exchanged by the Bidder and the Purchaser, shall be written in the English language. Supporting documents and printed literature furnished by the Bidder may be written in another language provided they are accompanied by an accurate translation of the relevant passages in the English language in which case, for purposes of interpretation of the Bid, the English translation shall govern.

6.9 Documents Comprising the Bid

The bids can be downloaded **www.etenders.hry.nic.in.**

Contents of Bidding Documents include:

Section I - Notice Inviting Tender (NIT);
Section II - Schedule of Requirements;
Section III - Technical Specifications

Section IV - Eligibility criteria
Section V Instructions to the Bidders
Section VI Contract Form
Section VII Conditions of Contract;
Section VIII Form, Formats and Schedules
Section IX Checklist & Declaration

The detailed technical specifications and terms and conditions governing the supply, installation, commissioning and the after sales service of the equipments tendered are contained in the Tender Document. The online documents shall be submitted through the e-tender portal **www.etenders.hry.nic.in.** Bidders have to enroll themselves in the e-tender portal and digital signature certificate is required. Bidders should have a Class II or above Digital Signature Certificate (DSC) to be procured from any Registration Authorities (RA) under the Certifying Agency of India. Once, the DSC is obtained, bidders have to register on **www.etenders.hry.nic.in** website for participating in this tender. Website registration is one-time process without any registration fees. However, bidders have to procure DSC at their own cost. Bidders may contact e-Procurement support desk of HMSCL over telephone No.01724788222 through email: ***tenderquery2020@gmail.com*** for assistance in this regard. The Technical Bid should be uploaded as scanned documents into the NIC portal and a hard copy submitted separately. The blank price bid should be downloaded as an Excel sheet, filled and uploaded. While preparing the Bid the Bidder should ensure that:

(a)All Technical Bid documents should be self-attested and stamped by the bidder on each page. Bid offer Form and Price Schedule completed in accordance with formats specified in the bid.

(b) Documentary evidence establishing in accordance with Clause 5.3 that the Bidder is eligible to bid and is qualified to perform the contract if its bid is accepted;

(c) Documentary evidence establishing in accordance with Clause 5.3 that the goods and ancillary services to be supplied by the Bidder shall conform to the Bidding Documents; and

(d) Bid Security is furnished in accordance with Clause 5.3.2.

6.10 Bid Offer

i) All the quotes shall be in Indian Rupees / Foreign Currency.

ii) **Conversion of Tender Currency to Indian Rupees**: In case tenderers quote their prices in different currencies, all such quoted prices of the responsive tenderers will be converted to a single currency viz., Indian Rupees for the purpose of equitable comparison and evaluation, as per the exchange rates established by the Reserve Bank of India, as on the date of '**Financial Bid opening of the said Tender'**

iii) Financial Bid has to be submitted online only. No financial bid should be submitted manually otherwise bid shall be liable to reject.

iv) There should not be any alteration or condition in the tender. If the same is found, then tender is liable to be cancelled.

6.11 Financial Bid

a) Financial Bid would comprise of the following:

a) Second part relates to financial bid which should be submitted in the Bill of Quotation (BOQ) as given in the Tender.

b) The rate quoted by the bidder in the financial bid as per their desired area of bid of interest should be for the cost involved in the successful implementation of scope of work mentioned in Section 4 (as per their desired area) of this RFP and no other charges will be allowed by HMSCL other than the cost quoted.

c) Bill of Quotation (BOQ) should not contain any conditional offers or variation clause, otherwise the bids will be summarily rejected.

d) The rates quoted shall be only in INDIAN RUPEES (INR) only. The tender is liable for rejection if BOQ contains conditional offers.

The cost quoted by the bidder shall be kept firm for a period specified in the tender from the date of opening of the tender. The bidder should keep the rates firm during the period of contract including during the period of extension of time if any. Escalation of cost will not be permitted during the said periods or during any period while providing services whether extended or not for reasons other than increase of duties / taxes payable to the Governments in India.

- **Applicable GST:** Applicable GST shall be quoted in this column in numeric values and in words Rupees (If the field is left blank, value will be taken as zero).
- The packing, forwarding freight and insurance charges applicable if any, shall be quoted separately in numeric values and in words Rupees (If the field is left blank, value will be taken as zero).
- The total amount will be calculated Manually and will be taken for evaluation and bid ranking. These should be quoted for each of the items if any, quoted separately on door delivery basis (FOR Destination) according to the unit ordered. The bidder shall offer prices of the accessories inclusive of all the accessories mentioned in the technical specification under Section III and under no circumstances offer the

essential accessories, without which the accessories cannot function properly, as optional or left un-quoted.

b) The rates quoted and accepted will be binding on the bidder for full contract period as per the validity of contract from the date of signing of agreement and any request of increase in price will not be entertained till the completion of this tender period. Accordingly, this clause will be applicable for all orders placed during the contract period.

c) No bidder shall be allowed at any time on any ground, whatsoever it may be, to claim revision or modification in the rates quoted by him. Representation to make correction in the tender documents on the ground of Clerical error, typographical error, etc., committed by the bidders in the Bids shall not be entertained after submission of the tenders. Cross Conditions such as "SUBJECT TO AVAILABILITY" "SUPPLIES WILL BE MADE AS AND WHEN SUPPLIES ARE

RECEIVED" etc., will not be entertained under any circumstances and the tenders of those who have given such conditions shall be treated as conditional/ incomplete and accordingly the same will be rejected.

6.12. Documents Establishing Bidder's Eligibility and Qualifications

Pursuant to Section 4, the bidder shall furnish, as part of its bid, documents establishing the bidder's eligibility to bid and its qualifications to perform the Contract if its bid is accepted.

6.12.1 Documents:

a) Documentary evidence for the constitution of the company /Firm such as Memorandum and Articles of Association, Partnership deed etc. with details of the Name, Address, Telephone Number, Fax Number, e-mail address of the firm and of the Managing Director / Partners / Proprietor. The list of present Directors in the board of the Company duly certified by a Company Secretary of a Company/Practicing Company Secretary/Chartered Accountant to be furnished.

b) The instruments such as power of attorney, resolution of board etc., authorizing an officer of the bidder should be enclosed with the tender duly signed by the Authorized signatory of the Company / Firm and such authorized officer of the bidder should sign the tender documents. Authorization letter nominating a responsible person from the bidder to transact the business with the Tender Inviting Authority.

c) Bidders have to furnish documents certifying their claim as per conditions laid down in Section 4.

6.12.2 Catalogue

A publication, such as a book or pamphlet, containing such a list where the items quoted are actually manufactured, its annual production capacity or display i.e. technical details of the quoted model, specifications and certifications:

a) In case of non-submission of catalogue with number marking, the Tender is liable to rejection.

b) The bidder must submit a compliance report in annotated form indicating compliance of its quoted item with the specification clearly indicating the page no. & Sr. No in the attached catalogue.
c) All the catalogues provided by the bidder for the quoted model shall be in original. The firm may upload the scanned copy of original catalogue online but shall submit original catalogues in physical form along with their offer.
d) The copy of operational & service manual / Data Sheet should be uploaded along with the Tender and shall submit operational & service manual / Data Sheet in physical form along with their offer.
e) The firm will provide two set of copies of operational & service manual. (Original
f) Operational & service manual) at the time of supply at the consignee location.

6.13 Submission of Samples

a) Samples must be sent of the quoted items wherever in Technical Requirements demanded shall be supplied free of cost on demand by HMSCL. No sample will be accepted after prescribed period. In the event of non-submission of samples within prescribed period on demand, the bid shall not be considered.
b) Samples of equipment/instrument of the unsuccessful bidder should be collected back from the place of its storage within the stipulated period as indicated by the purchaser. The corporation will not be responsible for any damage, wear & tear or loss during the course of testing/ examination etc. The corporation would retain the sample of approved item for one month beyond expiry of contract. The corporation will not make any arrangement for return of samples even if the bidders agree to pay the cost of transportation. The uncollected samples shall stand forfeited to the corporation after the stipulated period allowed for collection and no claim for the cost etc. there of shall be entertained.
b) Samples should be strictly according to the specification of item quoted in the bid form failing which the bid will not be considered Sample must be submitted duly sealed and securely fastened to the sample with particulars as mentioned below:
-
    a. Name and full address of the firm,
    b. Model No. And name of the item,
    c. Name of section,
    d. Name of manufacturer,
    e. Brand,

d) No change of sample or marking on sample will be allowed after the submission of sample.

6.14. Bid Security

a) Pursuant to Clause 5.3.2, the Bidder shall furnish, as part of its bid, bid security for the amount as indicated in Section II, schedule of requirements against each item. No exemption from payment of Bid Security is permitted except for the firms which are entitled as per Government of Haryana guidelines.

b) The bid security is required to protect the Purchaser against risk of Bidders conduct which would warrant the security's forfeiture.

c) The bid security shall be submitted online only in Indian Rupees and shall be deposit online in the following Account of HMSCL: -

Interested bidders are directed to submit online Tender Fee, Bid Security (EMD) and Bid Processing fee. Firm will submit Tender Fee, Bid Security (EMD) (as mentioned in Section II Schedule of Requirements), and Bid Processing fee online (NIC Portal) in the SBI Account of HMSCL. No demand draft/ Bankers Cheque will be accepted for the submission of the Tender Fee, Bid Security (EMD), and Bid processing fee, If the same is found then the bid is liable to be canceled & considered the bidder is not as per DNIT.

The bidder shall submit the scanned copy of online payment along with the technical bid online. The bid security should not carry any interest and shall be refunded without any interest.

d) Any bid not secured in accordance with Clauses 5.3 above will be rejected by the Purchaser

e) Unsuccessful bidders bid security will be discharged/returned as promptly as possible but not later than 30 days after the expiration of the period of bid validity prescribed by the Purchaser.

f) The successful bidder's bid security will be discharged upon the bidders signing the contract and furnishing the performance security. g) The bid security may be forfeited,

(i) if a bidder withdraws its bid during the period of bid validity specified by the Bidder on the Bid form; or

(ii) in case of a successful bidder, if the bidder fails:

- to sign the contract in accordance with the schedule specified in the Contract
- to furnish performance security

6.15. Period of Validity of Bids

a) Bids shall remain valid for 180 days after the date of bid opening prescribed by

the Purchaser, A bid valid for a shorter period may be rejected by the Purchaser as non-responsive.

b) In exceptional circumstances, the Purchaser may solicit the bidder's consent for an extension of the period of bid validity. The request and the

responses thereto shall be made in writing by e-mail. The bid security provided shall be suitably extended as mutually agreed. A bidder may refuse the request for extension without forfeiting its bid security. A bidder granting the request for extension is not permitted to modify its bid.

6.16. Signing of Bid

The bid shall be signed by the Bidder or a person or persons duly authorized to bind the Bidder to the Contract. The letter of authorization shall be indicated by written power-of-attorney accompanying the bid. All pages of the bid, except for no amended printed literature, shall be initialed by the person or persons signing the bid and should match with the authorized signatory.

E. SUBMISSION OF BIDS

6.17. Sealing and Marking of Bids

a) Bid has to be submitted online and offline both**.** However original copies of the following Documents have to be submitted: -

1. Original Compliance statement with quoted make and model & also marking the Technical Specification points on Original Catalogue and Manual/ Data sheet.
2. Original Catalogue and Manual/ Data sheet of quoted model (Scan and Photocopy of Catalogue and Manual/ Data sheet not acceptable).

b) The cover shall be addressed to the Purchaser at the following address:

Haryana Medical Services Corp. Ltd.,
5th Floor, Plot No. 9, DHL Square
Sector- 22, IT Park Panchkula,134112

Bear the Item name & no., the NIT number and the word "Do not open before The inner envelopes shall indicate the name and address of the bidder.

c) The document required in tender and document mentioned in above 6.17 (a) are to be submitted in physical form before the closing time of tender.

d) No other fresh document would be accepted in physical form except when clarification is sought by HMSCL from a Bidder.

6.18. Deadline for Submission of Bids

a) Bids must be received by the Purchaser at the address specified not later than the time and date specified in the NIT. In the event of the specified date for the submission of bids being declared a holiday for the Purchaser, the bids will be received up to the appointed time on the next working day.

b) The Purchaser may, at its discretion, extend this deadline for submission of bids by amending the bid documents, in which case all rights and obligations of the purchasers and bidders previously subject to the deadline will thereafter be subject to the deadline as extended.

6.19. Late Bids

As the bids are to be submitted **online and Offline both,** so there is no way of submitting the bid after closing time of tender.

6.20. Modification and Withdrawal of Bids

a) The bidder may modify or withdraw its bid after the bids submission, provided that written notice of the modification or withdrawal is received by the Purchaser prior to the deadline prescribed for submission of bids.

b) The bidder's modification or withdrawal notice shall be prepared, sealed, marked and dispatched. A withdrawal notice may also be sent by email but followed by a signed confirmation copy, to reach HMSCL office not later than the deadline for submission of bids.

c) No bid may be modified or withdrawn subsequent to the deadline for submission of bids and withdrawal of a bid may result in the bidder's forfeiture of its bid security.

6.21. Opening of Bids by Purchaser

The Bids will be downloaded and evaluated.

6.22. Clarification of Bids

During the evaluation of bids, the Purchaser may, at its discretion, ask the bidder for clarification of the bid. The request for clarification and the response shall be in writing and shall be submitted then and there by an authorized person.

6.23. Bid Evaluation:

Bids will be evaluated by the **Bid Evaluated Committee** constituted by the purchaser. The decisions of the Bid Evaluation Committee on whether the tenders are responsive or non-responsive or requiring clarifications will be published. The Bid Evaluation would comprise of the following steps: a) Eligibility Evaluation

b) Technical Evaluation

c) Financial Evaluation

a) **Eligibility Evaluation:** The Bid will be evaluated for the Eligibility Criteria set out in

Section IV of this DNIT

a. **Technical Evaluation:** For evaluation, the Bid evaluation committee would scrutinize documents submitted by the Bidder, seek clarifications wherever required, undertake demonstration, conduct tests from labs, examine or get examined the sample provided by the bidder, and technically evaluate the item on the specifications in the DNIT. The HMSCL reserves the right to carry out inspection at the bidder's premises to assess the capacity/capability/eligibility of the firm to make supplies and to ensure that good manufacturing practices are being followed by the manufacturer.

The bidder may be informed of the deficiencies in the bids if any and may be given time by the purchaser to clarify the deficiencies.

Initial Bid scrutiny will be conducted, and incomplete details as given below will be treated as non- responsive.

a) If Tenders are, i. Received without the Letter of Undertaking (as per the format given in this RFP) and Letter of Authorization ii. Received without EMD Amount iii. Found with suppression of details. iv, with

incomplete information, subjective, conditional offers, and partial offers v. Submitted without support documents as per the MEC (Minimum Eligible Criteria) and TES (Technical Evaluation System) vi. Non-compliance with any of the clauses stipulated in the Tender. viii. Lesser validity period

b)All responsive Bids will be considered for further evaluation. The decision of HMSCL will be final in this regard.

Demonstration:

The bidder may be asked to demonstrate the technique, procedure, and utility of equipment as per the specification given in the bid document before the Technical Committee. Wherever it is required for the technical evaluation of the offer, the purchaser reserves the right to obtain the demonstration of the equipment at the premises of installation at the cost to be borne by of the bidder vendor. **The Bidders should be prepared for Demonstration within one week of the closing of the Tender. NO EXTENSION WILL BE GIVEN.**

Technical Evaluation System: .The bidder shall be informed to make a presentation to TSC. If the bidder fails to demonstrate, their bid will be summarily rejected. The minimum marks to be scored by the bidders in the TES is 70 (seventy) out of 100, so as to declare the bid as technically qualified. Bidders who score 70 and above marks in the TES as per section 4 above shall be deemed technically qualified and financial bids of those bidders only will be opened.

Testing:

The Purchaser reserves the right to test any of the samples of the quoted item to ensure conformity with specifications and quality. The cost of testing before or after the supply order issued to the firm will be borne by the Bidder.

A bid which is non-responsive will be rejected by the Purchaser and the price bid of such bidders shall not be considered for opening.

b) Evaluation of Financial Bid:

After the technical bids have been evaluated, the bid evaluation committee will be responsible for the evaluation financial bid. The bid evaluation committee shall: -

i) Make a comparison chart of the prices quoted by all the bidders clearly highlighting the bidders as L1, L2, L3..... so on.

ii) Shall compare the lowest rate quoted by the L1 with the rates on the GeM Portal if the same medical equipment is available on the GeM Portal.

iii) Shall compare the lowest rate quoted by the L1 with the rates of other States/ procurement agencies for the same medical equipment.

iv) Shall conduct reverse auction/ negotiation if required to procure the medical equipment at the best lowest price after obtaining approval from MD, HMSCL.

v) The price bid evaluation will be carried out taking into account the Net Present Value (NPV) of the Cost plus the CMC.

vi) The price/rate quoted by the Bidder in the financial price bid (As per their desired area of bid of interest) should be the cost for providing SMS gateway, WhatsApp, IVRS and e-Mail Services as per the scope of work detailed in this RFP and no other charges will be allowed by the HMSCL other than the rate quoted for the contract period. GST will be payable extra at the prevailing rates as per Government Rules if applicable. Statutory deductions (TDS) will be deducted from the payment. vii) The prices should include implementation cost, software tools, 24*7*365 support, user licenses, features, software subscription, upgradation of all software during the tenure, and any other cost required to implement the solution successfully. viii) The cost quoted by the Bidder shall be kept firm for a period specified in the Tender from the date of opening of the tender. The Bidder should keep the Price firm during the period of the Contract including during the period of extension of time if any. Escalation of cost will not be permitted during the said periods or during any period while providing services whether extended or not for reasons other than the increase of duties/taxes payable to the Governments in India. The Bidders should particularly take note of this factor before submitting the Bids.

The decision of the financial bid evaluation committee will be confirmed by MD, HMSCL.

6.24. Contacting the purchaser

a) No bidder shall contact the Purchaser on any matter relating to its bid, from the time of bid opening to the time the contract is awarded.

b) Any effort by a bidder to influence the Purchaser in the Purchaser's bid evaluation, bid comparison, or contract award decisions may result in the rejection of the bidders' bid.

c) The bidders shall not make attempts to establish unsolicited and unauthorized contact after opening of the bids and prior to the notification of award with Tender accepting authority, Tender Inviting Authority or Tender Scrutiny Committee and any attempt by any bidder to bring to bear extraneous pressures on the any Authority bidder shall be sufficient reason to disqualify the bidder.

d) The Tender Inviting Authority or the Tender Accepting Authority may seek bona fide clarifications from bidders relating to the bids submitted by them during the evaluation of bids, and the bidder will reply back within seven calendar days with the documentary proof.

F. AWARD OF CONTRACT

6.25. Post Qualification

a) The Purchaser will determine to its satisfaction whether the bidder that is selected as having submitted the lowest evaluated responsive bid, meets the criteria specified and is qualified to perform the contract satisfactorily.

b) The determination will take into account the bidders financial, technical and production capabilities. It will be based upon an examination of the documentary evidence of the bidders qualifications submitted by the bidder, visit to bidder's premises as well as such other information as the Purchaser deems necessary and appropriate.

c) An affirmative determination will be a pre-requisite for award of the contract to the bidder. A negative determination will result in rejection of the bidders bid, in which event the Purchaser will proceed to the next lowest evaluated bid to make a similar determination of those bidders' capabilities to perform satisfactorily.

6.26 Award Criteria

The Purchaser will award the contract to the successful bidder whose bid has been determined to be substantially responsive and has been determined as the lowest evaluated bid, provided further that the bidder is determined to be qualified to perform the contract satisfactorily.

6.27. Purchaser's right to vary quantities at time of award

a) The Purchaser reserves the right at the time of award of contract to increase or decrease the quantity of goods and services originally specified in the schedule of requirements without any change in unit price or other terms and conditions.

b) Purchaser's right to accept any bid and to reject any or all bids or cancel the bid The Purchaser reserves the right to accept or reject any bid, and to annul the bidding process and reject all bids at any time prior to award of contract, without thereby incurring any liability to the affected bidder or bidders or any obligation to inform the affected bidder or bidders of the grounds for the purchaser's action.

6.28. Notification of Award and Letter of Offer

Prior to the expiration of the period of bid validity, the Purchaser will notify the successful bidder in writing by registered letter or by email or fax. This would be treated as a Letter of Offer. At the same time, the Purchaser will send the bidder the contract form provided in the bidding documents for signature.

6.29. Acceptance of Award

Soon after the notification of award, the successful Bidder shall submit the letter of acceptance / confirmation to the HMSCL for the execution of contract along with Performance Security. The bidder will submit the performance security and signed contract form within 7 days. HMSCL reserves the right to extend this period by another 7 days. After 7 days or the extended period the notice of award shall be deemed to be withdrawn and Bid Security shall stand forfeited.

6.30. Performance Security

a) Within 7 days of the receipt of notification of award from the Purchaser or extended period as mentioned in 5.29, the successful bidder shall furnish the performance security in prescribed form in accordance with the conditions of contract.

6.31. Signing of Contract

a) Within 7 days of receipt of notification of award or extended period as mentioned in 5.29 the successful bidder shall sign the contract agreement. Failure of the successful bidder to comply with the requirement of Clause 5.30 shall constitute sufficient grounds for the annulment of the award and forfeiture of the bid security, in which event the Purchaser may make the award to the next lowest evaluated bidder or call for new bids.

End of section: VI

SECTION VII: CONTRACT DOCUMENT

CONTRACT FORM for BI PARTITE AGREEMENT

THIS CONTRACT is made on this_____day of_____ 20_____ **BETWEEN: - Haryana Medical Services Corporation Limited** having registered office at **Plot No. 9, DHL Square Building, 5th Floor, Sector- 22, IT Park Panchkula, Haryana** of the **first part** (**hereinafter called the "purchaser"**);

AND

_____ (**Name of Company**), having registered office at _____ (**Address**) of the **Second part** (**hereinafter called the "Manufacturer & Supplier"**);

WHEREAS the Purchaser is desirous to purchase certain Goods and ancillary services vide tender reference no. _____ dated_____ _____ **(Equipment Name*)*** and has accepted the bid of the supplier vide notice of award, Memo No _____dated_____. The supplier has agreed to the supply of those goods & Services as per the rate mentioned below: -

: Model Form of Contract

(To be executed on a Rs. 100/- Non-Judicial Stamp Paper bought in Haryana by the Successful Bidder)

(NO FIGURES IN NUMERALS OR WORDS SHALL BE FILLED UP INTHIS SAMPLE FORM AT THE TIME OF SUBMISSION OF TENDER)

This CONTRACT is made at Panchkula on the..... day of 2024

BETWEEN

FIRST PARTY

AND

HMSCL , Haryana

……., a firm represented herein by ……., aged …. years and having its Registered office at……. (Hereinafter referred to as "Successful Bidder" which expression shall unless repugnant to the context mean and include its successors and assigns) of the SECOND PART.

Whereas, HMSCL, Haryana invited a tender to vide **Tender Ref: .....for Selection of Aggregator for SMS gateway, WhatsApp Messaging Services, IVRS, and e-Mail services for State TB Cell, Haryana** as per the Scope of Work Section 4 prescribed in the Tender document.

Whereas HMSCL and the Successful Bidder in pursuance thereof have arrived at the following terms and conditions.

NOW THEREFORE

In consideration of the mutual protection of information herein by the parties hereto and such additional promises and understandings as are hereinafter set forth, the parties agree as follows:

1) Purpose

The purpose of this Agreement is to maintain in confidence the various Confidential Information, which is provided between HMSCL and System Integrator to perform the considerations (hereinafter called "Purpose") set forth in below:

2) Definition

a) For purposes of this Agreement, "Confidential Information" means the terms and conditions, and with respect to either party, any and all information in written, representational, electronic, verbal or other form relating directly or indirectly to the Purpose (including, but not limited to, information identified as being proprietary and/or confidential or pertaining to, pricing, marketing plans or strategy, volumes, services rendered, customers and suppliers lists, financial or technical or service matters or data, employee/agent/ consultant/officer/director related personal or sensitive data and any information which might reasonably be presumed to be proprietary or confidential in nature) excluding any such information which:

i. is known to the public (through no act or omission of the Successful Bidder in violation of this Agreement)

ii. is lawfully acquired by the Successful Bidder from an independent source having no obligation to maintain the confidentiality of such information.

iii. was known to the Successful Bidder prior to its disclosure under this Agreement.

iv. was or is independently developed by the Successful Bidder without breach of this Agreement (or)

v. is required to be disclosed by governmental or judicial order, in which case Successful Bidder shall give the HMSCL prompt written notice, where possible, and use reasonable efforts to ensure that such disclosure is accorded confidential treatment and also to enable the HMSCL to seek a protective order or other appropriate remedy at HMSCL's sole costs.

b) Confidential Information disclosed orally shall only be considered Confidential Information if: (i) identified as confidential, proprietary or the like at the time of disclosure, and (ii) confirmed in writing within Seven (7) days of disclosure.

3) No Licenses

This Agreement does not obligate either party to disclose any particular proprietary information; to purchase, sell, license, transfer, or otherwise dispose of any technology, services, or products; or to enter into any other form of business, contract or arrangement. Furthermore, nothing contained hereunder shall be construed as creating, conveying, transferring, granting or conferring by one party on the other party any rights, license or authority in or to the Confidential Information disclosed under this Agreement.

4) Disclosure

a) Successful Bidder agrees and undertakes that it shall not, without first obtaining the written consent of the HMSCL, disclose or make available to any person, reproduce or transmit in any manner, or use (directly or indirectly) for its own benefit or the benefit of others, any Confidential

Information save and except both parties may disclose any Confidential Information to their Affiliates, directors, officers, employees or advisors of their own or of Affiliates on a "need to know" basis to enable them to evaluate such Confidential Information in connection with the negotiation of the possible business relationship; provided that such persons have been informed of, and agree to be bound by obligations which are at least as strict as the recipient's obligations hereunder. For the purpose of this Agreement, Affiliates shall mean, with respect to any party, any other person directly or indirectly

Controlling, Controlled by, or under direct or indirect common Control with, such party. "Control", "Controlled" or "Controlling" shall mean, with respect to any person, any circumstance in which such person is controlled by another person by virtue of the latter person controlling the composition of the Board of Directors or owning the largest or controlling percentage of the voting securities of such person or by way of contractual relationship or otherwise.

b) The Successful Bidder shall use the same degree of care and protection to protect the Confidential Information received by it from the HMSCL as it uses to protect its own Confidential Information of a like nature, and in no event such degree of care and protection shall be of less than a reasonable degree of care.

c) The HMSCL shall not be in any way responsible for any decisions or commitments made by Successful Bidder in relying on the HMSCL's Confidential Information.

5) Return or Destruction of Confidential Information

a) The parties agree that upon termination/expiry of this Agreement or at any time during its currency, at the request of the HMSCL, the Successful Bidder shall promptly deliver to the HMSCL the Confidential Information and copies thereof in its possession or under its direct or indirect control, and shall destroy all memorandum, notes and other writings prepared by the Successful Bidder or its Affiliates or Directors, officers, employees or advisors based on the Confidential Information and promptly certify such destruction.

6) Independent Development and Residuals

Both parties acknowledge that the Confidential Information coming to the knowledge of the other may relate to and/or have implications regarding the future strategies, plans, business activities, methods, processes and or information of the parties, which afford them certain competitive and strategic advantage. Accordingly, nothing in this Agreement will prohibit the Successful Bidder from developing or having developed for it products, concepts, systems or techniques that are similar to or compete with the products, concepts, systems or techniques contemplated by or embodied in the Confidential Information provided that the Successful Bidder does not violate any of its obligations under this Agreement in connection with such development.

7) Injunctive Relief

The parties here to acknowledge and agree that in the event of a breach or threatened breach by the other of the provisions of this Agreement, the party not in breach will have no adequate remedy in money or damages and accordingly the party not in breach shall be entitled to injunctive relief against such breach or threatened breach by the party in breach.

8) Non-Waiver

a) No failure or delay by either party in exercising or enforcing any right, remedy or power hereunder

shall operate as a waiver thereof, nor shall any single or partial exercise or enforcement of any right, remedy or power preclude any further exercise or enforcement thereof or the exercise of enforcement of any other right, remedy or power.

b) This Contract shall remain in force during the Contract period of 30 months as per the Deliverable(s) and Scope of work from the date of signing of this contract. HMSCL may renew/extend the contract for a further period as may be agreed between the parties.

c) The Successful Bidder agrees to deliver the services as per the scope indicated in the Tender Scope of Work Section 4 of this Tender within the stipulated period prescribed by HMSCL at the cost arrived at in the PRICE BID. This cost is firm and not subject to enhancement.

d) The Contract or any part share of interest in it shall not be transferred or assigned by the Successful Bidder directly or indirectly to any person or persons whomsoever without the prior written consent of HMSCL.

e) Neither HMSCL nor the Successful Bidder shall be liable to the other for any delay or failure in the performance of their respective obligations due to causes, contingencies beyond their reasonable control such as:

   i. Natural phenomena including but not limited to earthquakes, floods and epidemics.

   ii. Acts of any Government authority domestic or foreign including but not limited to war declared or undeclared.

   iii. Accidents or disruptions including, but not limited to fire and explosions.

f) The RFP document in relation with this RFP shall be deemed to form and be read and construed as part of this Contract. The Tender enclosures, the offer submitted by the Successful Bidder, the finalized Terms and Conditions and the LoA/Work Order respectively will form part of this contract. Wherever the offer conditions furnished by the Successful Bidder are at variance with conditions of this contract or conditions stipulated in the RFP document, the final negotiated offer conditions shall prevail over the tender conditions furnished by the Successful Bidder.

9) Liquidated Damages (LD) – As per clause.7.11 of this RFP

10) Service Level Agreement

10.1) General Terms and Conditions

f) Necessary application-level support should be mainly at the server side. However, client level support shall be required when the issues are reported by department.

g) The successful bidder shall ensure system uptime more than 99%. The uptime will be monitored on a quarterly basis.

h) The initial contract is for a period of 3Years. The SLA will be monitored during this period.

i) The support persons shall handle the service calls and comply with the SLA. Any bugs or errors in the service shall be escalated to the support team for rectification.

j) The successful bidder will maintain logs for the entire contract period.

10.2) Operational Penalty charges

10.2.1) SMS

HMSCL expects 100% availability of services. Penalty needs to be imposed if the aforesaid limitations cross the declared limit,

SMS Category	**Description of SMS**	**Delivery Time***	**Penalty for delay delivery**
Priority-1	Higher Priority alerts (OTP)	Within 15 Seconds	10 times of per SMS cost
Priority-2	All other SMS except Bulk SMS	Within 30seconds	10 times of per SMS cost
Priority-3	Bulk SMS	Within 5minutes	10 times of Campaign/Batch value

Note: Delivery time is when SMS is sent at the SMS provider platform. The SMS sent by the HMSCL/Government of Haryana have to be delivered within the stipulated timelines.

10.2.2) WhatsApp

HMSCL expects 100% availability of services. Penalty needs to be imposed if the aforesaid limitations cross the declared limit.

SI.No	Measurement Parameter	Downtime in a Quarter	Penalty
1.	Number of hours the WhatsApp Business API services/ WhatsApp Communication Management solution is non-functional/ non accessible/ non-available/ nonresponsive in each case of outage	>=0 but <=2 Hours	No Penalty
2.		>=2 but <=8 Hours	1 % of monthly payment
3.		>=8 but hours <=16	2 % of monthly payment
4.		>=16 but <=24 Hours	5 % of monthly payment
5.		>=24 but <=48 Hours	7.5 % of monthly payment
6.		>=48 Hours	10 % of monthly payment
The penalty shall be calculated above the permissible downtime hours (downtime for maintenance or other reasons as approved by HMSCL). * **Note - The Penalty will not be applicable if WhatsApp servers will be down.**			

10.2.3) IVRS

Penalty needs to be imposed if the aforesaid limitations cross the declared limit.

Category	Description	Delivery Time Per Call	Penalty for delay
Voice Bound Call	Receiving call on the customer telephone/ mobile from IVR.	Within 30 Sec	5 times of per voice bound call cost

10.2.4) Bulk Mailer service

Uptime	Penalty
Uptime is greater than or equal to 99.50%	No Penalty

Uptime is less than 99.50% but greater than or equal to 98.00%	2% of cost of quarterly recurring payment
Uptime is less than 98.00% but greater than or equal to 96.00%	5% of cost of quarterly recurring payment.
Uptime is less than 96.00%	Penalty at an incremental rate of 1% of cost of quarterly recurring payment for every 0.1% lower than the stipulated uptime.

11) Termination of Contract – As per cl.7.8 of this RFP

12) Implementation Timeline and Deliverable – As per cl.9 of this RFP

13) Payment Terms – As per cl.13 of this RFP

Any notice to the successful Bidder shall be deemed to be sufficiently served, if given or left in writing at their usual or last known place of abode or business.

IN WITNESS WHEREOF the Parties have by duly authorized

Representatives set their respective hands and seal on the date first

above Signed

NOW THIS CONTRACT WITNESSETH AS FOLLOWS:

1. In this Contract words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to in DNIT, and they shall be deemed to form and be read and construed as part of this contract.
2. The following documents shall be deemed to form and be read and construed as part of this Contract viz.:

a. The Notice Inviting Tender

b. The Terms and Conditions of the Contract

c. The Schedule of Requirement d The Technical Specification

e. Any other document listed in the supplier's bid and replies to queries, clarifications issued by the purchaser, such confirmations given by the bidder which are acceptable to the purchaser, and the entire Addendum issued as forming part of the contract or any other terms and conditions which are mutually agreed in writing by both the parties.

f. The supplier's bid including enclosures, annexure, etc.

g. The Letter of Acceptance issued by the purchaser.

3. In consideration of the payments to be made by the Purchaser to the Supplier as hereinafter mentioned, the Supplier hereby covenants with the Purchaser to provide, the goods and services as agreed upon and to remedy defects therein in conformity in all respects with the provisions of the Contract.

4. The purchaser hereby covenants to pay the Supplier in consideration of the provision of the goods and services and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.

IN WITNESS where of the parties here to have caused this Agreement to be executed in accordance with their respective laws the day and year first above written.

In the presence of

Witness 1

Panchkula

(Purchaser)

Signature

Signature_____

Name_____

Person_____

Address _____

_____

Signed, Sealed and Delivered by the Said Haryana Medical Services Corporation Limited,

_____

Name of Authorized

Designation

Company Name_____

Company Address _____

In the presence of

Witness 2

Signature _____

Signature_____

Signed, Sealed and Delivered by the Said_____ (Name of the Manufacturer & Supplier.)

Manufacturer & Supplier.

Authorized

Name_____
Name_____

Address _____ Designation _____

Company Name_____

Company Address _____

End of section: VII

SECTION VIII; CONDITIONS FOR CONTRACT

SECTION VIII: CONDITIONS OF CONTRACT

8.1 Application: The Conditions of Contract shall be deemed to form and be read and construed as part of the agreement of Section VI.

8.2 Definitions: In this contract, the following terms shall be interpreted as indicated:

(a) "The Contract" means this agreement entered into between the Purchaser and the Supplier as recorded in the Contract Form signed by the parties, including DNIT, all the attachments and appendices thereto, and all documents incorporated by reference therein;

(b) "The Contract Price" means the price payable to the Supplier under the Contract for the full and proper performance of its contractual obligations;

(c) "Goods": hereinafter are deemed to include, without limitation, such equipment, spare parts, commodities, raw materials, components, intermediate products and products which the Vendor is required to supply pursuant to the Purchase Order or Conditions of this Contract.

(d) "Services" means services ancillary to the supply of the Goods, such as transportation and insurance, and other incidental services, such as installation, commissioning, inspecting and preparation of sites wherever applicable provision of technical assistance, training and other obligations of the Supplier covered under the contract;

(e) "CC" means the Conditions of Contract contained in this section.

(f) "The Purchaser" means the Organization purchasing the Goods, i.e Haryana Medical Services Corporation Ltd

(g) "The Supplier" means the individual or firm supplying the Goods under this Contract;

(h) Consignee site is the place(s) mentioned in the Schedule of Requirements and as per purchase order issued from time to time.

(i): This is a contract for the supply of stores at specified rates during the period covered by the contract.

(j) "Delivery period" means the period applicable up to completion of supply, installation, testing and commissioning of the equipment by the supplier at the Consignee site mentioned by the purchaser and accepted by the supplier.

8.3 Technical Specifications: The Goods & Services to be provided by the supplier under this contract shall conform to the technical specifications

and quality control parameters mentioned in "Technical Specification" Sections III of this document.

8.4 Patent Rights: The Supplier shall indemnify the Purchaser against all third-party claims of infringement of patent, trademark or industrial design rights arising from use of the Goods or any part thereof in India.

8.5 Performance Security: It would be read with Para 6-31 of Section VI

8.5.1 The Performance security submitted at the time of award of Contract will be valid for 7 years from the date of award of contract.

8.5.2 The Performance Security shall be denominated in India Rupees and shall be in the form of a Bank guarantee issued by a nationalized/ scheduled bank located in India and in the form provided in the bidding Document or any other form acceptable to the Purchaser.

8.5.3 The proceeds of the performance security shall be payable to the Purchaser as compensation for any loss resulting from the Supplier's failure to complete its obligations under the Contract. If loss suffered is more than the performance security than it shall be adjusted against the payments due and if cannot be adjusted it shall be recoverable as per law. If at any stage the performance security gets adjusted, then the supplier shall have to give fresh performance security to continue with this contract within seven days or the contract shall stand cancelled and purchases shall be made at the risk and cost of the supplier for the remaining contract period.

8. 5.**4The firms which are registered as Small Scale Industry unit of Haryana shall be required to submit the Performance security, as per Haryana Government Rules.**

8.6 **Packing**

8.6.1.The Supplier shall provide such packing of the Goods as is required to prevent their damage or deterioration during transit to their final destination as indicated in the Contract. The packing shall be sufficient to withstand, without limitation, rough handling during transit and exposure to extreme temperatures, salt and precipitation during transit and open storage. Packing case size and weights shall take into consideration, where appropriate, the distance of the Goods final destination and the absence of heavy handling facilities at all points in transit.

8.6.2.The packing, marking and documentation within and outside the packages shall comply strictly with such special requirements as shall be provided for in the Contract including additional requirements, if any, specified in Para 7.5.3 or subsequent instructions ordered by the Purchaser.

8.6.3.**Packing Instruction:** The Supplier will be required to mark separate packages for each consignee. Each package will be marked on three sides with proper paint/indelible ink, the following: i) Name of Tender ii) Tender Reference No. iii) Consignee Name & Address iv)Supplier's Name iii) Contents of the Box

8.7 **Inspection and Tests**

8.7.1. Pre-dispatch Inspection and Testing:

a) The supplier shall submit an Undertaking that the equipment conforms to laid down specifications and that the Goods supplied under this Contract are new, unused, of the most recent or current models and incorporate all recent improvements in design and materials unless provided otherwise in the Contract. It will also indicate the month and year of manufacturing on the bill/invoice and on the equipment. The supplier further warrants that the Goods supplied under this Contract shall have no defect arising from design, materials or workmanship or from any act or omission of the Supplier that may develop under normal use of the supplied goods in conditions in the country of final destination.

b) The supplier shall get each item inspected (and tested wherever applicable) on the manufacturer's premises before dispatch and submit an in house inspection report (and Test Certificate wherever applicable).

c) The Purchaser or its representative reserves the right for inspection and/or test any or all the items to confirm their conformity to the Contract specifications and quality, prior to dispatch from the manufacturer's premises. It is also open to the purchaser to send persons to draw samples for testing before dispatch of the consignment. The purchaser reserves the right for departmental or third party predispatch and/or post-dispatch Inspection of the goods. The Purchaser shall notify the Supplier in writing of the identity of any representatives retained for these purposes.

d) The purchaser can carry out inspection for assessing the capacity/capability/eligibility of the firm to make supplies and to ensure that good manufacturing practices are being followed by manufacturer. Such inspection and clearance will not prejudice the right of the consignee to inspect and test the equipment on receipt at destination.

e) If the equipment fails to meet the laid down specifications or defective consignment the supplier shall take immediate steps to remedy the deficiency or replace the defective equipment to the satisfaction of the Purchaser.

f) Cost of testing will be recovered from the supplier or may be deducted from payment due.

g) Where conducted on the premises of the Supplier all reasonable facilities and assistance including access to drawings and production data shall be furnished to the inspectors at no charge to the Purchaser.

8.7.2 Post-Dispatch Inspection and Testing:

a) The inspections and test may be conducted on the premises of the consignee at point of delivery and/or at the Goods final destination.

b) The Purchasers right to inspect, test and, where necessary, reject the Goods' arrival in at site shall in no way be limited or waived by reason of the Goods having previously been inspected, tested and passed by the Purchaser or its representative prior to the Goods dispatched.

8.7.3 Should any inspected or tested Goods fail to conform to the specifications, the Purchaser may reject them and the Supplier shall either replace the rejected Goods or make all alternations necessary to meet specification requirements free of cost to the Purchaser.

8.8 SUPPLY OF MEDICAL EQUIPMENT BY THE BIDDER:

8.8.1 Delivery Period: -

a) Delivery must be completed for entire ordered quantity before the end of 30 days from the date of issue of purchase order at the destinations mentioned in the purchase order, if the above day happened to be a holiday for Haryana, the supply should be completed on the next working day.

b) In case of imported product, the Delivery must be completed for entire ordered quantity before the end of 60 days from the date of issue of purchase order at the destinations mentioned in the purchase order, if the above day happened to be a holiday for Haryana, the supply should be completed on the next working day. The Firm will submit the proof for import of product as per tender clause.

8.8.2 Installation and Commissioning: - The installation and commissioning of items must be completed within 15 days beyond the supply period mentioned above.

8.8.3 Delayed Supply:

a) If the Supplier fails to deliver any or all of the Goods or to perform the Services within the period(s) specified in the contract, the Purchaser shall, without prejudice to its other remedies under the Contract, deduct from the Contract price, as liquidated damages, a sum equivalent to 2.5 percent per week or part of week on per day basis for the first week, on the value of the goods which come in the category of delayed supply. In case of delay beyond 1 week the LD would be levied as per the following on week or part of week basis, on the value of the goods which come in the category of delayed supply:

8.8.4 Delay Period / Deduction (on the value of the goods of delayed supply):

1st Week,	2.5%
2nd Week	5%

3rd Week	7.5%
4th Week	10%

Once the maximum is reached, HMSCL may consider termination of the Contract.

b) Penalty shall be charged on the vendor if the installation and commissioning of items not completed within 15 days beyond the supply period i.e. 30/60 days, the rate of plenty will be charged as under:

1st Week,	**2.5%**
2nd Week	**5%**
3rd Week	**7.5%**
4th Week	**10%**

8.8.5 NON SUPPLY: Non supply will be considered if the supplier fails to supply even after the period of delay supply. In case of delay due to any reason attributable to the purchaser it will not be instance of non-supply.

In case of non-supply, Managing Director, HMSCL reserves the right to cancel the purchase order and initiate the proceeding of risk purchase.

Risk purchase would be the purchase at the risk and the cost of the supplier. If the bidder fails to supply the ordered material, the purchase shall be free to arrange /procure the items from any other sources or in the open market or from any other Bidder and the extra cost incurred shall be recovered from the supplier. The losses sustained in the process shall be recovered from the security Deposit or from any other money due/ to be due to the supplier and in the event of such amount being insufficient; the balance will be recovered separately from the supplier.

8.8.6 BLACKLISTING & FORFEITURE OF BANK GUARANTEE: In case of Non-Supply and declining of offer to enter into CMC or non-rendering of warranty and CMC services, the performance bank guarantee of the supplier will be forfeited. The item will be purchased through the procedure of Risk Purchase at the risk and the cost of the supplier and in addition the supplier and the original manufacture is liable to the blacklisted/ Debarred for a period of three years. No further purchase order will be given to the firm for that item during the period of blacklisted/ Debarment. Furnishing of wrong information and false documents will make the firm ineligible and liable to be Debarred/ blacklisted. In case any document submitted by the bidder or his authorized representative is found to be forged,

false or fabricated, the bid will be rejected and Bid Security Deposit/ Performance Security will be forfeited. Bidder /his representative may also be blacklisted/banned/debarred.

8.8.7 QUALITY FAILURE: If any inspected or tested Goods fail to conform to the specifications, the Purchaser may reject them and the Supplier shall either replace the rejected Goods or make all alternations necessary to meet specification requirements free of cost to the Purchaser.

8.8.8 NON PERFORMANCE OF CONTRACT PROVISIONS: Non-performance of
contract provisions, will disqualify a firm to participate in the tender for a period of 3 (three) years and its security deposit will be forfeited and no further purchase order will be given to that firm.

8.8.9 Delivery of Documents

Before delivery of the Goods, the Supplier shall notify the Purchaser and the Insurance Company, if applicable by post or fax or email the full details of shipment including the Contract number, railway receipt number/Transport Receipt No and date, description of Goods, quantity, names of the consignee etc.
The Supplier shall mail the following documents to the consignee and the Purchaser, with a copy to the Insurance Company if applicable.

(i) Three Copies of Supplier invoice (in triplicate) showing Goods description, quantity, unit price, total amount; (two copies to consignee and one copy to purchaser)

(ii) Railway receipt/Transport Receipt.

(iii) Insurance Certificate wherever applicable;

(iv) Manufacturer's/ Supplier's test Certificate;

(v) Manufacturer's/ Supplier's Guarantee Certificate with respect to compliance with specifications;

(vi) Inspection Certificate issued by the nominated inspection agency, and the Supplier's factory inspection report;

The above documents shall be delivered to the Consignee along with the supplies A copy of all documents would also be delivered to the purchaser.

8.9 Liquidated Damages

8.9.1 Subject to Clause 8.8.4, if the Supplier fails to deliver any or all of the Goods or to perform the Services within the period(s) specified in the

Contract, the Purchaser shall, without prejudice to its other remedies under the Contract, deduct from the Contract Price, as liquidated damages, a sum equivalent to 2.5 percent per week or part of week on per day basis for the first week, on the value of the goods which come in the category of delayed supply as mentioned in para 8.8.4 above. In case of delay beyond 1 week the LD would be levied as per the following on week or part of week basis, on the value of the goods which come in the category of delayed supply as mentioned in para 7.8.4 above.:

1st Week	2.5 %
2nd Week	5%
3rd Week	7.5%
4th Week	10%

part thereof until actual delivery or performance, up to a maximum deduction of 10 percent of the delayed Goods or Services contract price. Once the maximum is reached, the Purchaser may consider termination of the Contract.

8.10 Insurance**:** The Goods Supplied under the Contract shall be fully insured in Indian Rupees against the loss or damage incidental to manufacture or acquisition, transportation, storage and delivery as per the following requirements:
For delivery of goods at site, the insurance shall be obtained by the Supplier in an amount equal to 110% of the value of the goods from "Warehouse to consignee" (Final destinations) on "All Risks" basis including War Risks and Strike.

8.11 **Transportation:** Where the Supplier is required under the Contract to transport the Goods to a specified place of destination, transport to such place of destination shall be arranged by the Supplier at no cost to the purchaser.

8.12 **Incidental Services:**

The supplier may be required to provide any or all of the following services,

8.12.1 Unloading, safe storage and handling of consignment of site

8.12.2 Performance or supervision of the on-site assembly and/or start-up of the supplied Goods;

8.12.3 Furnishing of tools required for assembly and/or maintenance of the supplied Goods;

8.12.4 Furnishing of detailed operations and maintenance manual for each appropriate unit of supplied Goods.

8.12.5 Performance or supervision or training or maintenance and/or repair of the supplied Goods, for a period of time agreed by the parties, provided that this service shall not relieve the Supplier of any warranty obligations under this Contract.

Prices charged by the Supplier for incidental services, have to be included in the contract Price of the Goods.

8.13. MAINTENACE CONDITIONS

(a) All the Major equipments shall have 3 years compulsory warranty and 4 years of Comprehensive Maintenance Contract (CMC). For minor equipment there shall be 3 years replacement warranty.

(b) Equipment with the basic cost (excluding taxes) of less than or equal to Rs 50000/- per unit would be considered as minor equipment and Equipment with basic cost (excluding taxes) more than Rs 50000/- per unit would be considered as major equipment for the purpose of warranty, CMC and sampling.

(c) For goods not requiring installation, warranty period shall start from the date goods have been delivered to and accepted at the final destination by the authorized person indicated in the contract and shall remain valid for 3 years.

(c) For goods requiring installation Warranty shall start from the date goods have been installed and accepted at the final destination indicated in the contract by the authorized person and remain valid for 3 years

(d) The rate and cost of CMC on yearly basis shall be as per agreement in Section VI. The supplier has to enter into CMC contract on the completion of warranty period and declining to enter into CMC contract by the supplier would result in forfeiture of PBG and the supplier would be liable for debarring and blacklisting. The Indenting Department/ Consignee/Purchaser shall have option to enter into CMC after the expiry of warranty period.

(e) **Warranty period & CMC includes:**

- Preventive Maintenance Visit one in each quarter.
- Emergency visit any no. of times.
- Testing & Calibration as per Technical / Service/ Operational Manual of Manufacturer. If not mentioned, then it will be according to purchaser requirement.
- Labour, Spare Parts and any other logistics.
- All Software Updates.
- Replacement of any Spare Parts/ Component.
- Replacement of all consumables including Batteries of UPS and Equipment.

- Wherever required UPS/ CVT to be provided in order to avoid the excuse of Short Circuiting and Voltage fluctuations.
- In short during this period it is the responsibility of the Manufacturer & Bidder to run the machine with no extra financial burden on the purchaser.
- Only in case of Physical damage the expenses will be borne by the purchaser.
- If the bidder is not a Manufacturer, then the Warranty & CMC Contract will be Tripartite Agreement between the purchaser Bidder & Manufacturer.
- The manufacturer & Bidder are liable for National Blacklisting in case they don't comply with the Conditions of the Contract.

(f) **Cost of CMC for whole period of CMC will be calculated for Price Evaluation.**

(g) The Installation, Warranty and CMC will be the responsibility of the original Manufacturer and the undertaking to that effect has to be furnished in support thereof by the original Manufacturer. In case of failure to deliver the post contract services both the bidder and the original manufacturer would be liable to be blacklisted / debarred for the period of 3 years in addition to forfeiture of performance security.

(h)In case of any complaint/ Defect in the equipment during the warranty/ CMC period, the firm must attend the same within 24 hrs from the date and time of lodging complaint at the complaint/helpdesk number of the service provider (i.e. response time) and shall repair the same with in 72hrs. In case of delay beyond 72 hrs., the firm has to provide a standby machine so that services are not hampered. In case the firm fails to provide a standby machine the penalty will be levied as per following: -

- During the warranty period beyond 72 hrs of lodging the complaint 0.5% of the base cost of equipment (excluding taxes) per day will be levied as penalty for a maximum of 28 days.
- If the machine is under CMC period, beyond 72 hrs of lodged complaint, the penalty of 5 % of the annual cost of CMC per day will be levied for 7 days. Beyond the 7 days' period 20 % of the annual cost of CMC per day will be levied upto 28 days.
- In both the cases if the firm fails to repair the machine within specified time the performance Security will be forfeited and the blacklisting/Debarring procedure will be initiated.

(i) The supplier will furnish the detail of service centres address in the Haryana State along with their representative names, contact numbers and email to the Department.

(j) The payment for the maintenance services will be made at the end of each quarter based on the certificate from the end user for completion of preventive maintenance and break down maintenance as per schedule.

(k) An uptime guarantees of 95% shall be maintained out of total usage period of the equipment during warranty and maintenance period by the supplier and certificate to this effect would be provided by the end-user.

8.14 Training:

☐ Training at the Time of Installation & once in a year at the time of Preventive Maintenance Visit for all the period of Warranty & CMC.

8.15.1 PAYMENT Process

a) Payment for Goods and Services shall ordinarily be made in Indian Rupees by HMSCL.

b) No advance payment shall be made.

c) For the equipment not requiring installation, HMSCL shall make 100% payment within 60 days of the supply of the equipment at the designated site.

d) For the equipment requiring installation HMSCL shall make 80% payment within 60 days of the supply of the equipment at the designated site. Balance payment of 20% will be made against "Final Acceptance Certificate" issued by the Indenting Department.

The final acceptance certificate shall be issued by the indenting department on the completion of installation, commissioning, training, successful running of equipment (at least 8 weeks) and handing over the equipment to the indenting department.

e) In case the terms of conditions of purchase of the equipment provide for Letter of Credit (LC) then following shall be applicable: -

i) On shipment of the goods the HMSCL shall for the foreign currency portion make payment of eighty 80% of the net CIP price (CIP price less Indian Agency Commission) of the goods shipped in the currency as specified in the contract through irrevocable, non-transferable Letter of Credit (LC) opened in favour of the supplier bank in his country and upon submission of documents specified hereunder: -

- *Four copies of supplier' s invoice showing contract number, goods description, quantity, unit price and total amount.*
- *Original and four copies of the negotiable clean, on board Bill of Lading/ Airway Bill, marked freight pre paid and four copies of non-negotiable Bill of Lading/ Airway bill.*
- *Four copies of packing list indentifying contents of each package.*

- *Insurance Certificate and documents also to be submitted for payment of LC confirming that dispatch documents has already been sent to all concerned as per the contract within 24 hours.*
- *Manufacture's /Supplier's warranty Certificate.*
- *Inspection Certificate issued by the nominated inspection agency, if applicable as per contact.*
- *Manufacturer's own factory inspection report*
- *Certificate of origin by the chamber of commerce of concerned country.*
- *Inspection Certificate for the dispatched equipments issued by recognized/ reputed third party agency*

ii) On acceptance of the goods the HMSCL shall make payment of Balance payment of 20% of net CIP price of goods through irrevocable, non- transferable Letter of Credit (LC) opened in favour of the Foreign Principal in a Bank in his country, subject to recoveries, if any. The HMSCL shall make payment of this Balance 20% only against "Final Acceptance Certificate "issued by the Indenting Department.

The final acceptance certificate shall be issued by the indenting department on the completion of installation, commissioning, training, successful running of equipment (at least 8 weeks) and handing over the equipment to the indenting department.

f) If there is a delay in supply or installation liquidated damages would be levied as per clause 4.3 mentioned above.

Payment for Goods and Services shall be made in Indian Rupees as follows: **No advance payment is payable.**

8.15.2 The purchaser has an option to make payment by means of Cheque or through RTGS (Real time Gross Settlement)/Core Banking/NEFT/Demand Draft (DD). The Bidder shall furnish the relevant bank details to make the payment through RTGS/core banking/NEFT.

The payment would be made by ordering authority within 60 days from the date of supply/successful installation of the Equipment.

In case the material offered for inspection by the firm fails to meet the specifications stipulated in NIT/Order/ contract and the samples are rejected by the inspection committee the indenting department will have the right to levy a penalty @ 0.1 % of the total order value. In case the material offered for inspection fails during the second inspection also the purchaser will have the right to increase the penalty @ 0.25% of the total order value. In case the material offered for inspection fails during the third inspection also the purchaser the supplier will be liable for penal action

including forfeiture, risk purchase, debarring/ blacklisting in future and no further opportunity for inspection would be provided to the supplier firm.

8.16 PRICE FALL CLAUSE((Both by the Bidder and Manufacturer): If at any time during the execution of the contract the controlled price becomes lower or the contract reduces the sale price or sells or offer to sell such stores as are covered under the contract, to any person organization including the purchaser or any department of Central Government/State Government at a price lower than the price chargeable under the Contract, he shall forthwith notify such reduction or sale or offer of sale to the purchaser and the price payable under the contract for the store supplied after the date of coming into force of such reduction or sale or offer of sale shall stand correspondingly reduced. A undertaking to this effect must be submitted along with tender.

8.17. RIGHT TO VARY QUANTITY

- The Department/HMSCL reserves the right to increase or decrease the quantities anytime during the tender process or thereafter.
- The Department/HMSCL reserves the right to alter the consignee location anytime during the tender process or thereafter.
- The quantity of equipments originally indicated in the bidding document may vary without any change in the unit prices and other terms and conditions of the bid and the conditions of contract.
- If the HMSCL procures less than the quantity indicated in the bidding documents the bidder shall not be entitled for any claim or compensation except otherwise provided in the conditions of contract.
- For items which have been tendered for one-time purchase, their rates shall be free zed for 1 year from the date of award of contract.

8.18 Proprietary Item & Single Qualifier

8.18.1 Proprietary Item:

The Indenting Department after the approval from the Administrative Secretary of the Department shall forward the demand to the HMSCL for the purchase of such Proprietary item. The Indenting Department shall also furnish to the HMSCL the justification highlighting the urgency and need for purchase of such Proprietary item. For proprietary

Equipment/Implant the supplier shall furnish certificate to this effect from the licensing authority/appropriate authority.

8.18.2 <u>Single Qualifier:</u>

- If there is only single qualifier after Second time of tendering, then it may be considered after price justification.

8.19. Delays in the Supplier's Performance

8.19.1 Delivery of the Goods and performance of the Services shall be made by the Supplier in accordance with the time schedule specified by the Purchaser in its Schedule of Requirements.

8.20 Termination for Default

(a) The Purchaser may, without prejudice to any other remedy for breach of contract, by written notice of default sent to the supplier, terminate the Contract in whole or part if

(i) the Supplier fails to deliver any or all of the goods within the time period(s) specified in the Contract, or within any extended period granted by the Purchaser or

(ii) if the Supplier fails to perform any other obligation(s) under the Contract; or

(iii) if the supplier, in the judgment of the Purchaser, has engaged in fraud and corruption, in competing for or in executing the contract.

(b) In the event, the Purchaser terminates the Contract in whole or in part, the Purchaser may procure, upon such terms and in such manner as it deems appropriate, Goods or Services similar to those undelivered, and the Supplier shall be liable to the Purchaser for any additional costs for such similar Goods. However, the Supplier shall continue the performance of the Contract to the extent not terminated.

8.21 Termination for Insolvency

(a) The Purchaser may at any time terminate the Contract by giving written notice to the Supplier, if the Supplier becomes bankrupt or otherwise insolvent.

8.22 Termination for Convenience.

(a) The Purchaser, may by written notice sent to the Supplier, may terminate the Contract, in whole or in part, at any time for its convenience

8**.23 FORCE MAJEURE:**

The terms and conditions hereof shall not be applicable in case of Force Majeure. Neither Haryana Medical Services Corporation Limited nor the supplier shall be considered in default in the performance of their respective obligations herein above if such performance is prevented or delayed because of act of GOD, natural calamities, War, Flood, Hostilities, Revolution, Civil Commotion, Strike, Epidemic, Accident or Fire, or because of Law & Order Proclamation, Regulation or Ordinance

of any Govt. of any subdivision thereof of Local Authority. The bidder shall be entitled to the benefit of this clause only if he informs in writing the circumstances amounting to Force Majeure to Haryana Medical Services Corporation Limited (HMSCL) for each consignment/dispatch separately within 72 hours of the happening thereof by fax/e-mail immediately, followed by a confirmatory letter sent by Registered Post with acknowledgement due.

8.24. Resolution of Disputes

8.24.1 The Purchaser and the supplier shall make every effort to resolve amicably by direct informal negotiation any disagreement or dispute arising between them under or in connection with the Contract.

8.24.2 If, after thirty (30) days from the commencement of such informal negotiations, the Purchaser and the Supplier have been unable to resolve amicably a Contract dispute, either party may require that the dispute be referred to the Arbitrator, the Additional Chief Secretary /Principal Secretary (Health) to the Government of Haryana, whose decision shall be final and binding on both the parties in accordance with the Arbitration and Conciliation Act 1996. The venue of arbitration shall be at Panchkula.

8.25. Governing Language

8.25.1 The contract shall be written in English language. English language version of the Contract shall govern its interpretation. All correspondence and documents pertaining to the Contract which are exchanged by the parties shall be written in the same language.

8.26. Applicable Law The Contract shall be interpreted in accordance with the laws of the Union of India and Govt of State.

8.27. Taxes and Duties

Suppliers shall be entirely responsible for all taxes including service tax, duties, license fees, octroi, road permits, etc., incurred until delivery of the contracted Goods to the Purchaser.

8.28 Nonperformance of contract provisions:

Non-performance of contract provisions, will disqualify a firm to participate in the tender for a period of 3 (three) years and its security deposit will be forfeited and no further purchase order will be given to that firm.

8.29 RATE CONTRACT CONDITIONS: HMSCL if decides to enter into rate contract for any medical equipment then following would apply: -

a) Validity of the Rate Contract will be for two years from the date of finalization of the contract.

b) In case of exigencies the rate contract period can be extended further by mutual consent of both parties for up to another 6 months by MD, HMSCL and another 24 months by ACS, Health. In Case the RC is

finalized within the extension period the new RC would over-ride the extended RC which would lapse.

8.30 General conditions:

a. Till the tendering process is not initiated by the HMSCL on its own, the process of risk purchase, debarring, blacklisting along with the penal clause will be handled by HMSCL on its own.

b) Furnishing of wrong information and false documents will make the firm ineligible and liable to be debarred/blacklisted from participation.

c) In case of any document submitted by the bidder or his authorized representative is found to be forged, false or fabricated, the bid will be rejected and Bid Security Deposit/Performance Security will be forfeited. Bidder/his representative may also be blacklisted/banned/debarred. Report with police station may also be filed against such bidder/his representative.

d) Undertaking by the firm that it would own responsibility of any damage arising because delay in supply, non-supply or supply of poor quality of equipment/ implant.

e) Import licence is required for direct import of equipment/implants. No facility regarding import licence for raw materials etc can be given

f) The supplier is bound to supply the products anywhere in Haryana.

g) The Performance Security will be equal to 3% of the estimated purchases to be made in two years in case of Rate Contract or estimated value of purchase in case of other cases or as per instructions issued by Supplies & Disposals Department, Haryana.

h) After the expiry of the Rate Contract, the vendor will be free to submit fresh Performance Security equivalent to 3% of the value of actual stock of the particular good/s available in HMSCL warehouses, in which case his original Performance Security will be released.

i) regarding such legal aspects of submission of the Bids.

j) It will be the responsibility of the Bidder that all factors have been investigated and considered while submitting the Bids and no claim whatsoever including those of financial adjustments to the contract awarded under this tender will be entertained by HMSCL. Neither any time schedule nor financial adjustments arising thereof shall be permitted on account of failure by the Bidder to appraise themselves.

k) The Bidder(s) shall be deemed to have satisfied itself fully before Bidding as to the correctness and sufficiency of its Bids for the contract and price quoted in the Bid to cover all obligations under this Tender.

l) It must be clearly understood that the Terms and Conditions and specifications are intended to be strictly enforced. No escalation of cost in the Tender by the Bidder will be permitted throughout the period of Agreement or throughout the period of completion of contract whichever is later on account of any reasons whatsoever.

m) The Bidder(s) shall make all arrangements as part of the contract to provide SMS Gateway, WhatsApp Chatbot Messaging Services, IVRS and e-Mail services to for State TB Cell, Haryana at their own cost and transport.

8.31 Indemnity:

The Managing Director, HMSCL, all employees of HMSCL shall remain at all times fully indemnified and the supplier shall keep every concerned Department duly indemnified against any chemical analysis or statutory inspections/check during the shelf life of the items supplied. It is made clear that no suit, prosecutions or any legal proceedings shall lie against the Managing Director, HMSCL or any other officer/official of the State Govt./Corporation for anything that is done in good faith or intended to be done on pursuance of the tender.

8.32 Area of jurisdiction:

All disputes concerning to this tender, if any shall be subject to the Civil jurisdiction of Municipal Limits of Panchkula (Haryana) where the registered office of the HMSCL is located.

8.33 Arbitration: In case of any dispute, the same will be referred to the Arbitrator, the ACS/Principal Secretary (Health) to the Government of Haryana whose decision shall be final and binding on both the parties. Subject as aforesaid, the provision of the Arbitration & Conciliation Act, 1966 shall apply to all proceeding of this Act.

8.34 Fraudulent and corrupt practices <u>For bidders & suppliers</u>:

HMSCL requires that the bidders, suppliers and contractors and their authorized representatives/agents observe the highest standard of ethics during the procurement and execution of such contracts. In pursuance of this policy, the purchaser; defines, for the purposes of this provision, the terms set forth below as follows:

(i) "corrupt practice" is the offering, giving, receiving or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party (*"another party" refers to a public official acting in relation*

to the procurement process or contract execution]. In this context, "public official" includes staff and employees of other organizations taking or reviewing procurement decisions.

(ii) "fraudulent practice" is any act or omission, including a misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation (*a "party" refers to a public official; the terms "benefit" and "obligation" relate to the procurement process or contract execution; and the "act or omission" is intended to influence the procurement process or contract execution).*

(iii) "collusive practice" is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party [*"parties" refers to participants in the procurement process (including public officials) attempting to establish bid prices at artificial, non - competitive level].*

(iv) "coercive practice" is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party (*a "party" refers to a participant in the procurement process or contract execution).*

(v) "obstructive practice" is:

deliberately destroying, falsifying, altering or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede a investigation into allegations of a corrupt, fraudulent, coercive or collusive practice; and/or threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; oracts intended to materially impede the exercise of the purchaser's inspection and audit rights provided for under sub-clause (e) below

(Any action taken by a bidder, supplier, contractor, or by their authorized representatives/agent, to influence the procurement process or contract execution for undue advantage is improper and is liable for following actions) HMSCL may take following actions in case a bidder/ supplier is found guilty

i) will reject a proposal for award if it determines that the bidder considered for award has, directly or through an agent, engaged in corrupt, fraudulent, collusive, coercive or obstructive practices in competing for the contract in question;

ii) will cancel the contract if the purchaser determines at any time that the bidder, supplier and contractors and their sub-contractors engaged in corrupt, fraudulent, collusive, or coercive practices.

iii) will sanction a firm or individual, including declaring ineligible, either indefinitely or for a stated period of time, to be awarded a contract if it at

any time determines that the firm has, directly or through an agent, engaged in corrupt, fraudulent, collusive, coercive or obstructive practices in competing for, or in executing, a contract; and

iv) will have the right to inspect the accounts and records of the bidders, supplier, and contractors and their subcontractors/authorized representatives and to have them audited by auditors appointed by the purchaser.

End of section: VIII

SECTION IX: FORM AND FORMATS

SECTION 9.1 MANUFACTURER'S AUTHORISATION FORM

No..... dated.....

To

.....

.....

Dear Sir,

IFB No._____

We _____ who are established and reputable manufacturers of _____ having factories at _____ and _____ do hereby authorize M/s._____ (Name and address of Representative) to submit a bid, and subsequently negotiate and sign the contract with you.

I hereby declare :-

- ***That this bidder is the sole authorized bidder for this Tender***
- ***That I am fully responsible for all the documents submitted by this bidder.***
- ***That I am fully responsible for Supply, Installation, / Warranty & CMC.***
- ***I certify that the Spare Parts of the quoted model will be available for 10 Years.***
- ***In case the bidder does not abide by the rules and regulation of agreement than i am fully responsible for that.***

Yours faithfully,

(Name)

For and on behalf of M/s._____

(Name of manufacturers) Note:.

A letter of authorization from the Board of Directors / appropriate authority authorizing the Tender submitting authority or a Power of Attorney should be submitted in the tender; otherwise, the Bids will be summarily rejected.

SECTION-9.2

MANDATE FORM

01 Company Name

02 Postal Address of the company with Telephone No., Fax No. and Mail I.D. 03 Name of the Managing Director / Director /Manager Mobile No. / Phone No. Email I.D.

04 Name and Designation of the authorized company official Mobile No. E-mail ID

05 Name of the Bank.
Branch Name& address. Branch Code No.
Branch Manager Mobile No. Branch Telephone no. Branch E-mail ID

06 9 digit MICR code number of the bank and,branch appearing on the MICR cheque issued by the bank.

07 IFSC code of the Branch

08 Type of Account (Current / Savings).

09 Account Number (as appear in cheque book)

(In lieu of the bank certificate to be obtained, please attach the original cancelled cheque issued by your bank for verification of the above particulars). I /We hereby declare that the particulars given above are correct and complete. If the transaction is delayed or not effected at all for reasons of incomplete or incorrect information, I would not hold Managing Director, HMSCL on behalf of Govt. of Haryana responsible. I have read the conditions of the tender/agreement entered and agree to discharge the responsibility expected of me / from the company as a bidder /successful bidder.

Date: Company Seal
Signature

Place: (Name of the person signing & designation)

(Authorized Signatory)

SECTION 9.3

AFFIDAVIT: For Price Fall Clause (Both by the Bidder and Manufacturer) (On 100 Rs. Stamp Paper)

(An undertaking to this effect must be submitted along with tender)

I/We M/s …… agree undertake that If at any time during the execution of the contract the controlled price becomes lower or the contract reduces the sale price or sells or offer to sell such stores as are covered under the contract, to any person organization including the purchaser or any department of Central Government/State Government at a price lower than the price chargeable under the Contract, he shall forthwith notify such reduction or sale or offer of sale to the purchaser and the price payable under the contract for the store supplied after the date of coming into force of such reduction or sale or offer of sale shall stand correspondingly reduced. A undertaking to this effect must be submitted along with tender.

Date:

Place: Authorized Signatory

SECTION 9.4

(On 100 Rs. Stamp Paper)

AFFIDAVIT for not having been blacklisted. (Both by the Bidder and Manufacturer)

We, M/s _____ hereby declare that: -

A. A (name and address) bidder and his manufacturer (Only Manufacturer in case the bidder is manufacturer) has not been convicted of an offence- (a) under the Prevention of Corruption Act, 1988; or (b) the Indian Penal Code or any other law for the time being in force, for causing any loss of life or property or causing a threat to public health as part of execution of a public procurement contract.

B. (Name and address) bidder and his manufacturer (Only Manufacturer in case the bidder is manufacturer) has not been blacklisted/debarred by Govt of Haryana or by any other state.

Date:

Place: Authorized Signatory

SECTION 9.5:
PERFORMANCE SECURITY FORM

To : _____ (Name of Purchaser)
WHEREAS ..... (Name of the Supplier) herein called
"the Supplier" has undertaken, in pursuance of Contract No..... dated,
..... to
supply ..... (Description of Goods and
Services) hereinafter called
"the Contract".
AND WHEREAS it has been stipulated by you in the said Contract that the Supplier shall furnish you with a Bank Guarantee by a recognized bank for the sum specified therein as security for compliance with the Supplier's performance obligations in accordance with the Contract.

AND WHEREAS we have agreed to give the Supplier a Guarantee
THEREFORE WE hereby affirm that we are Guarantors and responsible to you, on behalf of the Supplier, upto a total of .....
(Amount of the Guarantee in Words and Figures) and we undertake to pay you, upon
your first written demand declaring the Supplier to be in default under the Contract and without cavil or argument, any sum or sums within the limit of
.....
(Amount of Guarantee) as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein.

This guarantee is valid until the ..... day of ..... 20.....

Signature and Seal of Guarantors

.....
.....

.....
.....
.....
.....

Date ..... 20 .....

Address
.....
.....
.....

.....
.....

Annexure-9.6

Haryana Government Order

Government of Haryana
Department of Industries & Commerce

ORDER

25 OCT 2016
Diary No. 7348

G.O. No. 2/2/2016- 4IBII(1) Dated: 20/10/2016

Subject: Haryana State Public Procurement Policy for MSMEs - 2016.

Enabling provisions have been made in the Micro, Small & Medium Enterprises (MSMEs) Development Act, 2006 for the Government to notify preferences and policies for Procurement of Goods & Services produced and supplied by Micro & Small Enterprises to the Govt. Departments/ Agencies from time to time in order to facilitate promotion and development of Micro & Small Enterprises. In this direction, the Ministry of Small Scale Industries, Govt. of India vide its order of dated 23.03.2012 has notified "Public Procurement Policy for Micro & Small Enterprises (MSEs) - 2012"

2. The matter regarding acceptance of GOI Public Procurement Policy for MSEs-2012 for its implementation in the State of Haryana was under consideration of the State Government. The matter was examined and it was observed that the manufacturing Micro & Small Enterprises (MSEs) with their manufacturing facilities based in Haryana (including Khadi & Village Industrial Units) needs to be offered a competitive protection, especially in terms of Tender Fee, Earnest Money Deposit, Performance Security, Past Performance/ Experience, Purchase Preference & Turnover imposed by the procuring Departments/ Govt. Agencies as part of its Qualifying Requirements, so that they become eligible to bid and compete. Further, it was also observed that the manufacturing (newly established/ making first entry into Public Procurement) Medium Enterprises with their manufacturing facilities based in Haryana needs to be offered a competitive protection in terms of Past Performance/ Experience & Purchase Preference imposed by the procuring Departments/ Govt. Agencies as part of its Qualifying Requirements to enable them to participate in Public Procurement.

3. Accordingly, it has been decided to extend special benefits/ concessions to the Haryana based Micro, Small & Medium Industrial Enterprises in the State Public Procurement as under:-

A. Concessions/ benefits to Micro & Small Enterprises (MSEs):-

Sr. No.	Area as part of Qualifying requirements	Concessions/ benefits allowed to MSEs	Eligibility
i.	Tender Fee	Exemption on the payment of Tender Fee subject to fulfillment of conditions as per eligibility	Manufacturing Micro & Small Enterprises (MSEs) (including Khadi & village Industries/ Units) who have filed Entrepreneur Memorandum in Haryana in respect of the quoted items, participate directly in tender and not through any intermediaries (their dealers/ agents/ distributors), will not subcontract to any other firm and to carry the entire manufacturing at their enterprise. *Concerned MSE will be required to submit the copy of Entrepreneurs Memorandum in respect of its category of Micro/ Small issued to the firm by the Industries Department Haryana as part of Technical Bid.*
ii.	Earnest Money Deposit (EMD)	Exemption on the payment of Earnest Money Deposit (EMD) subject to fulfillment of conditions as per eligibility	
iii.	Performance Security	90% concession on Performance Security as applicable to other Haryana based firms subject to fulfillment of conditions as per eligibility	
iv.	Turnover	a. Micro Enterprises: Concession of 80% on Turnover condition imposed as qualifying criteria b. Small Enterprises: Concession of 70% on Turnover condition imposed as qualifying	

		criteria	
v.	Past Performance & Experience	Exempted in respect of Past Performance & Experience as part of Qualifying Requirements of the tender subject to fulfillment of conditions as per eligibility	Manufacturing Micro & Small Enterprises (MSEs) (including Khadi & village Industries/ Units) who have filed Entrepreneur Memorandum in Haryana and further: (a) Those MSEs have Quality Certification of ISI/ ISO/ AgMark/ Quality Mark issued from competent authority in State or Central Govt .in respect of the items/ goods mentioned in the tender OR/AND (b) Those who are registered with DGS&D/ NSIC /GOI Department/ State Govt. Department/ GOI PSUs/ State Govt. PSUs in respect of the item/ goods mentioned in the tender. The firm will be required to submit the detailed information in respect of above through an affidavit as per the format enclosed as Annexure-I
vi.	Purchase Preference	50% of the total tendered quantity provided quoting price within band of L-1+15% by bringing down their price to L-1 and subject to condition that it agrees to fulfillment of other terms & conditions of the tender and further subject to fulfillment of conditions as per eligibility	

B. Concessions/ benefits to Medium Enterprises:-

Sr. No.	Area as part of Qualifying requirements	Concessions/ benefits allowed to Medium Enterprises	Eligibility
i.	Past Performance & Experience	Exemption on Qualifying Requirement of Past Performance & Experience as part of Qualifying Requirements of the tender subject to fulfillment of conditions as per eligibility.	Manufacturing Medium Enterprises of the State that have filed Entrepreneur Memorandum for quoted items in Haryana, participate directly in tender and not through any intermediaries (their dealers/ agents/ distributors), and will not subcontract to any other firm and to carry the entire manufacturing at their enterprise. This concession will be applicable only for one year to newly registered Medium Enterprises or Medium Enterprises of State who are not eligible in State Public Procurement due to eligibility criteria of past performance & Experience. The firm will be required to submit the detailed information in respect of above through an affidavit as per the format enclosed as Annexure-II
ii.	Purchase Preference	10% of the total tendered quantity provided quoting price within band of L-1+15% by bringing down their price to L-1 and subject to condition that it agrees to fulfillment of other terms & conditions of the tender and further subject to fulfillment of conditions as per eligibility	

Further, the benefit of discounting of 50% Haryana VAT revenue from the composite price bid for the purpose of financial evaluation of the bids as per the policy guidelines issued vide G.O. No. 2/2/2010-4I-BII of dated 19-12-2011 will continued to be applicable to all Haryana Billing Firms including MSMEs covered in the above policy scope.

4. The apportionment/ distribution of tendered quantity after negotiations based on the existing instructions and Purchase Preference allowed to MSMEs as above may have different scenarios. The general guidelines for the apportionment of tendered quantity to firms other than MSMEs, MSEs & MEs will be as under:-
   i. Purchase Preference to MSMEs will not be applicable if the tendered quantity is only one.
   ii. Purchase Preference for Medium Enterprises (MEs) will only be allowed on the quantities in multiple of 10 say 10, 20, 30 and so on. The quantity less than 10 or in between multiple of 10, 20, 30 will not be considered for Purchase Preference to MEs.

iii. Negotiations will be held only with L1+5% firms. MSMEs as per above instructions within the price range of L1+15% will be counter offered to match the finally arrived L1 rate. In case, MSMEs within L1+15% range refuse to match the finally arrived L1 rate than the entire 60% (50% for MSEs and 10% for MEs) of purchase preference will be transferred to L1+5% category firms.

iv. In case, no Micro & Small Enterprises (MSEs) and Medium Enterprises (MEs) as per the eligibility criteria specified in the above instructions are within L1+15% range, the entire 100% tendered quantity will be distributed as per the existing guidelines.

v. In case, there are no Micro & Small Enterprises (MSEs) within L1+15% range, the Purchase Preference Quota of 50% of MSEs will stand transferred to open category making it from 40% to 90%.

vi. In case there are no Medium Enterprises (MEs) within L1+15% range, the Purchase Preference Quota of 10% of MEs will stand transferred to open category making it from 40% to 50%.

vii. In case, no MSMEs is within L1+5% range and there is one MSE & one ME in L1+15% range and further agree to match the arrived L1 rate, the quantity distribution will be upto 40% for firm other then MSME, upto 50% for MSE and upto 10% for ME and so on.

viii. In case, there are MSMEs (both or either MSEs and MEs) within L1+5% range and there are MSEs & MEs in L1+15% range. Negotiations will be carried out with all firms within L1+5% as per the existing guidelines to arrive at finally arrived L1 rate. The finally arrived firm can be - any other firm /MSE/ME or any/ more of these - other firm/MSE/ME matches the finally arrived price; in such a situation, apportionment will be done as per the existing instructions of ratio of 70:30 or 50:25:25 & so on. Thereafter, offer will be given to MSE and MEs within L+15% range to match the finally arrived L1 rate and if they agree to match the arrived L1 rate, the apportionment of quantity will have many scenarios for the distribution of tendered quantities. Some of the scenarios and sub-scenarios of quantity apportionment may be as per **Annexure-'III'** enclosed with this notification. However, there can be many more scenarios depending upon the number of MSMEs within price range of L1 +5% and L1+15%

The above instructions will supersede the instructions as issued vide Industries & Commerce Department Haryana Order No.2/2/2010-4I IB II of dated 24.03.2015 related to concessions/ benefits to Haryana based Micro & Small Enterprises (MSEs) including Khadi & Village Industrial Units.

This issues with the concurrence of Finance Department conveyed vide their U.O. No. 1/48/2016-4FD III/27758 of dated 03.10.2016.

The above instructions may be brought to the notice of all concerned and shall be applicable to all the tenders floated/ invited after issue of these instructions.

Dated: 19.10.2016

Devender Singh
Principal Secretary to Government Haryana,
Industries & Commerce Department

Endst. No.2/2/2016-4I-B II(1)/ **Dated: 20/10/2016**

A copy of the above is forwarded to the following for information and necessary action:-

1. All the Administrative Secretaries to Government of Haryana.
2. All the Heads of Departments, Govt. of Haryana.
3. All the MDs/ CEOs of Boards/ Corporations/ Federations in the State of Haryana.
4. All the Divisional Commissioners in the State of Haryana.
5. All Deputy Commissioner in the State of Haryana.
6. Registrar, Punjab & Haryana High Court.

Ram Singh
Superintendent Industries-II,
For Principal Secretary to Government Haryana,
Industries & Commerce Department

Government of Haryana
Department of Industries & Commerce

Endst. No.2/2/2016-4I B II(1)/ **Dated: 20/10/2016**

A copy of the above is forwarded to the following for information and necessary action:-

1. Director, Supplies & Disposals, Haryana, Panchkula.
2. Principal Accountant General (Audit), Haryana, Sector-33, Chandigarh.

Ram Singh
Superintendent Industries-II,
For Principal Secretary to Government Haryana,
Industries & Commerce Department

Endst. No.2/2/2016-4I B II(1)/ **Dated: 20/10/2016**

A copy of the above is forwarded to the Controller, Printing & Stationery Department, Haryana, Chandigarh with the request that above notification may be published in Haryana Govt. Gazette Ordinary immediately and 50 copies thereof be supplied to this department.

Ram Singh
Superintendent Industries-II,
For Principal Secretary to Government Haryana,
Industries & Commerce Department

U.O. No.2/2/2016-4I B II(1)/ **Dated: 20/10/2016**

A copy of the above is forwarded to Spl. Private Secretaries/ Private Secretaries to Minister of Industries & Commerce Haryana for information please.

Ram Singh
Superintendent Industries-II,
For Principal Secretary to Government Haryana,
Industries & Commerce Department

To,

Spl. Private Secretaries/ Private Secretaries to Minister of Industries & Commerce Haryana

U.O. No.2/2/2016-4I B II(1)/ **Dated: 20/10/2016**

A copy of the above is forwarded to Administrative Secretary to Government Haryana, Finance Department for information with reference to his U.O. No. 1/48/2016-4FD III/27758 of dated 03.10.2016.

Ram Singh
Superintendent Industries-II,
For Principal Secretary to Government Haryana,
Industries & Commerce Department

To,

Administrative Secretary to Government Haryana,
Finance Department

U.O. No.2/2/2016-4I B II(1)/ **Dated: 20/10/2016**

A copy of the above is forwarded to Sr. Spl. Private Secretaries/ Spl. Private Secretaries/ Private Secretaries to the Chief Minister/ Ministers for their kind information.

Ram Singh
Superintendent Industries4I,
For Principal Secretary to Government Haryana,
Industries & Commerce Department

To,

Sr. Spl. Private Secretaries/ Spl. Private Secretaries/
Private Secretaries to the Chief Minister/ Ministers

U.O. No.2/2/2016-4I B II(1)/ **Dated: 20/10/2016**

Annexure 'I'

Format of Affidavit

(Seeking benefits/ concessions in Past performance/ Experience & Purchase Preference by Haryana based manufacturing Micro & Small Enterprises (MSEs) in the State Public Procurement)

(On non judicial paper of Rs. 10/-)

I _____ S/o _____ aged _____ residing at _____ Proprietor/ Partner/ Director of M/s _____ do hereby solemnly affirm and declare that:-

1. My/our above noted enterprise M/s _____ (Name & Address) _____ has been issued Manufacturing Entrepreneurs Memorandum in Haryana by the District Industries Centre _____ under acknowledgement No. _____ of dated _____ (Self Certified Copy of the same is attached as **Annexure 'A'** with this affidavit) and has been issued for manufacture of the following items in **category Micro / Small Enterprise** (please tick the either) as under:-
   i. _____
   ii. _____
   iii. _____
2. That the quoted item(s) in the tender _____ is one (or more) of the item for which my/our above noted enterprise has been issued Manufacturing Entrepreneurs Memorandum by the Industry Department Haryana as per details at para 1 above.
3. That my/our above mentioned manufacturing Micro/ Small Enterprises fulfils either or both of the below mentioned eligibility criteria:
   i. That my/our above mentioned enterprise has been issued quality certification of ISI Mark/ ISO/ Ag. Mark/ any other quality mark _____ **(please tick either of the option)** by _____ (name of GOI/ State Govt. Agency/ institution authorized by GOI/ State Govt.) on _____ and the same is valid from _____ to _____ in respect of item/ good (give name of item/good) _____ mentioned in the tender (Self Certified Copy of the relevant certificate is attached as **Annexure 'A'** with this affidavit)

   OR/AND

   ii. That my/our above mentioned enterprises has been registered with DGS&D, GOI/ NSIC/ Govt. of India Departments/ State Govt. Department/ Govt. of India Public Sector Undertakings (PSUs) or State Government Public Sector Undertakings (PSUs) **(Please tick one of the option as above)** in respect of Name of item/ goods/ work/ services _____ **(Name)** as mentioned in the tender for the corresponding period of time of this tender. A self certified Copy of the same attached as **Annexure 'B'** with this affidavit
4. That in case the Purchase Order of the quoted item is issued to me/us, it will not be outsourced or subcontracted to any other firm and the entire manufacturing of the order item shall be done in-house by our Enterprise based in Haryana (address mentioned as at Sr.No.1). Further, the billing will be done from Haryana.

Dated: **DEPONENT**

VERIFICATION:

Verified that the contents of para no. 1 to 4 of the above are true and correct to my knowledge as per the official record and nothing has been concealed there in.

Dated: **DEPONENT**

Annexure 'II'

Format of Affidavit

(For seeking the benefits/ concessions by Haryana based manufacturing Medium Enterprises in Past Performance/ Experience & Purchase Preference in the State Public Procurement)

(On non judicial paper of Rs. 10/-)

I_____ S/o _____ aged _____ residing at _____ Proprietor/ Partner/ Director of M/s_____ do hereby solemnly affirm and declare that:-

1. My/our above noted enterprise M/s ____(Name and Complete address)_____ has been issued Manufacturing Entrepreneurs Memorandum in Haryana by the District industries Centre_____ under acknowledgement No._____ of dated_____ (Self Certified Copy of the same be attached as **Annexure 'A'** with this affidavit) and has been issued for manufacture of the following items in **category Medium Enterprise** as under:-
   i. _____
   ii. _____
   iii. _____
   iv. _____
2. That my/our above mentioned manufacturing Medium Enterprises meet all the remaining terms & conditions of the tender except Past Performance/ Past Experience.
3. That my first purchase order under this benefit/ concession was issued by State Government Department/ State Government Agency (name of Deptt./Agency)_____ vide P.O. No._____ of dated_____ for the supply of _____ (name of the item/ good/ work/ services) was successfully complied by above mentioned Enterprises. A self certified Copy of the same is attached as **Annexure 'B'** with this affidavit.
4. That in case the Purchase Order of the quoted item is issued to me/us, it will not be outsourced or subcontracted to any other firm and the entire manufacturing of the order item shall be done in-house by our Enterprise based in Haryana, (address mentioned as at Sr.No.1).
5. That we agree to the condition that this benefit/ concession to the Medium enterprises is valid for one year from the date of getting the first supply order under State Public Procurement.
6. That the billing will be done from Haryana.

Dated: **DEPONENT**

VERIFICATION:

Verified that the contents of para no. 1 to 6 of the above are true and correct to my knowledge as per the official record and nothing has been concealed there in.

Dated: **DEPONENT**

Government of Haryana
Department of Industries & Commerce

Annexure 'III'

Various possible scenarios during negotiations/apportionment of quantities in view of implementation of MSMEs Public Procurement Policy in the State:

S. No.	Scenario	Sub scenario/Negotiations	Sub-sub scenario	Apportionment
1	When no Micro & Small Enterprises (MSEs) or Medium Enterprises (MEs) (Purchase Preference Enterprises) have submitted their bids in the tender	-	Negotiations shall be done as per the exiting provisions	Apportionment of quantity shall be done as per the exiting provisions
2	When L1+5% have MSMEs (Purchase Preference) options in addition to firms other than MSMEs and L1+15% have no MSMEs (Purchase Preference) options:	When one or more MSEs is within L1+5% (evaluated rates) and no Medium Enterprises (ME) (Purchase Preference) have submitted its bids or are beyond L1+15% range: Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1.	(i) In case, MSE is finally arrived L1, then it will be entitled 100% of the tendered quantity (40% of unreserved category + 50% for MSEs +10% for MEs)	100% of quantity allotment to MSE
			(ii) In case, one MSE matches the finally arrived L1 (other than MSE), it will be eligible for 70:30 ratio of the tendered quantity out of 50 % (40% reserved for non purchase preference quota + 10% full quota for MEs) and further will be entitled for full 50% reserved quota for MSEs	35% quantity allotment to Firm other than MSME and 65% quantity allotment to MSE
			(iii) In case, more than one MSEs (say two no) matches the finally arrived L1 rate (other than MSE), both will be eligible for 50 (non MSME) :25(MSE1):25(MSE2) ratio of the tendered quantity out of 50 % (40% reserved for non purchase preference quota + 10% full quota for MEs) and further will be entitled for half of 50% reserved quota for MSEs and so on	25% quantity allotment to Firm other than MSME and 37.5% quantity allotment each to MSE1 and MSE2 respectively
		When one or more MEs is within L1+5% (evaluated rates) and no Micro & Small Enterprises (MSEs)(Purchase Preference) have submitted its bids or are beyond L1+15% range: Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1.	(i) In case, ME is finally arrived L1, it will be entitled 100% of the tendered quantity (40% of unreserved category + 50% for MSEs +10% for MEs)	100% of quantity allotment to ME
			(ii) In case, one ME matches the finally arrived L1 (other than ME) , it will be eligible for 70:30 ration (30% share for ME) of the tendered quantity out of 90% (40% reserved for non purchase preference quota and 50% reserved quota for MSEs) and further will be entitled for full 10% quota for MEs	60% quantity allotment to Firm other than MSME and 40% quantity allotment to ME
			(iii) In case, more than one MEs (say two no) matches the finally arrived L1 rate(other than ME),, both will be eligible (50 (Non MSME):25(ME1):25) (ME2 for 25% each from the tendered quantity out of 90% (40 % reserved for non purchase preference quota and 50% reserved quota for MSEs) + half of 10% quota for MEs and so on	45% quantity allotment to Firm other than MSME and 27.5% quantity allotment each to ME1 and ME2 respectively
		When one or more MSEs and MEs is within L1+5% (evaluated rates and no MSEs/MEs are within L1 + 15 % (evaluated) range: Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as	(i) In case, one MSE is finally arrived L1, it will be entitled 90% of the tendered quantity (40% of unreserved category + 50% for MSEs) and the one ME will be entitled for 10% of the tendered quantity subject to condition that it accept the counter offer of finally arrived L1 -	90% quantity allotment to MSE and 10% quantity allotment to ME
			(ii) In case, one ME is finally arrived L1, it will be entitled 50% of the	50% quantity allotment to ME and 50% quantity allo

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		per the exiting instructions to arrive at finally discovered price L1.	tendered quantity (40% of unreserved category +10% for MEs) and the one SME subject to condition that it accept the counter offer of finally arrived L1 will be entitled for 50% of the tendered quantity --	
			(iii) In case, one MSE matches the finally arrived L1 (firm other than MSE & ME) , it will be eligible for 70:30 ration (30% share for MSE) of the tendered quantity out of 40% (reserved for non purchase preference quota) + 50% reserved quota for MSEs and one ME subject to condition that it accept the counter offer of finally arrived L1 will be entitled for 10% of tendered quantity	30% of tendered quantity to firm other than MSME, 60% quantity allotment to MSE and 10% quantity allotment to ME
			(iv) In case, one ME matches the finally arrived L1 (from firm other than MSE & ME) , it will be eligible for 70:30 ration (30% share for ME) of the tendered quantity out of 40% non purchase preference quota and further 10% reserved quota for MEs and the one MSE subject to condition that it accept the counter offer of finally arrived L1 will be entitled for 50% of the tendered quantity	30% of tendered quantity to firm other than MSME, 50% quantity allotment to MSE and 20% quantity allotment to ME
			(v) In case, more than one MSEs or MEs (say two no) matches the finally arrived L1 rate (from firm other than MSE & ME), both will be eligible as per the rational given above in (iii) and (iv)	20% of tendered quantity to firm other than MSME, 30% quantity each allotment to MSE1 & MSE2 and 10% quantity each allotment to ME1 & ME2
3	When L1+5% have no MSMEs Purchase Preference options and L1+15% have MSMEs Purchase Preference options:	When no MSEs/MEs is within L1+5% (evaluated rates) but one or more MSEs/MEs are within L1+15: Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1.	Offer will be given to MSE1, MSE2, ME1 and ME2 to match the L1 rate. (i) In case, MSE1 matches the L1 rate & MSE2, ME1 & ME2 do not agree to it, than the entire 50% of the tendered quantity will be offered to MSE1	50% of tendered quantity to firm other than MSME (40% unreserved share + 10% ME share) and 50% quantity allotment to MSE1
			(ii) In case, MSE2 also matches the L1 rate but ME1 & ME2 do not agree to the same, than the 50% of tendered quantity available as Purchase Preference to MSEs shall be equally distributed amongst the two MSEs and so on .	50% of tendered quantity to firm other than MSME (40% unreserved share + 10% ME share) and 25% each quantity allotment to MSE1 and MSE2
			(iii) In case, ME1 matches the L1 rate and MSE1, MSE2 & ME2 do not agree to the same, than the entire 10% of the tendered quantity will be offered to ME1	90% of tendered quantity to firm other than MSME (40% unreserved share + 50% MSE share) and 10% quantity allotment to ME1
			(iv) In case, ME2 also matches the L1 rate and MSE1 & MSE2 do not agree to the same, than the 10% of tendered quantity available as Purchase Preference to MEs shall be equally distributed amongst the two MEs and so on	90% of tendered quantity to firm other than MSME (40% unreserved share + 50% SME share) and 05% each quantity allotment to ME1 & ME2
			(v) In case, one MSE1 and one ME1 matches the L1 rate and MSE2 & ME2 do not agree to the same, than the entire 50% of the tendered quantity will be offered to MSE1 and the entire 10% of tendered quantity will be offered to ME1	40% of tendered quantity to firm other than MSME (40% unreserved share), 50% quantity allotment to MSE1 and 10% quantity allotment to ME1.
			(vi) In case, MSE1, MSE2 and one ME1 matches the L1 rate and ME2 do not agree to the same, than the entire	40% of tendered quantity to firm other than MSME (40% unreserved share), 25% each quantity

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			50% of the tendered quantity will be offered equally to MSE1 & MSE2 and the entire 10% of tendered quantity will be offered to ME1	allotment to MSE1 & MSE2 and 10% quantity allotment to ME1.
			(vii) In case, MSE1, MSE2, ME1 and ME2 matches the L1 rate, than the entire 50% of the tendered quantity will be offered equally to MSE1 & MSE2 and the entire 10% of tendered quantity will be offered equally to ME1 & ME2	40% of tendered quantity to firm other than MSME (40% unreserved share), 25% each quantity allotment to MSE1 & MSE2 and 05% each quantity allotment to ME1 & ME2.
4	When L1+5% have MSMEs Purchase Preference options and L1+15% too have MSMEs Purchase Preference options:	A1: When one or more MSEs (say MSE1, MSE2) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/ MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1. Let as assume that MSE1 is the finally arrived L1	Offer will be given to MSE3, MSE4, ME3 and ME4 (within L1+15% range) to match the L1 rate. (i) In case, either of MSE3 /MSE4 matches the L1 rate & MSE4/MSE3, ME3, ME4 do not agree to it.	75% of tendered quantity to MSE1 and 25% of tendered quantity to either of MSE3/MSE4
			(ii) In case, MSE3 & MSE4 matches the L1 rate and ME3, ME4 do not agree to it.	75% of tendered quantity to MSE1 and 12.5 % each of tendered quantity to MSE3 & MSE4
			(iii) In case, either of ME3/ME4 matches the L1 rate and MSE3, MSE4 & ME4/ME3 do not agree to it.	90% of tendered quantity to MSE1 and 10 % of tendered quantity to either of ME3/ME4
			(iv) In case, ME3 & ME4 matches the L1 rate and MSE3, MSE4 do not agree to it.	90% of tendered quantity to MSE1 and 05 % each of tendered quantity to ME3 & ME4
			(v) In case, MSE3 & ME3 matches the L1 rate & MSE4,ME4 do not agree to it	65% of tendered quantity to MSE1 , 25% of tendered quantity to MSE3 and 10% of tendered quantity to ME3
			(vi) In case, MSE3, MSE4 & ME3 matches the L1 rate & ME4 do not agree to it	56% of tendered quantity to MSE1 , 17% each of tendered quantity to MSE3 & MSE4 and 10% of tendered quantity to ME3
			(vii) In case, MSE3, MSE4 & ME3,ME4 matches the L1 rate	56% of tendered quantity to MSE1 , 17% each of tendered quantity to MSE3 & MSE4 and 05% each of tendered quantity to ME3 & ME4
		A2: When one or more MSEs (say MSE1, MSE2) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/ MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1. Let as assume that MSE1 matches the finally arrived L1 (other than MSME)	Offer will be given to MSE3, MSE4, ME3 and ME4 (within L1+15% range) to match the L1 rate. (i) In case, either of MSE3/MSE4 matches the L1 rate & MSE4/MSE3, ME3, ME4 do not agree to it.	35% of tendered quantity to firm other than MSME, 40% of tendered quantity to MSE1 and 25% of tendered quantity to either of MSE3/MSE4
			(ii) In case, MSE3 & MSE4 matches the L1 rate and ME3, ME4 do not agree to it.	35% of tendered quantity to firm other than MSME, 31% of tendered quantity to MSE1 and 17% each of tendered quantity to MSE3 &MSE4
			(iii) In case, either of ME3/ME4 matches the L1 rate and MSE3, MSE4 & ME4/ME3 do not agree to it.	28% of tendered quantity to firm other than MSME, 62% of tendered quantity to MSE1 and 10% each of tendered quantity to either of ME3/ME4
			(iv) In case, ME3 & ME4 matches the L1 rate and MSE3, MSE4 do not agree to it.	28% of tendered quantity to firm other than MSME, 62% of tendered quantity to MSE1 and 05% each of tendered quantity to ME3 & ME4 respectively
			(v) In case, either of MSE3/MSE4 & either of ME3/ME4 matches the L1 rate & further either of MSE4/MSE3 & ME4/ME3 do not agree to it	28% of tendered quantity to firm other than MSME, 37% of tendered quantity to MSE1, 25% of tendered quantity to either of MSE3/MSE4, and 10% of tendered quantity to either of ME3/ME4
			(vi) In case, MSE3, MSE4 & ME3,ME4matches the L1 rate	28% of tendered quantity to firm other than MSME, 28% of tendered quantity to MSE1, 17% each of tendered quantity to MSE3 & MSE4, and 05% each of tendered quantity to ME3 & ME4
		A3: When one or	Offer will be given to MSE3, MSE4, ME1	25% of tendered quantity to firm

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		more MSEs (say MSE1, MSE2) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/ MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1. Let as assume that more than one MSE say MSE1 & MSE2 matches the finally arrived L1	and ME2 (within L1+15% range) to match the L1 rate. (i) In case, either of MSE3/MSE4 matches the L1 rate & MSE4/MSE3, ME3, ME4 do not agree to it.	other than MSME, 29.5% each of tendered quantity to MSE1 & MSE2 and 16% of tendered quantity to either of MSE3/MSE4
			(ii) In case, MSE3 & MSE4 matches the L1 rate and ME3, ME4 do not agree to it.	25% of tendered quantity to firm other than MSME, 25% each of tendered quantity to MSE1 & MSE2 and 12.5% each of tendered quantity to MSE3 & MSE4 respectively
			(iii) In case, either of ME3/ME4 matches the L1 rate and MSE3, MSE4 & ME4/ME3 do not agree to it.	20% of tendered quantity to firm other than MSME, 35% each of tendered quantity to MSE1 & MSE2 and 10% of tendered quantity to either of ME3/ME4
			(iv) In case, ME3 & ME4 matches the L1 rate and MSE3, MSE4 do not agree to it.	20% of tendered quantity to firm other than MSME, 35% each of tendered quantity to MSE1 & MSE2 and 05% each of tendered quantity to ME3 and ME4
			(v) In case, either of MSE3/MSE4 & either of ME3/ME4 matches the L1 rate & further either of MSE4/MSE3 & ME4/ME3 do not agree to it	20% of tendered quantity to firm other than MSME, 27% each of tendered quantity to MSE1 & MSE2, 16% of tendered quantity to either of MSE3/MSE4, and 10% of tendered quantity to either of ME3/ME4
			(vi) In case, MSE3, MSE4 & ME3,ME4 matches the L1 rate	20% of tendered quantity to firm other than MSME, 22.5% each of tendered quantity to MSE1 & MSE2, 12.5% each of tendered quantity to MSE3 & MSE4, and 05% each of tendered quantity to ME3 & ME4
		B1: When one or more MEs (say ME1, ME2) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1. Let as assume that ME1 is the finally arrived L1	Offer will be given to MSE3, MSE4, ME3 and ME4 (within L1+15% range) to match the L1 rate. (i) In case, either of MSE3/MSE4 matches the L1 rate & MSE4/MSE3, ME3, ME4 do not agree to it.	50% of tendered quantity to ME1, and 50% of tendered quantity to either of MSE3/MSE4 who matched the L1 rate
			(ii) In case, both MSE3 & MSE4 matches the L1 rate and ME3, ME4 do not agree to it.	50% of tendered quantity to ME1, and 25% each of tendered quantity to MSE3 & MSE4 who matched the L1 rate
			(iii) In case, either of ME3/ME4 matches the L1 rate and MSE3, MSE4 & ME4/ME3 do not agree to it.	95% of tendered quantity to ME1, and 05% of tendered quantity to either of ME3/ME4 who matched the L1 rate
			(iv) In case, both ME3 & ME4 matches the L1 rate and MSE3, MSE4 do not agree to it.	95% of tendered quantity to ME1, and 2.5% each of tendered quantity to ME3 & ME4
			(v) In case, either of MSE3/MSE4 & either of ME3/ME4 matches the L1 rate & further either of MSE4/MSE3 & ME4/ME3 do not agree to it	45% of tendered quantity to ME1, 50% of tendered quantity to either of MSE3/MSE4, and 05% of tendered quantity to either of ME3/ME4
			(vi) In case, MSE3, MSE4 & ME3,ME4 matches the L1 rate	44% of tendered quantity to ME1, 25% each of tendered quantity to MSE3 & MSE4, and 03% each of tendered quantity to ME3 & ME4
		B2: When one or more MEs (say ME1, ME2) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as	Offer will be given to MSE3, MSE4, ME3 and ME4 (within L1+15% range) to match the L1 rate. (i) In case, either of MSE3/ MSE4 matches the L1 rate & MSE4/MSE3, ME3, ME4 do not agree to it.	30% of tendered quantity to firm other than MSME, 20% each of tendered quantity to ME1, and 50% of tendered quantity to either of MSE3/MSE4
			(ii) In case, both MSE3 & MSE4 matches the L1 rate and ME3, ME4 do not agree to it.	30% of tendered quantity to firm other than MSME, 20% each of tendered quantity to ME1, and 25% each of tendered quantity to e MSE3 & MSE4
			(iii) In case, either of ME3/ME4 matches	63% of tendered quantity to firm

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		per the exiting instructions to arrive at finally discovered price L1. Let as assume that ME1 matches the finally arrived L1 (firm other than MSME)	the L1 rate and MSE3, MSE4 & ME4/ME3 do not agree to it.	other than MSME, 32% each of tendered quantity to ME1, and 05% e of tendered quantity to either of ME3/ME4
			(iv) In case, both ME3 & ME4 matches the L1 rate and MSE3, MSE4 do not agree to it.	63% of tendered quantity to firm other than MSME, 31% each of tendered quantity to ME1, and 03% each of tendered quantity to ME3 & ME4
			(v) In case, either of MSE3/MSE4 & either of ME3/ME4 matches the L1 rate & further either of MSE4/MSE3 & ME4/ME3 do not agree to it	28% of tendered quantity to firm other than MSME, 17% of tendered quantity to ME1, 50% of tendered quantity to either of MSE3/MSE4 and 05% of tendered quantity to either of ME3 & ME4
			(vi) In case, MSE3, MSE4 & ME3,ME4 matches the L1 rate	28% of tendered quantity to firm other than MSME, 36% of tendered quantity to ME1, 25% each of tendered quantity to MSE3 & MSE4 and 03% each of tendered quantity to ME3 & ME4
		B3: When one or more MEs (say ME1, ME2) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1. Let as assume that more than one ME say ME1 & ME2 matches the finally arrived L1 (firm other than MSME)	Offer will be given to MSE3, MSE4, ME3 and ME4 (within L1+15% range) to match the L1 rate. (i) In case, either of MSE3/MSE4 matches the L1 rate & MSE4/MSE3, ME3, ME4 do not agree to it.	20% of tendered quantity to firm other than MSME, 15% each of the tendered quantity to ME1 and ME2, 50% of tendered quantity to either of MSE3/MSE4 who matched the L1 rate
			(ii) In case, both MSE3 & MSE4 matches the L1 rate and ME3, ME4 do not agree to it.	20% of tendered quantity to firm other than MSME, 15% each of the tendered quantity to ME1 and ME2, 25% each of tendered quantity to MSE3 & MSE4
			(iii) In case, either of ME3/ME4 matches the L1 rate and MSE3, MSE4 & ME4/ME3 do not agree to it.	45% of tendered quantity to firm other than MSME, 25.5% each of tendered quantity to ME1 & ME2 and 04% of tendered quantity to either of ME3/ME4 who matched the L1 rate
			(iv) In case, both ME3 & ME4 matches the L1 rate and MSE3, MSE4 do not agree to it.	45% of tendered quantity to firm other than MSME, 25% each of tendered quantity to ME1 & ME2 and half of 2.5% of tendered quantity to each of ME3 & ME4
			(v) In case, either of MSE3/MSE4 & either of ME3/ME4 matches the L1 rate & further either of MSE4/MSE3 & ME4/ME3 do not agree to it	20% of tendered quantity to firm other than MSME, 13% each of tendered quantity to ME1 & ME2, 50% of tendered quantity to either of MSE3/ MSE4 and 04% of tendered quantity to either of ME3/ME4
			(vi) In case, MSE3, MSE4 & ME3,ME4 matches the L1 rate	20% of tendered quantity to firm other than MSME, 13% each of tendered quantity to ME1 & ME2, 25% each of tendered quantity to MSE3 & MSE4 and 02% each of tendered quantity to ME3 & ME4
		C1(i) : When one or more MSMEs (say MSE1, ME1) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/ MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1.	Offer will be given to ME1 (in L1+5% range) and MSE3, MSE4, ME3 and ME4 (within L1+15% range) to match the L1 rate. (i) In case, ME1 and either of MSE3/MSE4 match the L1 rate & MSE4/MSE3, ME3, ME4 do not agree to it.	65% of tendered quantity to MSE1 , 25% of tendered quantity to either of MSE3/MSE4 and 10% of tendered quantity to ME1
			(ii) In case, ME1 and both MSE3 & MSE4 matches the L1 rate and ME3, ME4 do not agree to it.	56% of tendered quantity to MSE1, 17% each of tendered quantity to MSE3 & MSE4 and 10% of tendered quantity to ME1
			(iii) In case, ME1 and either of ME3/ME4 match the L1 rate and MSE3, MSE4 & ME4/ME3 do not agree to it.	90% of tendered quantity to MSE1 , 05% of tendered quantity to either of ME3/ME4 and 05% of tendered quantity to ME1
			(iv) In case, ME1 and both ME3 & ME4	90% of tendered quantity to MSE1

		Let as assume that one MSE1 and one ME1 are there in L1+5% range and MSE1 is finally arrived L1	matches the L1 rate and MSE3, MSE4 do not agree to it.	, 03% each of tendered quantity to ME3 & ME4 and 04% of tendered quantity to ME1
			(V) n case, ME1 and either of MSE3/MSE4 & either of ME3/ME4 matches the L1 rate & further either of MSE4/MSE3 & ME4/ME3 do not agree to it	65% of tendered quantity to MSE1, 25% of tendered quantity to either of MSE3/MSE4, 05% of tendered quantity to ME1 and 05% of tendered quantity to either of ME3/ME4
			(VI) n case, ME1 and MSE3, MSE4 & ME3,ME4 matches the L1 rate	56% of tendered quantity to MSE1, 17% each of tendered quantity to MSE3 & MSE4, 04% of tendered quantity to ME1 and 03% of tendered quantity to each of ME3 & ME4
		C1(ii) : When one or more MSMEs (say MSE1, ME1) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1. Let as assume that one MSE1 and one ME1 are there in L1+5% range and MSE1 is matches the finally arrived L1		Depending upon the various options as mentioned, apportionment will be done accordingly
		C2(i) : When one or more MSMEs (say MSE1, ME1) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1. Let as assume that one MSE1 and one ME1 are there in L1+5% range and ME1 is finally arrived L1		Depending upon the various options as mentioned, apportionment will be done accordingly
		C2(ii) : When one or more MSMEs (say MSE1, ME1) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1. Let as assume that one MSE1 and one ME1 are there in L1+5% range and ME1 matches the finally arrived L1		Depending upon the various options as mentioned, apportionment will be done accordingly
		C3(i) : When one or more MSMEs (say MSE1, ME1) is within L1+5% (evaluated rates) and one or more MSEs (MSE3,MSE4)/MEs (ME3,ME4) are within L1+15% range: : Negotiations will be carried out with L1,L2,L3 firms with the 5% price range as per the exiting instructions to arrive at finally discovered price L1. Let as assume that one MSE1 and one ME1 are there in L1+5% range and both MSE 1 and ME1 matches the finally arrived L1		Depending upon the various options as mentioned, apportionment will be done accordingly
		AND SO ON		

Principal Secretary to Government Haryana,
Industries & Commerce Department

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Government of Haryana
Industries & Commerce Department
Directorate of Supplies & Disposals

Government Order

No.2/2/2010-4-IB-II dated 16th June 2014

Subject: Policy guidelines for procurement of Stores & Goods and Turnkey Contracts-negotiation regarding.

1. The Policy guidelines issued vide G. O. No. 2/2/2010-4-IB-II dated 28.5.2010 provides that the in procurement of store items, whererever the rates quoted by the bidders, including those quoted by L_1 are not reasonable, the negotiations would be held only with the L_1 and a counter-offer made to the L_1. In case the L_1 bidder does not accept the counter offer, the tender would be dropped and recourse taken to invite fresh tenders

While observing that in Rate Contracts, it may be difficult to assess the quantity at the indenting stage or the L_1 bidder may not have sufficient manufacturing capacity to meet the entire estimated requirement, Policy Guidelines dated 18.6.2013 were issued which provides that the price discovery for the Rate Contract shall generally be determined based on the rates quoted by the L_1 bidder and the negotiations, if any, held with the lowest bidder. However, the rate contract negotiations could be held up-to L_3 bidder, if the difference between the L_1 quoted rates and those quoted by the L_2 and L_3 is within 5% of the L_1 quoted rates. In cases where the L_1 bidder refuses to further reduce his offered price and the L_2 or L_3 bidders come forward to offer a price which is better than the price offered by L_1 bidder, the bidder whose price is accepted becomes the L_1 bidder. However, in such a situation the original L_1 bidder shall be given one more opportunity to match the discover price in case of acceptance, he would be treated as the L_1 bidder. It is further provided that on determination of the price discovery pursuant to the above process, a counter offer would be made to all such eligible bidders whose quoted price is within 10% of the L_1 quoted price for acceptance of the discovered/offered price. Such of the eligible bidders whose quoted price excess 10% of the L_1 quoted price shall not be eligible for consideration on the rate contract. The bidders

agreeing to accept the counter offer of the discovered price following the above process, may be approved on the Rate Contract. As regards apportionment of the quantity of supplies, the finally determined L_1 bidder would be accorded due preference and the allocation of order may got up to 50% of the total ordered quantity subject to his offered quantity/capacity to supply.

2. The proposals received from various Indenting Agencies have been considered wherein they have proposed that the negotiations policy as applicable in Rate Contracts, may also be followed for procurement of specific quantity of stores & turnkey contracts. One of the rationale put forth was that as per the existing guidelines on the subject, negotiations of rates could be held only with the L_1 bidder/s and if the L_1 bidder/s refuse to accept reasonable rates, there was no option but to go for re-tendering. The process of re-tendering took its own time and could not be afforded in critical service delivery areas. Besides this, there remained possibility of getting further higher rates in the re-invited tender.

3. Keeping the above in view, following decisions have been taken:

   (i) The price discovery for cases relating to **purchase of specific quantity of Stores, Goods and award of Turnkey Contracts** shall be generally determined based on the rates quoted by the L_1 bidder if the quoted rates are found to be reasonable by the Indenting Department, and negotiations, if any, held with lowest bidder. However, the negotiations could be held up to L_3 bidder, if the difference between L_1 quoted rate and those quoted by L_2 & L_3 is within 5% of the L_1 quoted rate. In cases where the L_1 bidder refuses to further reduce his offered price and the L_2 or L_3 bidders come forward to offer a price which is better than the price offered by L_1 bidder, the bidder whose price is accepted becomes the L_1 bidder. However, in such a situation, the original L_1 bidder may be given one more opportunity to improve upon the discovered price.

In case, the original L_1 bidder further improves upon the price discovered during the negotiations, he would be treated as the L_1 bidder.

(ii) As regards apportionment of the quantity of supplies, the finally determined L_1 bidder would be accorded due preference and the allocation of order may be decided by the HPPC subject to information available in the DNIT e.g. his offered quantity/capacity to supply, sales turnover, orders in hand, past performance etc. or any other rational parameters. The balance order may be apportioned between the L_2 & L_3 bidders, if they accept the final L_1 rates, on the basis of identical information e.g. their offered quantity, capacity to supply, sales turnover, orders in hand, past performance etc which may be decided by the HPPC on case to case basis.

4. As per policy guidelines dated 18.06.2013 qua the Rate Contracts, the finally determined L_1 bidder is to be accorded due preference and the allocation of order may go up to 50% of the total ordered quantity subject to his offered quantity/ capacity to supply. Further, the discovered rates are counter offered to all the bidders whose quoted price is within 10% of the L_1 price. The past experience has shown that there could be cases where the L_1 bidder may have a limited capacity of less than 50% of the estimated procurement quantities. Hence, these guidelines are revised in the following manner:

FOR RATE CONTRACT CASES:

(i) In cases where there is only one bidder for a particular item and the price quoted by such L_1 bidder is accepted by the indenting department as being reasonable, the order for the entire quantity qua such item could be placed on such bidder;

(ii) In cases where only two bidding firms are approved, the allocation

of quantity of the order may go up to 70% in favour of the L_1 bidder subject to the information available in the DNIT viz his offered capacity/capacity to produce/manufacture, orders/ commitments in hand and previous track record;

(iii) In case, more than two firms are approved, the L_1 bidder, whose finally discovered price becomes the basis for making counter-offers to other qualifying bidders, would continue to be accorded priority for allocation of share of quantities, which may go up to 50% of the total estimated quantity of the Rate Contract subject to his offered quantity, capacity to produce/ manufacture, orders/commitments in hand and previous track record;

(iv) In cases where there are more than one bidders consenting to accept the L_1 discovered price in response to the counter-offer, the quantities shall be allocated by the HPPC among L_2 & above approved bidders, as the case may be, based on the principles of (i) L_2/L_3 position (viz L_2 bidder shall be preferred over L_3 bidder & so on (ii) offered quantity, (iii) capacity to supply, (iv) Sales turnover, (v) orders in hand, and (vi) previous track record in execution of orders (as per the information available in the DNIT).

(v) It may not be necessary to make a counter-offer of the discovered price to all the bidders quoting within 10% of the L_1 quoted rates. Instead, such counter-offer may be restricted up-to L_3 if they have the capacity to meet the entire order. However, if the L_2 or L_3 bidders do not accept the counter offered rates, the counter offer in that case could also be extended to other bidders whose quoted rates are within 10% price range. This is likely to increase the competitiveness.

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5. These guidelines shall be applicable to all cases of Rate Contracts, Fixed quantity purchases of Stores & Goods and Turnkey Contracts to be considered by the HPPC after the date of issue of these guidelines.

Y.S. Malik,
Addl. Chief Secretary to Government of Haryana,
Industries & Commerce Department

Endst. No.2/2/2010-4-IB-II Dated, the 16th June 2014

A copy is forwarded to the following for information :-

1. All the Administrative Secretaries to Government of Haryana.
2. All Heads of Departments.
3. All the MDs/CEOs of Boards and Corporations.
4. All the Divisional Commissioners in the State of Haryana.
5. All the Deputy Commissioners in the state of Haryana.
6. Registrar, Punjab & Haryana High Court.

Bhupinder Malhotra
Superintendent IB-II
For Addl. Chief Secretary to Government of Haryana,
Industries & Commerce Department

Endst. No.2/2/2010-4-IB-II Dated, the 16th June 2014

A copy is forwarded to the Director Supplies & Disposals, Haryana, Chandigarh w.r.t. his U.O. No. 383 dated 10.02.2014 for information and necessary action.

Bhupinder Malhotra
Superintendent IB-II
For Addl. Chief Secretary to Government of Haryana,
Industries & Commerce Department

Sey. to Govt

Government of Haryana
Department of Industries & Commerce
G.O. No. 2/2/2016-4I-B II dated 25-7-2016

Subject: **Grievance Redressal Mechanism for participating Bidders/ Firms in the e-Procurement of the State.**

A time bound Grievance Redressal Mechanism for dealing with the representations/ complaints/ letters of the participating bidders/ firms in the tendering process to bring more transparency in Public Procurement was under consideration of the State Government from some time. The matter has been considered and the following decisions are taken:-

1. A provision shall be made in the software of the Procurement Portal where all the bidders/ firms shall be asked to accept that they agree to all Qualifying Requirements (QRs)-Specifications/ Eligibility Criteria/ Terms & Conditions of the said DNIT. In case the bidder/ the firm does not accept the same, the software will not allow the bidder/ firm to proceed further in the procurement process.

2. A Grievance Redressal Mechanism for participating Bidders/ Firms shall be made an integral part of the DNIT for all type of Public Procurement as per the details given below:-

   (a) After the final scrutiny of the Technical Bids by the competent authority in Govt. Department/ Organization, the final status of the bidders being **As per NIT/ Not as per NIT** will be intimated to all the participating bidders/ firms within two days of the approval of proceeding of the final Technical Committee Meeting for the said tender. The decision will be conveyed to the bidders/ firms through electronically at their registered E-Mail ID/ Hard Copy

   (b) All the bidders/ firms who want to make any representation/ complaint against any issue related to their technical scrutiny of the bids may do the same within 5 working days (up to 05:00 P.M. of the Fifth Working day) of the date of issue of letter/ intimation regarding their **As per NIT/ Not as per NIT** status. They have to ensure that their communication is delivered/ reached within 5 working days and delay in postal will not be counted as a valid reason.

   (c) The tendering Department/ organization will examine the representation/ complaints so received from the bidders/ firms and take a final decision on the same within 5 working days. The five working days will be counted from 6th day to 10th working day of the total Grievance allotted duration of 10 working days.

   (d) After the completion of the Grievance allotted duration of 10 working days, the Financial Bid will be opened.

Government of Haryana
Department of Industries & Commerce
G.O. No. 2/2/2016-4I-B II dated 25-7-2016

(e) No representation/ complaint in whatsoever manner from the bidders/ firms will be entertained after the opening of Financial Bid.

(f) In case, some serious issue is observed during the examination of representation/ complaint of the bidder/ firm as in Para (c) above, the same may be finalized/ filed or if required may be brought to the notice of High Powered Purchase Committee (HPPC)/ any competent authority during the finalization of the procurement."

The above instructions may be brought to the notice of all concerned.

Dated: 21-7-2016

(Devender Singh)
Principal Secretary to Government Haryana,
Industries & Commerce Department

Endst. No.2/2/2016 4I-BII

Dated, the 25-7-2016

A copy of the above is forwarded to the following for information and necessary action:-

1. All the Administrative Secretaries to Govt. Haryana.
2. All the Heads of Departments, Govt. of Haryana.
3. All the MDs/ CEOs of Boards/ Corporations/ Federations/ Universities in the State of Haryana
4. All the Divisional Commissioners in the State of Haryana.
5. All Deputy Commissioner in the State of Haryana.

Ram Singh
Superintendent Industries-II,
For Principal Secretary to Government Haryana,
Industries & Commerce Department

Endst. No. 2/2/2016 4I-BII

Dated, the 25-7-2016

A copy of the above is forwarded to the following for information and necessary action:-

1. Director, Supplies & Disposals, Haryana, Panchkula.
2. Principal Accountant General (Audit), Haryana, Sector-33, Chandigarh.
3. ASIO, NIC, Haryana.

Ram Singh
Superintendent Industries-II,
For Principal Secretary to Government Haryana,
Industries & Commerce Department

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Government of Haryana
Finance Department

No:- 14/29/2023-6FA

From

The Additional Chief Secretary to Government of Haryana,
Finance Department

To

1. All the Administrative Secretaries to Government Haryana.
2. All the Heads of Departments, Statutory Bodies, Boards and Corporations.
4. The Registrar General, Punjab & Haryana High Court, Chandigarh.
5. All the Commissioners of Divisions, Ambala, Karnal, Faridabad, Gurugram, Hisar and Rohtak.
5. All the Deputy Commissioners and Sub Divisional Officers (Civil) in Haryana.
6. All the Chief Principal Secretary, Principal Secretary and Additional Principal Secretary/Officers on Special Duty/Senior Secretaries/Secretaries/ Private Secretaries for the information of Hon'ble Chief Minister, Deputy Chief Minister and Ministers of Haryana State.

Dated: 26.05.2023

Subject:- **Amendment in negotiation policy in respect of Procurement of Goods/Stores (Fixed Purchase & Rate Contracts), Turnkey and Services.**

Sir,

I am directed to invite your kind attention to the subject noted above and inform that the matter regarding amendment in negotiation policy of the State in respect of Procurement of Goods/Stores (Fixed Purchase & Rate Contracts), Turnkey and Services was under consideration of the State since some time. The matter has been considered and the following amendments as detailed below are made with immediate effect:-

Sr. No.	Govt. Order No. and Para	Existing procedure of negotiation	Proposed procedure of negotiation	
			Competency level	Procedure of negotiation in respect of procurements of Goods & Stores (both Fixed Purchase and Rate Contract), Turnkey and Services
1	2/2/2010-4-IB-II dated 16.06.2014 Para-3(i)	"..... *Para-3(i):- The price discovery for cases related to purchase of specific quantity of Stores, Goods and award of Turnkey Contracts shall be generally determined based on the rates quoted by the L_1 bidder if the quoted rates are found to be reasonable by the Indenting Departments, and negotiations, if any, held with the lowest bidder.* *However, the negotiation could be held upto L_3 bidder, if the different between the L_1 quoted rates and those*	Procurement Committees namely Standing Purchase Committee (Lower), Standing Purchase Committee (Higher) and Committee constituted for Procurement Of Consultant/ Consultancy vide Order No.2/1/2015-4IB-II dated	The price discovery for cases related to procurement of Goods & Stores (both Fixed Purchase and Rate Contract), Turnkey and Services be determined based on the rates quoted by the L1 bidder if the quoted rates are found to be reasonable by the Indenting Department/ Organization, and negotiations, if any, held with the lowest bidder (L1) only. The Committee will ensure the rates reasonability while finalizing the

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		quoted by L_2 & L_3, is within 5% of the L_1 quoted rates. In cases where the L_1 bidder refuses to further reduce his offered price and the L_2 or L_3 bidders come forward to offer a price which is better than the price offered by L_1 bidder, the bidder whose price is accepted becomes the L_1 bidder. However, in such a situation, the original L_1 bidder may be given one more opportunity to improve upon the discovered price. In case, the original L_1 bidder further improve upon the price discovered during the negotiations, he would be treated as the L_1 bidder."	04.06.2015 for their respective scope	procurement.
			Procurement Committees namely High Powered Purchase Committee (HPPC) constituted vide Order No.2/7/2014-4IB-II dated 10.12.2019 (and amended from time to time), Special High Powered Purchase Committee (SHPPC) constituted vide Order No.2/7/2006-4IBII dated 29.06.2011(and amended from time to time) and Department High Powered Purchase Committee (DHPPC) constituted vide Order No.2/1/2021-4IB-II dated 12.01.2021(and amended from time to time) for their respective scope.	The price discovery for cases related to procurement of Goods & Stores (both Fixed Purchase and Rate Contract), Turnkey and Services may be generally determined based on the rates quoted by the L1 bidder if the quoted rates are found to be reasonable by the Indenting Department/ Organization, and negotiations, if any, held with the lowest bidder. A. However, negotiation could be held upto four number of such bidder(s), in addition to L1 bidder in cases where there are bidders falling within 5% of the L1 bidder. In cases where the L1 bidder refuses to further reduce his offered price and any of the four bidders come forward to offer a price which is better than the price offered by L1 bidder, the bidder whose price is accepted becomes the L1 bidder. However, in such a situation, the original L1 bidder may be given one more opportunity to improve upon the discovered price. In case, the original L1 bidder further improve upon the price discovered during the negotiations, he would be treated as the L1 bidder. B. In cases where there is no bidder within 5% of the L1 bidder:- (i) L2 bidder will be invariably called for negotiation in addition to the L1 bidder. (ii) L3 bidder will also be called, if it is so decided by the Minister-in-Charge, in addition to L1, L2 bidders.
2	2/2/2010-4-IB-II 18.06.2013 Para-4(iv)	*"---------- Para-4(iv):- The price discovery for Rate Contracts shall be generally determined based on the rates quoted by the L_1 bidder and negotiations, if any, held with the lowest bidder. However, the Rate Contract negotiation could be held upto L_3 bidder, if the different between the L_1 quoted rates and those quoted by L_2 & L_3, is within 5% of the L_1 quoted rates. In cases where the L_1 bidder refuses to further reduce his offered price and the L_2 or L_3 bidders come forward to offer a price which is better than the price offered by L_1 bidder, the bidder whose price is accepted becomes the L_1 bidder. However, in such a situation, the original L_1 bidder shall be given one more opportunity match the discovered price. In case of acceptance, he would be treated as the L_1 bidder* *(v) On determination of the price discovery pursuant to the above process, a counter - offer would be made to all such eligible bidders whose quoted price is within 10% of the L1 quoted price, for acceptance of the discover / offered price. Such of the eligible bidders whose quoted price exceed 10% of the L1 quoted price shall not be eligible for consideration of the Rate Contract.* *(vi) The bidders, agreeing to accept the counter-offer of the discover price following the above process, may be approved on the Rate Contract"*		

The other provisions as contained in policy orders dated 18.06.2013 and 16.06.2014 will remain the same.

2. In addition to above, the Benefits/Concessions applicable to MSMEs/Startups of the State under "Purchase Preference" as contained in Govt. Order No. 2/2/2016-4I-BII

dated 13.08.2021 and 2/2/2016-4IB-II dated 03.01.2019 will also remain applicable in the amended negotiation provision as above.

The above instructions may be brought to the notice of all concerned for its implementation with immediate effect.

Pawan Kumar
Superintendent Finance Accounts,
for Additional Chief Secretary to Government of Haryana,
Finance Department

Endst. No. 14/29/2023-6FA Dated 26.05.2023

A copy is forwarded to the following for information and further necessary action:

1. The Principal Accountant General (A&E/Audit), Haryana, Chandigarh
2. The Director General, Supplies & Disposals Department, Panchkula. Original file is enclosed herewith.
3. The Director, Treasuries and Accounts Department, Haryana, Chandigarh.

Pawan Kumar
Superintendent Finance Accounts,
for Additional Chief Secretary to Government of Haryana,
Finance Department

CC:-
In-Charge, Computer Cell (FD)

End of section: IX

SECTION X: Declaration of Acceptance of DNIT

Declaration of Acceptance of DNIT

Acceptance of DNIT

I (Mr/Mrs/Ms) _____ authorized signatory of M/s_____ (Bidder) hereby certify that I have read the tender document and I agree to all qualifying requirements, specifications,

Eligibility Criteria, Terms & Conditions of the said DNIT.

Date: - **Digital Signature**

Note: No need to upload signed Tender Document at the time of submission of Bid.

Letter of undertaking

To

MD, HMSCL,

Haryana .

Sir,

Sub: Undertaking for participating in **Selection of Service Provider/ Aggregator for SMS gateway, WhatsApp Messaging Services, IVRS and e-Mail services for all Government Departments of Government of Haryana -** Reg.

Ref: Tender Ref:

I/We do hereby submit my/our bid for the **Selection of Service Provider/ Aggregator for SMS gateway, WhatsApp Messaging Services, IVRS and e-Mail services for Health Department Government of Haryana** in accordance with the Terms and Conditions of this RFP.

I/We have examined the details of the tender and have carefully noted the conditions of contract and the specification with all the stipulations of which I/We agree to comply. I/We hereby undertake to complete the assigned tasks as mentioned in the tender **Selection of Service Provider/ Aggregator for SMS gateway, WhatsApp Messaging Services, IVRS and e-Mail services for State TB Cell Haryana for the services .....**at the places mentioned in the specification of all the articles within as per RFP & tender schedule from the date of communication of acceptance of my/our tender.

I/We further agree that the acceptance of this tender shall result in a valid and concluded contract binding on me/us the terms whereof shall be taken to be those mentioned in the form of agreement here to annexed notwithstanding the non-execution of the said agreement.

I/We hereby declare that I/We agree to do the various acts, deeds and things referred to herein including the condition relating to non-withdrawal of this tender above set out in consideration of the HMSCL, Haryana and considering this my/our tender. I/We ---------- hereby confirm that our Company was not blacklisted by any State Government/ Central Government/ Public Sector Undertakings during the last three years. We also hereby confirm that our EMD/SD was not forfeited by any State Government / Central Government / Public Sector Undertakings during the last five years due to our non-performance, non-compliance with the tender conditions etc.

I/We ---------- hereby confirm that our Company has not filed for bankruptcy during the last three years.

I/We ---------- hereby confirm that our Company has not violated / infringed on any Indian or foreign trademark, patent, registered design, or other intellectual property rights any time anywhere in India.

I/We ..... shall not sub-contract any works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority.

I/We ..... have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority. I certify that this bidder fulfils all requirements in this regard and is eligible to be considered.

I/We ---------- hereby declare that all the particulars furnished by us in this Tender are true to the best of my/our knowledge, and we understand and accept that if at any stage, the information furnished is found to be incorrect or false, we are liable for disqualification from this tender and also are liable for any penal action that may arise due to the above.

I/We ---------- certify that we are liable and responsible for any disputes arising out of Intellectual Property Rights.

I/We __ certify that I/we shall not form any consortium with other bidders/ firms/ Organizations/agencies/ companies for carrying out the tasks specified in this RFP.

In case of violation of any of the conditions above, I/We ..... understand that I/We are liable to be blacklisted by HMSCL/Government of Haryana for a period of three years.

Note:

a) Declaration in the company's letter head should be submitted as per format given above.

b) If the bidding firm has been blacklisted by any State Government/ Central Government/ Public Sector Undertakings earlier, then the details should be provided.

No Consortium is allowed.

Operator's Credentials

Annexure - I

List of the Operators to which vendor is connected for BULK SMS						
S.No.	**Operator Name**	**Address**	**Contact Person**	**Designation**	**Email Address**	**Phone Number**
1.						
2.						
3.						
4.						
5.						

Authorized Signatory (Signature In full): _____

Name and title of Signatory: _____

Stamp of the Company: _____

Note 2: *Number of API Integrations/ Applications/ WhatsApp messages/ SMS mentioned in commercial bid format is indicative and only for the calculation of total cost of ownership for evaluation of commercial bid only. However actual number may vary increase or decrease basis on utilization. The payment for same will made on actual utilization basis based on the unit cost quoted by the bidder.

Note3: HMSCL/State TB Cell may integrate the solution with various applications / services as per its requirements. Number of services (API integration) is indicative for calculation of total cost of ownership. The same may vary as per HMSCL's requirement during the contract period. The payment for the API integration service will be made on actual integrated application / services based on the unit cost quoted by bidder.

Note 4: Whats App Chatbot Incoming Transaction: - One transaction means entire conversation done within 24 hours post initiation of the Chat Session by the user. For e.g. When a Citizen / user sends a "Hi"

Message to the chat bot the transaction initiation will start and all the conversation with the citizen within 24 hours of such initiation will be termed as one transaction. Only after 24 hours 2nd transaction cost will be due.

Note 5: Whats App Chatbot Outgoing Transaction: - Any Communication initiated by the Haryana Govt side and the conversation thereafter with 24 hours will be termed as one Outgoing transaction.

Note:

1. The bid price will be exclusive of all taxes and levies and shall be in Indian Rupees.
2. Errors & Rectification: Arithmetical errors will be rectified on the following basis: "If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected. If there is a discrepancy between words and figures, the amount in words will prevail".
3. The above SMS, WhatsApp messages item quantities are indicative & require for financial evaluation purpose only.
4. The bid should not contain any cost for the database of the subscribers as per the scope of the work.

   Financial bid containing price details other than the above format will be out rightly rejected.
5. The services of the bid initially is only for 2 years
6. The quarterly invoicing by the successful bidder at actual lowest rate will be payable based on quantity of distinct SMS delivered.

Technical specification and compliance

TECHNICAL PARAMETERS ARE MANDATORY. NO DOWNWARD DEVIATION IS ALLOWED. IN CASE OF ANY DEVIATIONS, BID WILL BE SUMMERILY REJECTED.

The bidder has to attach a technical compliance sheet in the following format:

SI. No.	Item	Minimum parameters Required	Offered parameters	Complied/ downgraded/ upgraded

End of section X